YDF PREA Compliance

Briefing and document package

Sacramento County Probation Department
Youth Detention Facility

WORKING DRAFT for departmental review. Not legal advice. Route to County Counsel before circulating outside the department.

Gap register Revision 11, 91 requirements assessed against 17 departmental documents.

What this package is

A review of the department's PREA posture at the Youth Detention Facility, and the documents produced from it. Everything here traces to one worksheet, the gap register, which assesses 91 requirements from 28 CFR Part 115 Subpart D and California Title 15 against the 17 departmental documents produced to the review.

- **The analysis is complete.** Nothing in this package is waiting on further review.
- **Most of the remediation is drafted.** Amended policy text exists for seven of the fifteen recommended changes, written out and ready to be marked up.
- **What is left needs decisions, not analysis.** A designation, an assignment, and seven documents the review asked for and has not received. Those are listed at the end.
- **Nothing here is a finding that the department failed to do something.** The review can only speak to the documents produced to it. Where a practice is not written down, the finding says it does not appear in the documents reviewed, which is a different statement. Several findings will close on production of a document rather than on any change in practice.

What we need

These are the items that cannot move without a decision from the department. They are reproduced from the management brief at Attachment A, which carries the reasoning behind each one.

1. **Name a PREA Coordinator and a facility compliance manager.** Our own order already sends work to that position.
2. **Decide who investigates youth on youth cases** below the level of sexual assault. It is not written down anywhere.
3. **Send WIC 625.6(d) to County Counsel.** It decides whether the interrogation finding is a violation we are carrying or a good practice we should adopt anyway.
4. **Give us the rosters and post assignments.** They settle whether the staffing question is a real gap or a paperwork gap.
5. **Produce six documents:** the PREA Policy itself, OO 1352.5 on transgender and intersex youth, OO 1354 on separation, the resident handbook, the hiring procedure, and the contractor and volunteer screening procedure. Some findings close on handing the document over, with nothing else to fix. The PREA Policy matters most: three of the written amendments are aimed at it, and until we see it those three are written against our best reconstruction of what it says rather than its real words. OO 1352.5 is the cheapest of the six to act on, because one provision of it is the only thing we are asking to change.
6. **Confirm whether the county has named Probation** as an agency that receives mandated child abuse reports. One paragraph of a drafted amendment depends on it.
7. **Put a name and a date against each of the 22 critical items.** The register has the columns and they are empty on purpose, because they are yours to fill.
8. **Approve rewriting the PREA Policy** instead of another round of patches, and put the two year review on a calendar.

Where we stand

Read the Conflict line first. Not Addressed means a requirement is not written down yet. Conflict means a departmental document states a rule that contradicts the law or another departmental document. The second is the more serious of the two: it is already in staff hands, it is harder to defend, and it is usually cheaper to fix.

Status	Requirements		Priority	Requirements
Conflict	13		Critical	22
Not Addressed	21		High	39
Partial	41		Medium	16
Addressed	14		Low	14
Not Evidenced	2			

Not Evidenced means a document is referenced in a departmental policy but has not been produced to this review, so no finding is made either way.

What is in this package

Ten documents. Every one is generated from the register or from a single source, so none is hand-maintained and none can drift out of step with the others. Do not edit them in Word: the next build overwrites the edit, and in the meantime the document is internally inconsistent. Two of them are exceptions, Attachments H and I, which are meant to be worked on in Word: accepting and rejecting their tracked changes is the point of them, and the copy saved afterwards is the department's. Attachment J looks like those two and is not one of them: it carries no tracked changes, because the order it addresses has never been produced to the review and so none of its wording is held.

Tab	Document	Page	Who it is for
A	Management Brief	10	Administrators, managers, and anyone who has to decide something.
B	Redlines, Changes 1 to 7	28	Policy revision, and County Counsel.
C	PREA versus Policy Crosswalk	50	Reference. Nobody reads it front to back.
D	Supervisor Decision Guide	130	Supervisors, read once in advance. Training.
E	Supervisor Classification Card	160	Every supervisor, on shift.
F	Supervisor Incident Memo Template	162	Supervisors.
G	Staffing Plan Factors	167	Whoever answers the staffing question.
H	OO 1453 with the fixes marked	169	Policy revision, County Counsel, and anyone who wants to see the actual words change rather than read about it.
I	OO 1352, the provisions that change	176	Policy revision, classification staff, and County Counsel.
J	OO 1352.5, citations and required actions	182	Policy revision, and County Counsel.

Attachment A. Management Brief

The document to brief from. Where the exposure is, how the liability runs, what the department already has right, and the fifteen recommended changes in three waves. Seven exposure items out of 91 requirements, one page each.

Start here. Page 3 is the entire review in five numbered points.

Attachment B. Redlines, Changes 1 to 7

The amended policy text for the seven changes correctable by amendment, with the legal authority for each and a note on what has to be confirmed before adoption.

Three of the orders amended here have not been produced to the review. For those, the struck text is a reconstruction of what the register describes rather than a quotation of the order, and each item says so on its face. ***Do not let any of it circulate as though the struck text were the order's real words.***

Attachment C. PREA versus Policy Crosswalk

The complete record. All 91 requirements with the departmental provision beside each one, then the same findings regrouped under each of the 17 policies so one document can be worked at a time.

The second view is the one to use when opening a specific order: it answers what has to change inside that document.

Attachment D. Supervisor Decision Guide

The long form behind the classification card: the six conduct tiers with the statutory basis for each, the mixed age rules, the full action list, the response sequence after an incident is classified, and who does what.

Carries the three ages question, which decides the reporting answer before the conduct is even looked at.

Attachment E. Supervisor Classification Card

One sheet, printed double sided. Ages, the tier chart, the factors that move an incident up a tier, what to do, and the classification block that goes in the incident report.

Built from the same source as Attachment D, and the build fails if the two ever disagree about a tier.

Attachment F. Supervisor Incident Memo Template

The memo a supervisor writes after classifying an incident, with the classification options matched to the tier chart.

The referral line is blank on purpose. The department has not yet said who conducts youth on youth administrative investigations in the band below sexual assault, which is one of the items under What we need.

Attachment G. Staffing Plan Factors

The factors the federal standard requires a documented staffing plan to address.

The staffing finding cannot be called either way until rosters are produced. The state floor sits at the department's written ratio, so the gap may be documentation rather than staffing. That is a materially different conversation and it is cheap to settle.

Attachment H. OO 1453 with the fixes marked

The Sexual Assault order itself, with the proposed amendments shown as Word tracked changes. Struck text is what comes out, underlined text is what goes in. Open it in Word, use Review, and accept or reject each change one at a time. Accepting them all leaves a clean amended order.

The base text is the order's own words, transcribed from the PDF produced to this review. Two paragraphs are amended: I.A.6 for the youth interrogation statutes (change 8) and I.A.9 for the child abuse reporting deadline (change 3). Three further defects are recorded in its notes and deliberately not amended, because the fix for those is not a change of wording. ***Read its Before adoption page first: one open legal question has to go to County Counsel before any of it is relied on.***

Attachment I. OO 1352, the provisions that change

The Classification order's amended provisions, shown as Word tracked changes the same way Attachment H shows OO 1453. Covers changes 1 and 6: rescinding the S-8 classification and its automatic single room rule, and separating the risk of being abusive from the risk of being victimised.

This one is not the whole order, and Attachment H is. *OO 1352 runs to twelve pages. It was read in full, but the PDF did not survive, so only the provisions quoted at the time are held. Six provisions carry real redlines because their words are the order's. Two are marked as described rather than quoted, carry no redline, and state the required action instead.* ***Upload the OO 1352 PDF again and a complete version can be built, the same way OO 1453 was.***

Attachment J. OO 1352.5, citations and required actions

The thirteen provisions of the transgender and intersex order that bear on PREA, what each one does, and the action required. Twelve need no amendment and four exceed the federal standard. One provision, III.I, is the whole finding, and the replacement language for it is drafted here.

This one is not a redline and shows no struck text. *OO 1352.5 has never been produced to the review, so its wording is not held and nothing here is a quotation. Produce the order and this becomes a tracked changes document built like Attachment H.*

How to use this package

Nobody needs to read all of it. By role:

- **Administrators and managers: Attachment A, and page 3 of it is the whole review in five numbered points.** The rest of A is the backup for each point, one page apiece. Twenty minutes.
- **Whoever owns policy revision: Attachment B**, the amended text for the first seven changes, then **Attachment C** for the full requirement by requirement record.
- **Supervisors: Attachment E**, one sheet printed double sided. Attachment D is the longer version behind it, read once in advance rather than during an incident, and Attachment F is the memo written after an incident is classified.
- **Whoever answers the staffing question: Attachment G.**

What is not in this package

Stated so the package is not mistaken for the whole file.

- **Six earlier documents** are part of this work and are not attached here: the master Policy Review Report, the Applicability Memo, the Liability Exposure Assessment, the Training Gap and Curriculum Plan, the Audit Evidence Request, and the Excel version of the register. They can be supplied on request. **The Liability Exposure Assessment carries its own handling warning and should route through County Counsel before it is circulated at all.**
- **Seven documents the review asked for and has not received.** Several findings may close on production rather than on any remediation, so producing them is the cheapest work available: the PREA Policy itself, OO 1352.5 on transgender and intersex youth, the separation order OO 1354, the Resident Orientation Handbook, the hiring procedure, the contractor and volunteer screening procedure, and staffing rosters with post assignments.
- **The PREA Policy is the highest value of those.** It carries three of the thirteen conflicts and it is the document three of the drafted amendments at Attachment B are written against, which is why those three rest on a reconstruction rather than on the order's real words. **OO 1352.5 is the cheapest of them.** Attachment J sets out its provisions and the one amendment wanted, and producing the order turns that attachment into a redline like Attachment H.
- **Training lesson plans are not built yet.** The curriculum analysis exists in one of the six documents above. The all staff and supervisor lesson plans are the next build after the items under What we need are answered.

This package is a policy and standards analysis prepared for internal departmental use. It is not legal advice, and no part of it should be treated as a legal opinion. Statutory questions, and the records retention schedule in particular, route to County Counsel. Citations have been verified against the operative text rather than recalled, and where a source could not be reached from the review environment the affected statement says so rather than asserting more than was checked.

Generated document, drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.

PREA Compliance: Where We Stand

Management briefing

Sacramento County Probation Department
Youth Detention Facility

WORKING DRAFT. Not legal advice. Route to County Counsel before circulating outside the department.

Drawn from gap register Revision 11, 91 requirements assessed against 17 departmental documents.

Contents

The short version

Five things. Then the detail behind each one.

1. PREA applies to us. It covers county juvenile facilities. But there is no federal fine for a county and no one can sue us under PREA itself. So the standards are not the risk. They are the yardstick somebody else measures us with.

2. The risk is state law and getting sued. Title 15 writes PREA content into about ten sections, and BSCC inspects us against it every two years. And a 2024 law removed the deadline for suing over childhood sexual assault. A claim from a resident in our care today never expires.

3. We have the policies. The problem is what some of them say. We checked 91 requirements against 17 of our policies. Thirteen are not missing pieces. They are places where our own policy tells staff to do something the law does not allow, or tells them the opposite of what another one of our policies says. Those are the expensive ones, because a written wrong rule is evidence. Most are fixable by amending a paragraph.

4. Three of the thirteen put individual staff at risk, not just the County. Our child abuse reporting deadline is wrong in two documents. One order tells supervisors to question a youth without mentioning a law that took effect in 2021. Both can be fixed this quarter.

5. Seven of the fifteen fixes are already written and ready to review. The other eight need a decision from this room, not more analysis. That is the ask.

Does PREA actually bind us

This gets asked first every time, so it is settled here. The answer has two halves and the second one is the one that matters.

- **Yes, as a standard.** PREA covers local government confinement facilities, 34 U.S.C. 30309(7). Agency includes local units, 28 CFR 115.5. Subpart D covers juvenile facilities. DOJ guidance states the standards apply equally to locally operated facilities.
- **No, as a direct federal penalty.** The five percent grant penalty, 34 U.S.C. 30307(c)(2), runs through the governor's certification, which 28 CFR 115.501(b) limits to state executive branch facilities. The Attorney General's own overview states it does not encompass county facilities. There is no private right of action under PREA.
- **And that is exactly why we are exposed.** DJJ closed 06/30/2023, so no California juvenile facility sits inside any governor's certification. Counties are persons under 42 U.S.C. 1983, with no Eleventh Amendment immunity and no qualified immunity for the entity. Being county run is what creates the damages exposure rather than removing it.
- **California has not adopted a PREA audit requirement for juvenile facilities.** Both editions of Title 15 read for this project contain no PREA reference and no facility audit requirement. So nobody is coming to audit us. The exposure arrives as a BSCC inspection finding or as a lawsuit, not as an audit report.

Where we stand, by the numbers

91 requirements from 28 CFR Part 115 Subpart D and Title 15, assessed against the 17 departmental documents produced to this review. The counts below are read out of the register at build time, so this page cannot drift from it.

Status	Rows		Priority	Rows
Conflict	13		Critical	22
Not Addressed	21		High	39
Partial	41		Medium	16
Addressed	14		Low	14
Not Evidenced	2			

Read the Conflict row first. Not Addressed means we have not written it down yet. Conflict means we have written down the wrong rule. The second is worse: it is harder to defend, it is already in staff hands, and it is cheaper to fix. Not Evidenced means the document is referenced in another policy but has not been produced to this review, so no finding is made either way.

Where the real exposure is

Not 91 items. These seven. Each one is in the register with the policy language behind it. Each reads the same way: what our policy says, what the law says, what it costs us, the fix, and what we need from you.

1. Automatic single room housing for LGBTQI, transgender and intersex youth

Register rows 36, 37

What our policy says. OO 1352 II.M puts every LGBTQI youth in classification S-8. III.I.1 then says every S-8 youth gets a single room at all times. OO 1352.5 III.I does the same for every transgender and intersex youth.

What the rule says. 15 CCR 1352(e) says you cannot pull a youth out of general population, or put them in a single room, just because of who they are. It spells out the lawful alternative: decide case by case, or give a single room when the youth asks for one. 115.342(c) says the same. 15 CCR 1324(k) separately says our policy manual itself cannot contain a rule like this.

Why it costs us. This is the easiest finding anyone could make against us, for three reasons. **The dates.** The state rule is not new. It has been in force since April 2014. We created S-8 in December 2019 and kept it on a February 2020 revision. That is five and a half years after the rule existed. **Our own order convicts us.** The single room sentence for S-8 and the single room sentence for S-4 High are word for word identical. They are the only two in the whole order. S-4 High is the category for youth with documented sex offences. So we give LGBTQI youth the exact housing restriction we reserve for adjudicated sex offenders, and we give it to nobody else. **The order argues with itself.** II.M.1.a says go look at the transgender policy for housing. III.I.1 then decides housing anyway.

The fix. Changes 1 and 2, already written. Strike the automatic single room rule and replace it with the state rule word for word, including its own exception for a youth who asks for a single room. Make single occupancy something you decide and document, not something a label triggers. A fourth paragraph stops this coming back under a different letter.

What I need. Nothing. This one is ready to move.

2. The child abuse reporting timeline is wrong, in two documents

Register row 48

What our policy says. PREA Policy V.A.4 and OO 1453 I.A.9 both say we call Child Protective Services within 24 hours. OO 1453 repeated it on a December 2019 revision.

What the rule says. Penal Code 11166(a) says telephone immediately, or as soon as you practically can. The written report on form SS 8572 goes in within 36 hours.

Why it costs us. This one can get a staff member prosecuted, not just sued. The duty belongs to the person who formed the suspicion. No supervisor can get in the way of it. There are criminal penalties for not reporting. So a staff member who follows our written policy exactly is the one exposed. And our Code of Conduct states the rule correctly, so we cannot argue nobody here knew.

The fix. Change 3, written and staged. Fix both documents now. Replace both with a pointer to one new department wide General Order once it issues. Reading OO 1453 in full also showed the order only ever talks about sexual assault, so the new wording is keyed to the reporting trigger in the law instead. That fixes the deadline and the scope together.

What I need. Find out whether the county has named Probation as an agency that receives these reports. One paragraph of the draft depends on it and nobody has confirmed it.

3. The interrogation instruction omits a statute that took effect in 2021

Register row 91

What our policy says. OO 1453 I.A.6: the duty supervisor takes an initial statement from the victim and the suspect, and reads the suspect a Miranda warning before any questioning.

What the rule says. WIC 625.6, in force since January 2021, says a youth 17 or younger has to talk to a lawyer before a custodial interrogation and before giving up Miranda rights. The youth cannot waive that conversation. WIC 625.7, in force since July 2024, separately bars deception and psychologically manipulative questioning of a youth 17 or younger.

Why it costs us. Our order says nothing about either law. It was last revised in December 2019, before both. The practical cost is that a statement taken under our own order can sink the case it was meant to build, and a judge can weigh a deliberate violation against the supervisor's credibility as a witness. **One important qualifier, and it may matter a lot.** WIC 625.6(d) says the rule does not apply to a probation officer doing normal duties under three specific sections of the code. Those sections are about booking a youth in and deciding whether to hold them, not about questioning a youth over a new offence inside the facility. We think the exemption does not cover this. But we have found no court decision either way, and County Counsel should answer it before we rely on anything here.

The fix. Change 8, drafted today, and you have it as a tracked changes copy of the order. It splits the victim statement from the suspect statement, adds the lawyer consultation, writes the emergency exception narrowly and requires it to be documented, adds the ban on deception, and says plainly where a supervisor stops and an investigator starts.

What I need. Send WIC 625.6(d) to County Counsel. That one answer decides whether this is a violation we are carrying or a good practice we should adopt anyway.

4. We have no PREA Coordinator, and one of our own orders routes work to one

Register rows 2, 3

What our policy says. OO 1453 I.A.15 says the incident review report goes to the PREA Coordinator. We do not have one.

What the rule says. 115.311(b) requires an agency wide PREA Coordinator with real authority and real time for the job. 115.311(c) requires a compliance manager at each facility if we run more than one.

Why it costs us. Two problems, and the second is the bad one. The report has nowhere to go, so our incident review process ends at an empty chair. And the order is a **signed departmental document, dated December 2019, saying we need the role.** That is much harder to answer than simply never having mentioned it.

The fix. Change 8 in the master report. This is naming somebody and giving them the hours. It is not a drafting job.

What I need. Name a PREA Coordinator and a facility compliance manager. Nothing else is blocking this.

5. Nothing is written for the band of conduct that generates most incidents

Register rows 47, 54, 69

What our policy says. OO 1453 is titled Sexual Assault. Every duty in it is keyed to those words: the staff reporting duty, the CPS call, the incident review.

What the rule says. 115.361(a) requires staff to report sexual abuse **or sexual harassment**. 115.6 defines harassment to include repeated unwelcome comments of a sexual nature. Title 15 goes further than the federal rule in two ways: it counts coercion by manipulation, and it reaches residents watching other residents.

Why it costs us. Across three pages and fifteen items, nothing in OO 1453 reaches harassment, indecent exposure, or touching that is not called assault. So we have a solid response plan for the worst band and nothing written for the band that produces most of the incidents. **That is where supervisors are making it up as they go**, and improvising is what later reads as not caring. It is also the band where, if both residents are 18 or over, there is no outside reporting duty at all. The only control is the one we write.

The fix. Change 12, broaden OO 1453, plus change 10 on grievances. The supervisor tier chart and the classification card already do this job day to day and can carry it while the order is amended.

What I need. Decide who investigates youth on youth cases in this band. It is not written down anywhere, and it is the one answer the supervisor materials cannot supply for themselves.

6. Three retention rules govern the same records, against a claim with no deadline

Register row 59

What our policy says. Internal Affairs XI.C.1 keeps complaint and investigation records five years. PREA Policy XVIII.B keeps sexual abuse case records ten years.

What the rule says. 115.371(j) says keep them as long as the alleged abuser is here, plus five years.

Why it costs us. Any one of the three can be read as permission to destroy a record the other two require us to keep. Put that against the 2024 law: for childhood sexual assault on or after January 1 2024, there is no deadline to sue, ever. A claim from a resident today has no expiry. The law also allows treble damages where there has been a cover up, and destroying records on our own written schedule is exactly the fact pattern that argument is built from.

The fix. Change 7, written. One schedule, reconciled. Paragraph 3 is a hold on destruction for anything on or after January 1 2024, because no fixed number of years can cover a claim with no deadline.

What I need. County Counsel sets the schedule. A policy revision cannot do it.

7. The governing PREA policy has not been revised since 2013

Register row 74

What our policy says. Our PREA Policy says effective and revised April 25, 2013. The Internal Affairs policy dates to 2011. The intake document has no date at all and still refers to CYA.

What the rule says. 15 CCR 1324 says the policy manual gets an administrative review at least every two years, and gets updated when it needs it.

Why it costs us. This is the finding that needs no argument. The policy predates the January 2019 Title 15 rewrite that added four sections we now have to comply with. It predates the room confinement law. It predates a Penal Code section being renumbered. **On a BSCC inspection this is proved by reading the cover page.** And the policy carries three of the thirteen conflicts by itself, so the review is not a formality.

The fix. Change 3 fixes the reporting standard. Beyond that the policy is worth rewriting in the order an auditor scores it, rather than patching it item by item.

What I need. Approve the rewrite instead of another round of amendments, and put the two year review on a calendar so we do not end up here again.

One thing we cannot yet call either way

Worth stating plainly, because it is the largest single unknown in the register and it is not a finding yet.

- **Staffing ratios.** OO 1321 states 1:10 waking and 1:30 sleeping. 115.313(c) has required 1:8 and 1:16 since 10/01/2017. 15 CCR 1321(h)(1) sets the state floor at 1:10 and 1:30, and 15 CCR 1301 permits exceeding it.
- So the written ratio is lawful under state law and below the federal standard. **Whether there is an actual gap depends on rosters, which have not been produced.** We may well be staffing above the written figure already, in which case the finding is a documentation problem rather than a staffing one. That is a materially different conversation and it is cheap to settle.
- Recommended change 9 is blocked until rosters and post assignments are produced. 115.313(a) also requires a documented staffing plan, which does not appear in the documents reviewed regardless of what the rosters show.

How the liability actually runs

Nine theories are set out in the exposure assessment. Four of them carry the weight, and none of them is a PREA claim.

- **Section 1983, with Monell.** Counties are persons under 42 U.S.C. 1983, with no Eleventh Amendment immunity and no qualified immunity for the entity, Owen v. City of Independence, 445 U.S. 622. A written policy is the clearest form of the official policy Monell, 436 U.S. 658, requires. **A conflict row is therefore not just a compliance defect. It is the element of the claim.**
- **Failure to protect, on an objective standard.** Castro v. County of Los Angeles, 833 F.3d 1060 (9th Cir. 2016) (en banc) sets an objective standard for a pretrial detainee failure to protect claim, which is more readily met than the subjective test under Farmer v. Brennan, 511 U.S. 825. Kingsley v. Hendrickson, 576 U.S. 389 runs the same direction.
- **Mandatory duty liability, Government Code 815.6.** Liability attaches where an enactment imposes a mandatory duty, and enactment includes a regulation under Government Code 810.6. **Title 15 is a regulation.** That is the route by which a BSCC standard becomes a damages claim rather than an inspection finding. Government Code 818.2 is the County's defense and it does not cover everything.
- **No deadline, and no claim filing requirement.** AB 452 eliminated the limitations period for childhood sexual assault occurring on or after 01/01/2024, CCP 340.1. For earlier incidents CCP 352 tolls during minority. Government Code 905(m) exempts these claims from the Government Claims Act presentation requirement, so the usual six month notice is not a filter. CCP 340.1 provides treble damages where there is a cover up.
- **And the state side, which arrives sooner.** WIC 209 requires a BSCC inspection every two years. Title 15 embeds PREA content at 1324(n), 1350.5, 1352(e) and (f), 1352.5, 1353(c), 1360(g), 1361(h), 1452 and 1453. Several of the thirteen conflicts are findable on the face of the policy manual without any incident at all.

What the department is already doing right

This matters for two reasons. It is true, and a brief that only lists failures gets discounted. Several of these are stronger than the standard requires.

- **OO 1352.5 on transgender and intersex youth is comprehensive**, and its monthly reassessment exceeds the twice yearly federal minimum. The categorical housing provision is the defect; the rest of the order is not.
- **OO 1354.5 on room confinement is the newest policy in the set by nearly three years and it shows.** It supplies the four hour review cycle, documented supervisor and manager authorization, and the prohibition on punitive confinement. Earlier revisions of this review scored the WIC 208.3 interaction as unaddressed and that was wrong.
- **Isolation is not available as a disciplinary sanction here.** OO 1390/1391 III omits it from the consequences list and OO 1354.5 I.C.1 prohibits confinement for punishment. The department has excluded it outright, which is a stronger position than complying with the isolation safeguards would be. This is worth saying out loud rather than leaving to inference.
- **OO 1453 is a coordinated response plan in all but name** for the serious band: first response, notification, evidence preservation, the forensic exam, the advocate right, the incident review. Earlier revisions scored 115.364 and 115.365 as gaps and that was wrong too. The problem with the order is scope, not quality.
- **The register's own citations to departmental orders have held up.** Each time an order has been produced and read in full, OO 1352 and then OO 1453, every section number the earlier review recorded was confirmed verbatim. That is worth knowing about the reliability of the rest of it.

What it takes to fix, in three waves

Fifteen recommended changes. They are not equivalent, and sequencing them wrongly wastes a revision cycle.

Wave 1. Amend now. Drafted and ready to review.

Changes 1 to 7. Redlines exist for all seven, with the amended text written out and an authority line for each. Three of the orders they amend have not been produced to this review, so for those the struck text is a reconstruction of what the register describes rather than a quotation, and every item says so on its face.

- 1. Rescind the S-8 single room mandate, OO 1352 II.M and III.I
- 2. Convert OO 1352.5 III.I to a presumptive, documented individualized outcome
- 3. Correct the mandated reporting standard, PREA Policy V.A.4 and OO 1453 I.A.9
- 4. Correct cross facility notification from 14 days to 72 hours, PREA Policy V.A.7
- 5. Rewrite the false allegations provision to a bad faith standard, PREA Policy XIV.A
- 6. Delete the S-4 victim to perpetrator inference, split the code, add PC 287 and 289
- 7. Adopt a single reconciled records retention schedule

Wave 2. Needs a decision from this room, not more analysis.

These are blocked on a designation, an allocation, or a document we have asked for and not received. No further review will unblock any of them.

- 8. Designate a PREA Coordinator and a facility compliance manager
- 9. Verify staffing against 1:8 and 1:16 and build the 115.313(a) staffing plan, blocked on rosters
- 15. Reduce hiring, contractor screening and staff reporting to writing, blocked on whether a child abuse registry check occurs
- Produce OO 1354 on separation. It is the highest value outstanding document: OO 1354.5 defines separation to include protective custody and then regulates only room confinement, so the placement 115.342(b) and 115.368 actually govern is the one with the fewest written safeguards.

Wave 3. Build. Real work, and it follows waves 1 and 2.

Drafting projects rather than amendments. Each needs an owner and a date.

- 10. Rebuild the PREA elements of OO 1361 on grievances: emergency track, external reporting, third party filing, private staff reporting, extension outer bound
- 11. Add the data analysis and corrective action loop, 115.387 and 115.388
- 12. Complete the incident review and broaden OO 1453, 115.364(b), 115.365, 115.386
- 13. Add retaliation monitoring, 115.367
- 14. Add notification duties: family, counsel, and outcome to the resident, 115.361(e) and 115.373
- A new department wide General Order on child abuse and neglect reporting, which is stage two of change 3
- Rewrite the PREA Policy to Subpart D order, so each provision maps to what an auditor scores
- Tier 1 all staff and supervisor lesson plans

What I need from you

These are the things that cannot move until somebody decides. Shortest first.

1. Name a PREA Coordinator and a facility compliance manager. Our own order already sends work to that position.

2. Decide who investigates youth on youth cases below the level of sexual assault. It is not written down anywhere.

3. Send WIC 625.6(d) to County Counsel. It decides whether the interrogation finding is a violation we are carrying or a good practice we should adopt anyway.

4. Give us the rosters and post assignments. They settle whether the staffing question is a real gap or a paperwork gap.

5. Produce six documents: the PREA Policy itself, OO 1352.5 on transgender and intersex youth, OO 1354 on separation, the resident handbook, the hiring procedure, and the contractor and volunteer screening procedure. Some findings close on handing the document over, with nothing else to fix. The PREA Policy matters most: three of the written amendments are aimed at it, and until we see it those three are written against our best reconstruction of what it says rather than its real words. OO 1352.5 is the cheapest of the six to act on, because one provision of it is the only thing we are asking to change.

6. Confirm whether the county has named Probation as an agency that receives mandated child abuse reports. One paragraph of a drafted amendment depends on it.

7. Put a name and a date against each of the 22 critical items. The register has the columns and they are empty on purpose, because they are yours to fill.

8. Approve rewriting the PREA Policy instead of another round of patches, and put the two year review on a calendar.

This brief is a policy and standards analysis prepared for internal use. It is not legal advice. Every statutory question in it, and the retention schedule in particular, routes to County Counsel before anything issues. Findings are stated against the documents produced to this review: where a practice is not in the documents, the finding says it does not appear in the documents reviewed, which is not the same as saying it is not done.

Generated document, drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.

Redlines

Recommended changes 1 to 7

Sacramento County Probation Department
Youth Detention Facility

Amendment language for the seven changes correctable without new policy. Drawn from gap register Revision 11.

This is not legal advice. It is proposed amendment language prepared for internal remediation planning. Statutory questions, and every item in a Before adoption block, route to County Counsel.

Contents

How to read a redline

Each change gives the provision to strike, the language to insert in its place, the conforming edits the amendment needs to be complete, and a Before adoption block. Read that block first.

Struck text is shaded and struck through. Where the source order has not been produced to this review, the struck text is a reconstruction of what the register describes, not a quotation, and each item says which it is. Inserted language is shaded and is written to be pasted into the order with its own numbering.

Items 1 through 7 require no new policy and can be completed on an amendment cycle. They are ordered as they appear in the master report.

Source documents

Produced and read directly:

- OO 1354.5 Room Confinement
- OO 1390/1391 Discipline and Discipline Process
- Internal Complaints (Administrative P&P Manual)
- Title 15, Minimum Standards for Juvenile Facilities, rev. 04/01/2014
- OO 1352 Classification, eff. 12/09/2019, rev. 02/27/2020 (produced and read in full in Revision 9)
- Title 15, Minimum Standards for Juvenile Facilities, eff. 01/01/2019
- OO 1453 Sexual Assault, eff. 04/25/2013, rev. 12/09/2019 (produced and read in full in Revision 10)

Not produced. Every provision cited in these documents traces to the register, which traces to the earlier review that read them. Confirm each section number and its wording against the PDF before any of this is circulated:

- OO 1352.5 Transgender and Intersex Youth
- PREA Policy and Procedure, Juvenile Institutions
- Internal Affairs Administrative Investigations

The seven changes

#	Change	Priority	Document
1	Rescind the S-8 single-room mandate	Critical	OO 1352 Classification (eff. 12/09/2019, rev. 02/27/2020), II.M, III.E, III.I
2	Convert the transgender and intersex single-room rule to a presumptive, documented outcome	Critical	OO 1352.5 Transgender and Intersex Youth (eff. 03/01/2019), III.I
3	Correct the mandated child abuse reporting standard and relocate the duty	Critical	PREA Policy and Procedure, Juvenile Institutions, V.A.4
4	Correct the cross-facility notification timeline	Critical	PREA Policy and Procedure, Juvenile Institutions, V.A.7

#	Change	Priority	Document
5	Rewrite the false allegations provision to a bad-faith standard	Critical	PREA Policy and Procedure, Juvenile Institutions, XIV.A
6	Delete the S-4 victim-to-perpetrator inference and split the code	High	OO 1352 Classification, II.F.2 and its note, II.G, II.H, III.E
7	Adopt a single reconciled records retention schedule	Critical	Internal Affairs Administrative Investigations, XI.C.1

1. Rescind the S-8 single-room mandate

Priority	Critical
Document	OO 1352 Classification (eff. 12/09/2019, rev. 02/27/2020), II.M, III.E, III.I
Authority	28 CFR 115.342(c) 15 CCR 1352(e), verified against the edition effective 04/01/2014 15 CCR 1324(k), verified against the edition effective 01/01/2019. Revision 5 cited this as 1324(h) from the 04/01/2014 edition; the 2019 rewrite renumbered it and broadened it 15 CCR 1352(f), verified against the edition effective 01/01/2019, a third and independent hook
Register rows	36, 75

The defect

OO 1352 II.M creates classification S-8 for any LGBTQI youth, and III.I requires single-room housing at all times for S-8. 15 CCR 1352(e) prohibits exactly that, and it has done so since at least April 1, 2014, which is verified against the produced text. S-8 was created December 9, 2019 and retained on the February 27, 2020 revision, five and a half years after the state rule was already in force. The provision also contradicts the Purpose and Scope paragraph of OO 1352 itself, PREA Policy III.E, and OO 1352.5 III.H, which took effect March 1, 2019 and states that staff shall not consider a youth's sexual orientation or gender identity as a reason to isolate or withhold program options. S-8 is materially broader than the OO 1352.5 III.I provision, because it sweeps in lesbian, gay, bisexual, and questioning youth for whom no anatomical privacy rationale exists at all. 15 CCR 1324(k), verified against the edition effective 01/01/2019, supplies a second and independent hook: the policy and procedure manual must itself bar classification and restrictive housing decisions made solely on these bases, so S-8 is a defect in the required contents of the manual as well as an operational violation.

Strike

OO 1352 II.M

~~Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth to further protect against victimization/discrimination within the unit setting. a. See the Transgender and Intersex Youth Policy for housing guidelines.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text.

OO 1352 III.I

~~Any youth classified S-8 will require a single room (no roommate) housing at all times.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text.

OO 1352 III.E

~~Every S-8 entry in the housing matrix.~~

Described in the register, not read in this review.

Insert

OO 1352 II.M, replacing the struck text

Prohibited bases for separation and single occupancy assignment

1. Staff shall not separate a youth from the general population, and shall not assign a youth to a single occupancy room, based solely on the youth's actual or perceived race, ethnic group identification, ancestry, national origin, color, religion, gender, sexual orientation, gender identity, gender expression, mental or physical disability, or HIV status.

2. Nothing in this section prohibits placing a youth in a single occupancy room at the youth's own specific request, or in accordance with the separation provisions of this order, OO 1354, and OO 1354.5. A request under this paragraph shall be documented in JPIP with the date, the substance of the request, and the staff member who received it.

3. Where a youth's sexual orientation, gender identity, or gender expression is known to staff, that information shall be used as one input to the individualized housing determination required by OO 1352.5 III.B and III.F. It shall not by itself determine a housing assignment, a program assignment, or a classification code.

4. No classification code shall be created or maintained whose assignment carries an automatic housing consequence on any basis listed in paragraph 1.

Conforming changes

- Renumber the balance of section II if II.M is struck rather than replaced. The replacement language above is written to occupy II.M so that no renumbering is needed.
- Remove S-8 from the JPIP classification code table and from any classification worksheet, intake form, or screen that offers it, so the code cannot be assigned after the order is amended.
- Identify every youth currently carrying S-8 and re-determine housing individually under OO 1352.5 III.B and III.F within a stated number of days, documenting each outcome. Without this step the order changes and the practice does not.
- Add the amended provision to the next classification officer training cycle and to the OO 1322 training record.
- Confirm that the Purpose and Scope paragraph of OO 1352, PREA Policy III.E, and OO 1352.5 III.H now read consistently with the amendment. All three already state the correct rule.

Why

This is the strongest municipal liability exhibit in the packet and the clearest breach of a mandatory Title 15 duty. Government Code 815.6 attaches liability to the failure to discharge a mandatory duty imposed by enactment, and a regulation is an enactment under Government Code 810.6. The correction is a deletion and a four-paragraph insert, and its value grows the earlier it is dated: an amendment adopted before an incident is a compliance record, and one adopted after is an admission with a date on it.

Before adoption

- VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. The section numbers II.M and III.I and the struck text above are the order's own words, read from

the produced PDF, not a reconstruction. This redline may now circulate as a true redline.

- The order's Purpose and Scope paragraph already states the correct rule almost verbatim from 15 CCR 1352(e), including the carve-out for a single occupancy room "at the youth's specific request or in accordance with regulations regarding separation." The amendment below conforms II.M and III.I to the order's own Purpose paragraph. Say that to the policy shop: it is a consistency fix, not a new policy.
- II.M.1.a already defers housing to the Transgender and Intersex Youth Policy. III.I.1 then forecloses it. Deleting III.I.1 restores the deferral the order already contains.
- III.E.1.a imposes the identical mandate on S-4 High and is the only other provision in the order that does. Do not amend III.E.1.a here. It is a different question and it is not defective in the same way, but note that III.D.8, the deviation rule, is attached to the S-3 matrix and reaches neither mandate, so neither currently has a written override path.

2. Convert the transgender and intersex single-room rule to a presumptive, documented outcome

Priority	Critical
Document	OO 1352.5 Transgender and Intersex Youth (eff. 03/01/2019), III.I
Authority	28 CFR 115.342(c)-(g) 15 CCR 1352(e), verified against the edition effective 04/01/2014 and confirmed unchanged in the edition effective 01/01/2019 15 CCR 1352.5(c), verified in Revision 6 against the edition effective 01/01/2019, which is the operative edition
Register rows	37, 75

The defect

OO 1352.5 is otherwise a strong order. It supplies individualized assessment at admission, no automatic housing by external anatomy, documented reasons for any placement not matching gender identity, consideration of the youth's own preferences and provider recommendations, monthly reassessment which exceeds the twice-yearly federal minimum, private showers for all youth, and preservation of program participation. III.I undoes part of it by providing that all transgender and intersex youth shall be provided a single room. That is a categorical housing outcome assigned by status, which is what 115.342(c) and 15 CCR 1352(e) prohibit, and it contradicts III.B, III.F, and III.H within the same order. This version is more defensible than the S-8 mandate in OO 1352, because it is limited to transgender and intersex youth, states a privacy and safety rationale, and preserves program access. Categorical is still categorical.

Strike

OO 1352.5 III.I

~~All transgender and intersex youth shall be provided a single room.~~

Described in the register, not read in this review.

Insert

OO 1352.5 III.I, replacing the struck text

Room assignment

1. The room assignment of a transgender or intersex youth shall be determined individually under III.B and III.F. It shall not be determined by the youth's status as transgender or intersex.

2. Single occupancy housing is the presumptive outcome of that determination, and the presumption is overcome where the individualized determination supports shared housing consistent with the youth's own perception of where the youth will be most secure. The determination shall be revisited at each reassessment required by III.G.

3. Whether the determination results in single occupancy or shared housing, the reasons shall be documented in the JPIP classification comments with the date and justification required by III.F, including the youth's stated preference and, where the assignment departs from that preference,

the reason it does.

4. A single occupancy assignment made under this section shall not reduce the youth's access to programming, education, recreation, visiting, or any other activity, as III.K requires.

5. Nothing in this section limits a youth's right to request single occupancy housing. A request shall be documented under III.F and honored where operationally feasible.

Conforming changes

- Add a line to the JPIP classification comment prompt so the documentation required by paragraph 3 is captured at the point of decision rather than reconstructed later.
- Confirm the cross-reference in OO 1352 after change 1 is adopted, so the two orders point at the same individualized determination.
- Cross-reference OO 1360 IV to OO 1352.5 IV.A.3.b on searches, which is a separate open recommendation and is cheapest to adopt in the same amendment cycle.

Why

Preserves the protective intent that produced III.I while removing the categorical defect, and resolves the internal contradiction with III.B, III.F, and III.H of the same order. The presumption does the operational work that the mandate was doing, and the documentation requirement is what makes it a determination rather than a rule in different words. State the presumption plainly, and audit the JPIP entries: a presumption applied without a real determination is the same defect wearing better clothes.

Before adoption

- OO 1352.5 has never been produced to this review. Confirm the III.I numbering and wording against the PDF.
- The 15 CCR 1352.5 citation is verified. It was carried as unconfirmed through Revision 5 because it is absent from the 04/01/2014 edition of Title 15, and Revision 6 confirmed it against the edition effective 01/01/2019, where it runs (a) to (e). The edition effective 01/01/2019 is the operative one. The January 2023 revision is a pending proposal and must not be relied on.

3. Correct the mandated child abuse reporting standard and relocate the duty

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, V.A.4 OO 1453 Sexual Assault (rev. 12/09/2019), I.A.9 New department-wide General Order on child abuse and neglect reporting
Authority	28 CFR 115.361(b) Penal Code 11166(a), 11165.9, 11166(i)(1), 11166(j), 11172(a) Penal Code 11166(c), penalties
Register rows	48, 77

The defect

The twenty-four hour Child Protective Services timeline appears in two departmental documents. PREA Policy V.A.4 states it, and OO 1453 I.A.9 restates it: all incidents of sexual assault shall be reported to Child Protective Services verbally within twenty-four hours, with the written report within thirty-six hours. Penal Code 11166(a) requires the telephone report immediately or as soon as is practicably possible. OO 1453 was last revised December 9, 2019, six years after the PREA policy, so the department restated the error rather than catching it on review. The Code of Conduct at VII.A.1 states the standard correctly, so three departmental documents address the same duty and two of them are wrong. A policy that tells a mandated reporter a report is timely at twenty-three hours is telling that employee to commit a misdemeanor, and the employee, not the department, carries that exposure.

Strike

OO 1453 Sexual Assault, I.A.9

~~All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident.~~

VERIFIED in Revision 10 against OO 1453 as produced, eff. 04/25/2013, rev. 12/09/2019. This is the order's actual text, including the typographical error in "written reported", which is the order's and not a transcription slip.

PREA Policy and Procedure, Juvenile Institutions, V.A.4

~~All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours, with a written report submitted within 36 hours.~~

Described in the register, not read in this review. The PREA Policy has still never been produced. Replace this with the policy's real words before circulating.

Insert

Stage one, the interim in-place correction. Adopt in PREA Policy V.A.4 and OO 1453 I.A.9 now, without waiting for the General Order.

Mandated reporting of child abuse and neglect

1. An employee who, in their professional capacity or within the scope of their employment, has knowledge of or observes a resident whom the employee knows or reasonably suspects has been the victim of child abuse or neglect shall make a report to an agency specified in Penal Code section 11165.9 immediately, or as soon as is practicably possible, by telephone, and shall prepare and send, fax, or electronically transmit a written follow-up report on Department of Justice form SS 8572 within thirty-six hours of receiving the information concerning the incident.

2. The duty imposed by paragraph 1 is individual and may not be delegated. Notifying a supervisor, the Duty Supervisor, Internal Affairs, or any departmental office does not satisfy the duty and does not delay it. Internal notification requirements in this policy are in addition to the mandated report, not a substitute for it and not a step before it.

3. No supervisor or administrator shall impede or inhibit a report, and no employee shall be subject to any sanction for making a report.

4. Where the department receives a report of suspected child abuse or neglect in its capacity as a county probation department, it shall itself report the information to the law enforcement agency having jurisdiction over the case, to the agency responsible for investigating the matter under Welfare and Institutions Code section 300, and to the district attorney's office, by telephone, fax, or electronic transmission immediately or as soon as practicably possible, with the written report within thirty-six hours.

Stage two, once the General Order issues. Replaces stage one in PREA Policy V.A.4 and OO 1453 I.A.9.

Cross-reference

Any incident of suspected child abuse or neglect, including any sexual abuse or sexual assault of a resident, shall be reported in accordance with the General Order on Mandatory Reporting of Child Abuse and Neglect. Nothing in this policy alters, delays, or adds a condition to the duty imposed by Penal Code section 11166(a).

Conforming changes

- Do not delete the incident reporting and Duty Supervisor notification duties in either document. Paragraph 2 of stage one is drafted so the internal duties survive alongside the mandated report rather than competing with it.
- Conform the Code of Conduct VII.A.1 to the same cross-reference once the General Order issues. It is currently correct, so it is a consistency edit, not a correction.
- Add the reporting standard to the Tier 1 training outline and to the annual refresher, and keep a signed acknowledgment on file. Confirm with County Counsel whether Penal Code 11166.5 applies to departmental employees.
- Add a cross-reference for residents aged eighteen and older, who fall outside CANRA, to the existing General Order on Mandatory Reporting of Dependent Adult and Elder Abuse.
- CORRECT THE SCOPE AS WELL AS THE TIMELINE, new in Revision 10 from reading the whole of OO 1453. Every operative duty in that order is keyed to "sexual assault": the Purpose paragraph's staff reporting duty, I.A.9's CPS report, and I.A.15's incident review. Nothing in the three pages reaches sexual harassment, exposure, or touching not characterised as assault. But PC 11165.1(b)(4) makes the intentional touching of a child's intimate parts for sexual arousal

reportable, and (b)(5) makes masturbation in a child's presence reportable on the first occurrence. So the order as written misses reportable conduct. The insert below is drafted to the CANRA trigger rather than to the word "assault", which fixes both defects in one amendment.

- While I.A.9 is open, consider amending I.A.6 in the same cycle. It directs a Miranda warning before questioning a suspect and says nothing about the WIC 625.6 consultation with counsel, which has been mandatory and unwaivable for youth 17 and under since 01/01/2021. That is register row 91 and conflict 13, and it is a separate amendment rather than part of this one, but it is in the same order and the same revision cycle.

Why

This ends the practice of restating a legal standard in multiple documents, which is how the error propagated and how it survived a 2019 revision. The relocation matters as much as the correction: a single General Order is one place to amend when the Penal Code changes, and one place for an auditor or a plaintiff to look. Stage one exists because the General Order will take an approval cycle that the current text cannot safely wait through.

Before adoption

- VERIFIED in Revision 10 against OO 1453 as produced, eff. 04/25/2013, rev. 12/09/2019. I.A.9 and its section number are the order's own words and this half of the redline may now circulate as a true redline.
- The PREA Policy has still never been produced. V.A.4 above is a reconstruction of what the register describes, not a quotation, and the section number traces to the register. Confirm it against the policy before circulating.
- Paragraph 4 assumes the department receives mandated reports in its capacity as a county probation department. Penal Code 11165.9 makes that turn on whether the county has designated the probation department to receive them. That designation is still unconfirmed. Confirm before adopting it.
- Full contents for the General Order are in the master report at Part 4.1. Model its structure on the existing Dependent Adult and Elder Abuse General Order, which is the department's own working template for this kind of duty.

4. Correct the cross-facility notification timeline

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, V.A.7
Authority	28 CFR 115.363(a)-(d)
Register rows	52, 47

The defect

The policy sets a fourteen-day window for the Chief Deputy or Assistant Chief Deputy to notify the head of the facility where the abuse allegedly occurred. The federal standard is seventy-two hours. The fourteen-day figure appears to have been carried over from the attorney notification timeline at 115.361(e)(3). This is a straight timeline error and the shortest correction in the set.

Strike

PREA Policy V.A.7

~~Within 14 days of receiving the allegation, the Chief Deputy or Assistant Chief Deputy shall notify the head of the facility where the alleged abuse occurred.~~

Described in the register, not read in this review.

Insert

PREA Policy V.A.7, replacing the struck text

Allegations of abuse at another facility

1. Upon receiving an allegation that a resident was sexually abused while confined at another facility, the Chief Deputy or Assistant Chief Deputy shall notify the head of that facility, or the appropriate office of the agency operating it, and the appropriate investigative agency, as soon as possible and no later than seventy-two hours after receiving the allegation.

2. The notification shall be documented in writing, recording the date and time the allegation was received, the date and time of the notification, the person notified, and the method used. The documentation shall be retained under the department's records retention schedule for sexual abuse records.

3. Where the department receives such a notification from another agency, the facility administrator shall ensure the allegation is referred for investigation in accordance with this policy, and shall document the referral.

Conforming changes

- Check every other timeline in PREA Policy section V against the standard it implements, since the fourteen-day figure looks like a transposition from the attorney notification rule and a transposition rarely happens once.
- The reporting duty at 115.361(a) is a separate open item that lives in the same section and should be amended in the same cycle: sexual harassment as a separately reportable category,

reports of retaliation, and reports of staff neglect or violation of responsibilities contributing to an incident.

Why

28 CFR 115.363(b). One sentence, no policy judgment required, and it removes a provision that on its face directs staff to sit on an allegation for up to eleven days longer than the standard allows. Paragraph 3 adds the receiving side of the same standard, which the current policy does not address at all and which costs nothing to include in the same amendment.

Before adoption

- The PREA Policy has not been produced to this review. Confirm the V.A.7 numbering and wording against the PDF.
- The reference to a records retention schedule in paragraph 2 assumes change 7 is adopted. If change 7 is deferred, cite the existing schedule instead, and note that the existing schedule is the subject of change 7.

5. Rewrite the false allegations provision to a bad-faith standard

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, XIV.A
Authority	28 CFR 115.378(f), good-faith reporting protection, verified 28 CFR 115.352(g), discipline only on a demonstrated bad-faith showing 15 CCR 1391(f), due process for major rule violations as a class, verified against the edition effective 01/01/2019. Revision 5 cited this as 1391(e) from the 04/01/2014 edition; the 2019 rewrite renumbered it, and 1391(e) is now minor rule violations
Register rows	64, 42

The defect

PREA Policy XIV.A permits discipline where an investigation determines allegations were false. 115.378(f) protects a good-faith report based on a reasonable belief even where the investigation does not substantiate it, and 115.352(g) permits discipline only where the agency demonstrates the report was made in bad faith. Unsubstantiated is not the same finding as false, and the current provision collapses the two. As written it chills reporting, and it will be read to a jury that way in any case where the department argues it had no notice. OO 1390/1391 contains no false reporting provision, so it neither cures nor compounds the defect, and neither its minor nor its major rule violation list includes false reporting or lying. That is worth preserving in the rewrite.

Strike

PREA Policy XIV.A

~~A resident may be subject to disciplinary action where an investigation determines that the allegation was false.~~

Described in the register, not read in this review.

Insert

PREA Policy XIV.A, replacing the struck text

Reports made in good faith

1. A resident or employee who reports sexual abuse or sexual harassment in good faith, based on a reasonable belief that the conduct described occurred, has not made a false report and has not engaged in lying, even where the investigation does not substantiate the allegation. A finding that an allegation is unsubstantiated is not a finding that the report was false.

2. A resident may be disciplined in connection with a report of sexual abuse or sexual harassment only where the department demonstrates that the resident made the report in bad faith. The demonstration shall be made through the disciplinary process in OO 1390/1391, and the basis for the bad-faith finding shall be stated in the written finding required by that process.

3. No employee shall be disciplined or subjected to any adverse action for reporting sexual abuse or sexual harassment in good faith, and no employee shall be disciplined for a report that is not substantiated.

4. Neither the minor nor the major rule violation lists in OO 1390/1391 includes false reporting or lying, and nothing in this section creates such a violation.

Conforming changes

- Add the companion provision from the same standard in the same amendment: a resident may be disciplined for sexual contact with a staff member only upon a finding that the staff member did not consent to the contact. The subsection lettering for this element is not asserted here, so state it by content until the CFR is checked.
- Add the same bad-faith rule to OO 1361 so a youth who files a sexual abuse grievance is protected at the point of filing as well as at the point of discipline. This is one of the five open grievance items and it is the cheapest of them.
- Where the department wants a route for a demonstrably fabricated report, paragraph 2 supplies it. Do not add a separate false reporting rule violation to OO 1390/1391; that would recreate the defect in a second document.

Why

28 CFR 115.378(f) and 115.352(g). Beyond compliance, the current provision damages the department's own defense. Every failure-to-protect case turns on notice, and a policy that punishes unsubstantiated reports is the plaintiff's explanation for why the department has so few of them. The rewrite costs nothing operationally: paragraph 2 preserves the ability to discipline the fabricated report, and puts the burden where the standard puts it.

Before adoption

- The PREA Policy has not been produced to this review. Confirm the XIV.A numbering and wording against the PDF.
- Only 115.378(f) is verified. The subsection lettering inside 115.378 beyond (f) is not asserted, because network egress in the drafting environment is restricted and eCFR could not be reached. Check the lettering against the CFR before the authority line goes into an adopted order. This is open question 12.

6. Delete the S-4 victim-to-perpetrator inference and split the code

Priority	High
Document	OO 1352 Classification, II.F.2 and its note, II.G, II.H, III.E
Authority	28 CFR 115.341(c) 28 CFR 115.342 15 CCR 1350.5(a), confirmed against the edition effective 01/01/2019 in Revision 6 Penal Code 287, renumbered from 288a by SB 1494 effective 01/01/2019
Register rows	80, 78, 32

The defect

Two problems in the S-4 classification. First, the note at II.F.2 states that a youth with a history of being a victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies. That instructs staff to treat a youth's own sexual victimization as a predictor of sexual abusiveness. The Macdonald triad on which the molest, arson, and animal cruelty grouping rests has not held up, and the inference runs against 115.341(c), which lists prior victimization and prior abusiveness as separate factors serving different purposes. The same inference also appears as a lettered criterion at II.F.2.d, "History of victimization related to sexual abuse or a sexual offense," so striking the note alone leaves the defect in force. The order then contradicts itself on the same fact: II.H.3 makes being the victim of a CPS referral relative to sexual abuse a criterion for S-4 Low, which the III.E.2 housing matrix treats protectively. Second, S-4 as a code mixes populations: S-4 High captures youth with sex offense adjudications, while S-4 Low captures both youth who act out sexually and youth who have been victims of sexual abuse or are susceptible to victimization. The housing matrix at III.E keeps those populations apart in practice, so the operational outcome is sound. The defect is in the classification logic and its documentation, and it will not survive an auditor tracing how victimization risk and abusiveness risk are separately assessed and separately acted on.

Strike

OO 1352 II.F.2, the note

~~Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text, bolded in the original.

OO 1352 II.F.2.d

~~d. History of victimization related to sexual abuse or a sexual offense;~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. MISSED BY THIS REDLINE AS FIRST DRAFTED, added in Revision 9.

OO 1352 II.H

~~II.H.2, "Sexually inappropriate acting out in front of other youth or staff (i.e., masturbation in front of others, exposing genitals, or continued sexual comments for the purpose of arousal)," which places~~

~~perpetrator conduct in the same S-4 Low tier as II.H.3 and II.H.4, both of which are victimization criteria.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020.

Insert

OO 1352 II.F.2, replacing the struck note

Use of victimization history

A youth's history of sexual victimization shall be assessed and recorded as a risk of victimization under II.H. It shall not be treated as an indicator that the youth is likely to be sexually abusive toward others, and it shall not be used to assign a code under II.G.

OO 1352 II.G, risk of sexual abusiveness

S-4A, risk of being sexually abusive toward other youth

1. Assign S-4A where the youth has a sustained petition, conviction, or documented finding for an offense under Penal Code sections 261, 261.5, 286, 287, 288, 288.5, 289, or 289.6, or under any successor or equivalent statute.

2. Assign S-4A where the youth has documented sexually aggressive or sexually coercive conduct toward another person while in custody, in placement, or in the community, whether or not it resulted in a petition.

3. The basis for an S-4A assignment shall be recorded in JPIP with the source of the information and the date.

OO 1352 II.H, risk of sexual victimization

S-4B, risk of being sexually abused by other youth

1. Assign S-4B where screening under OO 1350.5 identifies the youth as at risk of sexual victimization, including prior sexual victimization whether or not it occurred in custody.

2. An S-4A assignment and an S-4B assignment are independent. A youth may carry both, one, or neither, and each shall be assessed, coded, and documented separately.

3. Information obtained under this section shall be used only to inform housing, bed, education, and program assignments, and to determine appropriate services and supervision. It shall not be used to discipline the youth or to justify a more restrictive placement than the individualized determination supports.

Conforming changes

- Rebuild the III.E housing matrix on the S-4A and S-4B codes. The matrix already keeps these populations apart, so this is a relabeling of a working rule, not a change to it.
- Add Penal Code 287 AND 289 to the S-4 High enumerated offences. VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. The complete enumeration is II.G.1 ("a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-

divisions)") plus II.G.3 (rape, 261 PC, all sub-divisions). PC 287 is omitted as recorded, and so is PC 289, sexual penetration, which was never flagged and is comparably serious. Also absent: 243.4, 264.1, 285 and 647.6. The insert at II.G.1 above already carries all of them, and the successor-statute catch-all prevents the next renumbering from reopening the same gap.

- Correct PREA Policy I.I.1, which cites Penal Code section 288a (Oral Copulation). 288a was renumbered to 287 by SB 1494 effective January 1, 2019. Same amendment cycle, different document.
- Delete the reference in OO 1352 II.C.3 to a pending commitment to the Division of Juvenile Justice. DJJ closed June 30, 2023 under SB 823. VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. IV.A carries a second DJJ reference, as the worked example of a legal status change requiring classification review. Delete both.
- Update the JPIP code table, the classification worksheet, and classification officer training to the split codes, and map existing S-4 assignments onto S-4A, S-4B, or both.

Why

115.341(c) treats prior victimization and prior abusiveness as separate factors driving different responses, and 115.342 requires the results be used to keep residents safe rather than to restrict them. The housing matrix already produces the right operational answer; the defect is that the department cannot show its work. The note at II.F.2 is the sharper problem: it is one sentence, it is indefensible on the current science, and in litigation it is a gift to a plaintiff's expert. It should not survive another revision cycle.

Before adoption

- VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. II.F.2, II.G, II.H and III.E are confirmed as cited and the struck text is the order's own words. This redline may now circulate as a true redline.
- The S-4 High and S-4 Low split the register describes is confirmed and is sounder than its label suggests, so the insert below is a relabeling and separation of an existing structure rather than the invention of a new one. Say that to the policy shop.
- OO 1352 never references OO 1350.5 anywhere in its twelve pages. The insert at II.H.1 creates that cross-reference for the first time. Confirm OO 1350.5's section numbering before adopting it.
- **Penal Code 261.5, 288.5 and 289.6 in the S-4A offence list are the drafter's judgment**, not sections the order enumerates and not sections this review has verified as the right additions. Only 287 and 289 are confirmed omissions, recorded against the order's own enumeration at II.G.1 and II.G.3. Confirm all three with County Counsel, or strike them and keep the successor-statute catch-all, which is what stops the next renumbering reopening the gap that 287 left. **The same caveat appears on the tracked changes copy of OO 1352, and the two say the same thing on purpose.**

7. Adopt a single reconciled records retention schedule

Priority	Critical
Document	Internal Affairs Administrative Investigations, XI.C.1 PREA Policy and Procedure, Juvenile Institutions, XVIII.B Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), retention provision
Authority	28 CFR 115.371(j) 28 CFR 115.389(c), ten-year data retention Code of Civil Procedure 340.1 as amended by AB 452 Code of Civil Procedure 352; Government Code 905(m)
Register rows	59, 72

The defect

Three different retention rules govern the same records, and a fourth document points at one of them without stating a period. Internal Affairs XI.C.1 retains records of citizen complaints, formal investigations, and dispositions for at least five years. PREA Policy XVIII.B retains all case records associated with claims of sexual abuse for at least ten years. 115.371(j) requires investigation reports to be retained as long as the alleged abuser is incarcerated or employed by the agency, plus five years, which for a long-tenured employee is far longer than either. Internal Complaints states that all discretionary and non-discretionary investigative documentation and evidence shall be retained by Internal Affairs, with no period, so the reconciled schedule has to be reflected in four documents rather than three. A department that destroys a sexual abuse investigation file at five years under the Internal Affairs schedule violates its own PREA policy and the federal standard in the same act.

Strike

Internal Affairs XI.C.1

~~The five-year period, as applied to records within the scope of the schedule below. The five-year rule may stand for other citizen complaint records.~~

Described in the register, not read in this review.

PREA Policy XVIII.B

~~The ten-year period stated as the retention rule for case records associated with claims of sexual abuse, which is replaced by the cross-reference below.~~

Described in the register, not read in this review.

Insert

New provision, adopted in identical terms in all four documents

Records retention, sexual abuse and sexual harassment

1. Scope. This section governs every record created in connection with an allegation, investigation, or incident of sexual abuse or sexual harassment involving a resident, including the grievance or intake document, the Personnel Complaint Intake Form, incident reports, investigative reports and case

files, witness statements, video and audio recordings, photographs, records of medical and mental health referrals made in response, and the disciplinary or personnel outcome.

2. Retention. A record within paragraph 1 shall be retained for the longest of the following: ten years from the date the case is closed; for records of an investigation into alleged staff conduct, as long as the alleged abuser remains incarcerated or employed by the department, plus five years; ten years after the resident reaches eighteen years of age, where the resident was under eighteen at the time of the alleged conduct; and any longer period required by law, by a litigation hold, or by the records retention schedule adopted by the County.

3. Conduct occurring on or after January 1, 2024. Code of Civil Procedure section 340.1, as amended by Assembly Bill 452, eliminated the limitations period for a claim of childhood sexual assault occurring on or after that date. No record within paragraph 1 concerning conduct on or after January 1, 2024 shall be destroyed until County Counsel has determined the applicable schedule in light of that section.

4. Hold. No record within paragraph 1 shall be destroyed while any claim, investigation, audit, inspection, or litigation involving the incident is pending or reasonably anticipated.

5. Authorization and log. Destruction of a record within paragraph 1 requires written authorization from the Internal Affairs Manager. Each destruction shall be entered in a log identifying the record, the authority relied on, the date, and the person authorizing it.

6. Aggregated data. Data collected under the department's PREA data provisions shall be securely retained for at least ten years, with personal identifiers removed before any publication.

Conforming changes

- Adopt paragraph 1 through 5 verbatim in all four documents rather than paraphrasing in each. Paraphrase is what produced the three-way conflict.
- Where a document already states a period, replace the period with the cross-reference so there is exactly one schedule in force.
- Confirm the retention rule reaches video. Video is the record most often governed by a separate and much shorter system retention default, and it is the record most likely to decide a case.
- Adopt the schedule with County Counsel, not by policy revision alone. The Government Claims Act presentation requirement does not apply to these claims under Government Code 905(m), so the department will not see a claim before suit.
- The Institutional Policy on Documentation, Confidentiality and Maintenance of Records and the Institutional Policy on Video Recording and Photograph System are both outstanding. Request them before the schedule is finalized, since either may already carry a conflicting period.

Why

AB 452 eliminated the limitations period for childhood sexual assault occurring on or after January 1, 2024, and Code of Civil Procedure 352 tolls a minor's limitations period for earlier incidents. The practical exposure is a file destroyed years before suit is filed. Destruction under the current five-year Internal Affairs schedule risks an adverse inference instruction and the loss of any ability to defend on the merits, and CCP 340.1 provides treble damages where a cover-up is shown. This is the one change

in the set the department cannot fully solve on its own: paragraph 3 is drafted as a moratorium precisely because no fixed period covers a claim with no limitations period.

Before adoption

- Neither the Internal Affairs policy nor the PREA Policy has been produced to this review. Confirm XI.C.1 and XVIII.B against the PDFs.
- Internal Complaints has been produced and read, so its retention sentence is the one item in this change that is grounded in the source document.
- Paragraph 2 and paragraph 3 are drafting proposals, not legal advice. Route both to County Counsel before adoption, together with the question of whether the County's own records retention schedule already binds these records to a shorter period.
- CORRECTED IN REVISION 10. This change previously listed "OO 1453 Sexual Assault, records provisions" among its targets. OO 1453 was produced and read in full in Revision 10 and IT HAS NO RECORDS RETENTION PROVISION. Three pages, fifteen numbered items, none of which sets a retention period. I.A.11.c places evidence in the evidence locker at Intake and Booking, which is chain of custody rather than retention, and I.A.14 forwards investigative reports to the Supervising District Attorney and the Sheriff's Sexual Assaults Unit. The target has been removed. The practical effect narrows this change in the department's favour: the retention conflict is between Internal Affairs XI.C.1 and PREA Policy XVIII.B, with the Internal Complaints provision alongside them, and OO 1453 contributes nothing to reconcile.

PREA versus Policy

A standard-by-standard crosswalk

Sacramento County Probation Department
Youth Detention Facility

Gap register Revision 11. 91 requirements assessed against 17 departmental policies.

This is not legal advice. It is a policy-to-standard comparison prepared for internal remediation planning. Findings state what the documents reviewed contain. Where a requirement is recorded as not addressed, that means no provision appeared in the 17 documents reviewed, not that the practice does not occur. Statutory questions route to County Counsel.

Contents

1. What this document does

The gap register records, for each requirement, what the department has. This document sets the requirement and the departmental provision next to each other so the divergence is visible on its face, and then inverts the view so each of the 17 reviewed policies can be worked one at a time.

Three divergence classes are used throughout.

Conflict. The policy states a rule, and the rule is wrong. This is the worst class, because staff following policy are out of compliance by doing what they were told. Thirteen requirements sit here, and they are set out in full at part 3.

Not Addressed. The documents reviewed contain no provision on the point. Twenty-one requirements sit here. Ten of them cite no departmental document at all, so they cannot be closed by amendment: they need drafting or an administrative decision.

Partial. A provision exists and does part of the work. Forty-one requirements sit here, and this is where most of the remediation labor is. A partial finding is usually cheaper to close than it looks, because the drafting anchor already exists.

Part 4 is the crosswalk in the order an auditor scores. Part 5 is the same findings reorganized by departmental document, which is the order the drafting actually gets done in.

2. Where policy and standard diverge

By status

Status	Count	Share
Conflict	13	14%
Not Addressed	21	23%
Partial	41	45%
Not Evidenced	2	2%
Addressed	14	15%
Total	**91**	**100%**

By priority

Priority	Count
Critical	22
High	39
Medium	16
Low	14

By area

Read the Conflict and Not Addressed columns first. Those are the two classes that cannot be argued away as a documentation gap.

Area	All	Conflict	Not Addressed	Partial	Not Evidenced	Addressed
Prevention Planning	16	**2**	**7**	6		1
Responsive Planning	4			4		
Training and Education	11		**3**	3		5
Screening	8	**3**	**1**	2		2
Reporting	10		**2**	6	1	1
Official Response	11	**2**	**1**	7		1
Investigations	5	**1**		3		1
Discipline	3	**1**		2		

Area	All	Conflict	Not Addressed	Partial	Not Evidenced	Addressed
Medical and Mental Health	4			4		
Data Collection and Review	4		**1**	2		1
Audit	1		**1**			
California-Specific	11	**3**	**3**	2	1	2

3. Class A divergence: policy states the wrong rule

Thirteen requirements where a departmental document affirmatively states a rule that contradicts federal or California law, or contradicts another departmental document. These come first because they are the only class where compliant staff behavior produces non-compliance. Each entry names the register row it traces to.

Conflict 1. Categorical LGBTQI housing (classification S-8)

Register row 36

The law requires	The policy says
28 CFR 115.342(c). LGBTI residents shall not be placed in particular housing, bed, or other assignments solely on the basis of that identification or status. 15 CCR 1352(e), verified against the edition effective 04/01/2014, says the same: staff shall not separate a youth from the general population or assign a single occupancy room based solely on sexual orientation, gender identity, or gender expression. 15 CCR 1324(k), verified against the edition effective 01/01/2019, separately requires the policy manual to bar restrictive housing or classification decisions made solely on those bases.	OO 1352 II.M.1 creates classification S-8 for "Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth," and III.I.1 provides that "Any youth classified S-8 will require a single room (no roommate) housing at all times." Both quoted verbatim from the order, produced and read in full in Revision 9.

Why it matters. Also contradicts OO 1352's own Purpose and Scope paragraph, PREA Policy III.E, and OO 1352.5 III.H. The chronology is worse than earlier revisions recorded. 15 CCR 1352(e) was not added by the 2019 Title 15 rewrite; it is in the edition effective 04/01/2014. S-8 was created 12/09/2019 and retained on the 02/27/2020 revision, five and a half years after the state rule was already in force. 1352(e) also states the lawful alternative on its face: individualized placement, or a single room at the youth's specific request. The 1324(k) route is the cleaner BSCC inspection finding, because it does not depend on whether PREA binds a county facility. Three additions from reading the order in Revision 9. First, a fifth internal contradiction: II.M.1.a defers housing to the Transgender and Intersex Youth Policy and III.I.1 then forecloses it, so the same order defers the decision and decides it. Second, a correction that removes a theory: a 15 CCR 1352(f) hook recorded in Revision 6, reasoned on the S-series being a sexual-risk taxonomy, fails and is withdrawn. The S-series is a general security taxonomy, and II.M.1 frames S-8 as protection against victimization and discrimination, which is the vulnerability framing 1350.5 requires rather than the abusiveness framing 1352(f) forbids. Third, a stronger replacement grounded in the order's own text: III.I.1 and III.E.1.a are word for word identical and are the only two provisions in the entire order imposing a single room at all times. III.E.1.a governs S-4 High, the documented sex offence category, which II.F.1 defines by the youth's potential for sexually acting out against others. The order therefore gives LGBTQI youth the identical housing restriction it reserves for adjudicated sex offenders, and gives it to nobody else. Note also that III.D.8, the deviation rule, is attached to the S-3 matrix and reaches neither mandate, so neither has a written override path.

Remediation. Recommended change 1: rescind the S-8 single-room mandate.

Conflict 2. Categorical single-room housing for transgender and intersex youth

Register row 37

The law requires	The policy says
28 CFR 115.342(d) to (g); 15 CCR 1352.5(a) to (e). Housing and program assignments are decided case by case.	OO 1352.5 III.I gives all transgender and intersex youth a single room.

Why it matters. The same categorical defect as conflict 1 but more defensible: there is a privacy rationale and program access is preserved at III.K. It still contradicts III.B, III.F, and III.H of the same order.

Remediation. Recommended change 2: convert to a presumptive, documented, individualized outcome.

Conflict 3. Child abuse reporting timeline

Register row 48

The law requires	The policy says
PC 11166(a). Telephone report immediately or as soon as practicably possible, written report within 36 hours on DOJ form SS 8572.	PREA Policy V.A.4 and OO 1453 I.A.9 both state that sexual assault is reported to Child Protective Services verbally within 24 hours. OO 1453 was produced and read in full in Revision 10, so I.A.9 is now quotable: 'All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident.' The 36 hour written figure is correct. The 24 hour verbal figure is not.

Why it matters. The error appears in two documents, and OO 1453 restated it on a 12/2019 revision. Code of Conduct VII.A.1 states the rule correctly, so the department is not uniform against itself. Revision 10 adds a second defect in the same provision, from reading the whole order: every operative duty in OO 1453 is keyed to 'sexual assault', so on the face of the order the CPS duty does not reach touching, exposure or masturbation even where PC 11165.1(b)(4) and (b)(5) require a report. Correct the timeline and the scope in the same amendment.

Remediation. Recommended change 3: correct the standard and relocate it to a new department-wide General Order.

Conflict 4. Cross-facility notification window

Register row 52

The law requires	The policy says
28 CFR 115.363(b). Notify the head of the facility where the abuse allegedly occurred within 72	PREA Policy V.A.7 allows 14 days.

The law requires	The policy says
hours.	

Why it matters. A straight timeline error. The 14-day figure appears to have been carried over from the attorney notification timeline in 115.361(e)(3).

Remediation. Recommended change 4: correct 14 days to 72 hours.

Conflict 5. Discipline for allegations found false

Register row 64

The law requires	The policy says
28 CFR 115.378(f) protects a good-faith report based on a reasonable belief even where the investigation does not substantiate it. 115.352(g) permits discipline only on a showing of bad faith.	PREA Policy XIV.A permits discipline where an investigation determines the allegations were false.

Why it matters. A false-allegations rule stated at this breadth suppresses reporting, which is the behavior the standard is written to protect. Separately, and verified against the edition effective 01/01/2019, 15 CCR 1391(f) attaches the due process elements to major rule violations as a class, while OO 1390/1391 IV.A attaches the hearing only where the recommended discipline is Program Separation. That narrowing is a confirmed Title 15 defect in its own right, actionable on BSCC inspection independent of PREA.

Remediation. Recommended change 5: rewrite to a bad-faith standard.

Conflict 6. Victimization treated as an indicator of abusiveness

Register row 80

The law requires	The policy says
28 CFR 115.341(c). Prior victimization and prior abusiveness are screened as distinct risk factors.	The note at OO 1352 II.F.2 states, in bold in the original, "Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies." The same inference appears a second time as a lettered criterion at II.F.2.d, "History of victimization related to sexual abuse or a sexual offense," alongside three abusiveness criteria. Both quoted verbatim from the order, produced and read in full in Revision 9.

Why it matters. This instructs staff to treat a youth's own sexual victimization as a predictor of sexual abusiveness, which is the inference 115.341(c) separates. Reading the order in Revision 9 made the finding larger in two ways. The inference is in two places, not one, so striking the bolded note alone leaves it in force, and the redline as first drafted struck only the note. And the order contradicts itself on the same fact: II.H.3 makes being the victim of a CPS referral relative to sexual abuse, or of any sustained sex offence, a criterion for S-4 Low, which the III.E.2 housing matrix treats protectively.

Victimization history is therefore used once as an abusiveness indicator and once as a vulnerability indicator, inside one classification, in one order.

Remediation. Recommended change 6: delete the inference, split the code, and add PC 287 to the S-4 High criteria.

Conflict 7. Records retention

Register row 59

The law requires	The policy says
28 CFR 115.371(j). Retain investigation reports for as long as the alleged abuser is employed or incarcerated, plus five years.	Internal Affairs XI.C.1 sets five years. PREA Policy XVIII.B sets ten years.

Why it matters. Three different rules govern the same records. AB 452 eliminated the limitations period for childhood sexual assault occurring on or after 01/01/2024, so the shortest of the three is the one that will be tested.

Remediation. Recommended change 7: adopt a single reconciled retention schedule.

Conflict 8. Staffing ratios

Register row 6

The law requires	The policy says
28 CFR 115.313(c). At least 1:8 during waking hours and 1:16 during sleeping hours, security staff only, required since 10/01/2017.	OO 1321 I.B.1 to 2 sets 1:10 waking and 1:30 sleeping.

Why it matters. The county standard mirrors the Title 15 floor. 15 CCR 1301 expressly permits exceeding it. Verify rosters and post assignments before assuming the practice matches the written ratio in either direction.

Remediation. Recommended change 9: verify against rosters and build the 115.313(a) staffing plan.

Conflict 9. Duty assigned to a position that does not exist

Register row 2

The law requires	The policy says
28 CFR 115.311(b). Designate an upper-level, agency-wide PREA Coordinator.	OO 1453 I.A.15, produced and read in full in Revision 10, reads: 'At the conclusion of the sexual assault investigation, an incident review shall be conducted by upper management officials, with input from supervisors, investigators, and medical or mental health practitioners. A report shall be generated and forwarded to the PREA coordinator and Department Chief.' The dead letter is the order's own text.

Why it matters. Two consequences. The required report has nowhere to go, so the review terminates in a dead letter. And this is written departmental acknowledgment, dated 2019, that the role is needed. Interim fix confirmed in Revision 10: the report has a second addressee that does exist, the Department Chief, so route it there and note the vacancy in the report itself.

Remediation. Recommended change 8: designate a PREA Coordinator and a facility Compliance Manager.

Conflict 10. Policy age and biennial review

Register row 74

The law requires	The policy says
15 CCR 1324. The policy and procedure manual is administratively reviewed at least every two years and updated as necessary.	The PREA Policy was last revised 04/25/2013. The Internal Affairs policy is effective 01/11/2011 with no revision shown.

Why it matters. The PREA Policy predates the 01/01/2019 Title 15 rewrite that added 1350.5, 1352.5, 1324(n), and 1361(h), and predates the renumbering of PC 288a to PC 287.

Remediation. Recommended change 3 in part, and the full rewrite at likely next task 3.

Conflict 11. Obsolete statutory citations

Register row 78

The law requires	The policy says
PC 287. SB 1494 renumbered PC 288a to PC 287 effective 01/01/2019.	PREA Policy I.I.1 still cites PC 288a. The complete S-4 High enumeration, verified in Revision 9, is II.G.1 ("a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-divisions)") plus II.G.3 (rape, 261 PC, all sub-divisions). PC 287 is omitted, and so is PC 289, sexual penetration, which earlier revisions never flagged. Also absent: 243.4, 264.1, 285 and 647.6. OO 1352 II.C.3 references DJJ, which closed 06/30/2023, and IV.A carries a second DJJ reference as the worked example of a legal status change.

Why it matters. The S-4 omission is the operative one: it is not a citation cosmetic, it changes who gets classified. A youth with a documented 287 or 289 adjudication does not meet the enumerated S-4 High criteria on the face of the order.

Remediation. Recommended change 6.

Conflict 12. Intake policy substantively obsolete

Register row 79

The law requires	The policy says
15 CCR 1350 and 1350.5. Intake and admittance policy must reflect current law and carry the admittance elements added in 2019.	Detention and Intake Responsibility (J-3.4) references CYA and CYA parolees throughout, contains no PREA or sexual abuse screening content, and does not reference OO 1350.5.

Why it matters. CYA became the Division of Juvenile Justice in 2005 and closed entirely on 06/30/2023 under SB 823.

Remediation. Rewrite rather than amend.

Conflict 13. Supervisor directed to question a youth suspect without the mandatory counsel consultation

Register row 91

The law requires	The policy says
WIC 625.6, as amended by SB 203 and effective 01/01/2021. A youth 17 years of age or younger shall consult with legal counsel, in person, by telephone or by video conference, before a custodial interrogation and before waiving any Miranda rights. The consultation may not be waived. 625.6(b) directs courts to weigh noncompliance on admissibility and to weigh a willful violation against the officer's credibility under Evidence Code 780. 625.6(c) excepts questioning where the officer reasonably believes the information is necessary to protect life or property from an imminent threat and the questions are limited to what is reasonably necessary. 625.6(d) provides that subdivision (a) does not apply to a probation officer acting in the normal performance of duties under WIC 625, 627.5 or 628. Separately, WIC 625.7, effective 07/01/2024, bars threats, physical harm, deception and psychologically manipulative tactics in the custodial interrogation of a youth 17 or younger.	OO 1453 I.A.6: 'The duty supervisor shall take an initial statement from the victim and suspect. All suspects involved in a sexual assault shall be read a "Miranda Warning", prior to any questioning.' The order says nothing about the 625.6 consultation. It was last revised 12/09/2019, more than a year before SB 203 took effect, and has not been updated since.

Why it matters. CORRECTED IN REVISION 11, AND THE CORRECTION RUNS PARTLY IN THE DEPARTMENT'S FAVOUR. Revision 10 recorded this conflict without 625.6(c) or 625.6(d), because the statute was summarised rather than read to the end. 625.6(d) is the one that matters: a duty supervisor is a probation officer, and if taking this statement is normal performance of duties under WIC 625, 627.5 or 628 then the consultation requirement does not reach it at all. Those three sections concern taking a minor into temporary custody, advising a minor on delivery to a probation officer, and the decision to release or detain, none of which obviously covers questioning a resident about a new offence alleged to have occurred inside the facility. The finding survives on the better reading, and it is

materially more contestable than Revision 10 recorded. This review found no case deciding it, and it is the first argument the department or opposing counsel would raise. It is the gating question for County Counsel, and the status is held at Conflict pending the answer rather than lowered, because the order is silent on a statute that on the better reading applies to it and silence is not an exemption. WIC 625.7 is a second statute the same paragraph predates and also omits. First recorded in Revision 10, on reading OO 1453. Two further provisions confirm the design is deliberate rather than an aside: I.A.8 conditions the Sheriff notification on what is believed 'after initial inquiry', and I.A.10 refers to 'the reporting/investigating officer (usually a Supervisor)'. The exposure runs to the supervisor personally, because a statement taken without the consultation can be suppressed and a willful violation goes to that supervisor's credibility as a witness. Two adjacent defects sit in the same provision: 115.334 requires specialized training for whoever conducts a sexual abuse investigation, and the PC 679.04 advocate right that I.A.13 correctly recites attaches to interviews by law enforcement, the district attorney or defense counsel, so it does not reach the I.A.6 statement. The one interview the order assigns to facility staff is the only one in the sequence with no advocate right attached.

Remediation. Drafted in Revision 11 as recommended change 8, and available as a tracked changes copy of the order built from its own words. The amendment splits the victim statement from the suspect statement, adds the 625.6 consultation, writes the 625.6(c) exception narrowly and requires it to be documented, adds the 625.7 prohibition, and states where the supervisor stops and a trained investigator starts. Until adopted, obtain the consultation anyway. This is not a reason to tell supervisors to ignore I.A.6: the statement itself is directed by the order.

4. The crosswalk, requirement by requirement

Grouped by the area an auditor scores. Within an area, worst divergence first. The numbering is the register row, so any entry can be traced straight back to the gap register.

Prevention Planning

2. 28 CFR 115.311(b)

Status	Conflict, Critical priority
Departmental provision	None. But OO 1453 (Sexual Assault) I.A.15 directs that the sexual abuse incident review report be forwarded to 'the PREA coordinator and Department Chief.'

The standard requires. Employ or designate an upper-level, agency-wide PREA Coordinator with sufficient time and authority to develop, implement, and oversee PREA compliance in all facilities.

Divergence. Status changed from Not Addressed to Conflict. OO 1453, last revised December 9, 2019, instructs staff to forward the incident review report to the PREA Coordinator. The department has therefore published an operations order assigning a duty to a position that, per the department, does not exist. Two consequences. First, the required report has nowhere to go, so the review process terminates in a dead letter regardless of whether the review occurs. Second, this is written departmental acknowledgment that the position is necessary, dated 2019, which forecloses any argument that the department did not appreciate the requirement. Confirm whether a Coordinator was ever designated and later vacated, or never designated at all; the answer changes how this reads. Either way, designating one operationalizes an order the department already issued. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: I.A.15 is confirmed word for word: "At the conclusion of the sexual assault investigation, an incident review shall be conducted by upper management officials, with input from supervisors, investigators, and medical or mental health practitioners. A report shall be generated and forwarded to the PREA coordinator and Department Chief." The dead letter is the order's own text. The report has a second addressee that does exist, the Department Chief, so the interim fix is to route it there and note the vacancy in the report itself.

Change log: MATERIALLY REVISED in 3: OO 1453 I.A.15 directs reports to a PREA Coordinator the department does not have. VERIFIED in 10 against the produced order: I.A.15 quoted verbatim, including the reference to a PREA coordinator the department does not have.

6. 28 CFR 115.313(c); 15 CCR 1321(h)(1)

Status	Conflict, Critical priority
Departmental provision	OO 1321 I.B.1-2 (1:10 waking / 1:30 sleeping)

The standard requires. Secure juvenile facilities shall maintain staff ratios of at least 1:8 during resident waking hours and 1:16 during sleeping hours. Only security staff count. Compliance was required no later than October 1, 2017.

Divergence. The county standard mirrors Title 15 (1:10 / 1:30), which is materially less protective than the federal standard (1:8 / 1:16). Title 15 sets a floor, not a ceiling: 15 CCR 1301 expressly permits the

county to adopt standards that exceed the minimum. Operating to 1:10 / 1:30 will fail 115.313(c) on audit and is a readily exploited fact in civil litigation. Whether actual post assignments already meet 1:8 / 1:16 should be verified against real rosters before the policy is revised. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1321(h)(1)(A) sets one wide-awake youth supervision staff member for each 10 youth during waking hours and (B) one for each 30 during sleeping hours, for juvenile halls. The conflict with the federal 1:8 and 1:16 is confirmed on both sides. Two further points from source. 1321(h)(1)(E) excludes personnel whose primary responsibility is administration, supervision of personnel, academic or trade instruction, clerical, kitchen, or maintenance from counting as youth supervision staff, which is the state analogue of the federal security-staff-only rule and means the 1:10 count is already required to be a clean count. And 1301 provides that county standards may 'meet or exceed and do not conflict with' the state minimums, confirming that adopting 1:8 and 1:16 is open to the department without a variance. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1321(h)(1) is confirmed as cited for juvenile halls: (A) one wide-awake youth supervision staff member for each 10 youth during waking hours, (B) one for each 30 during sleeping hours, and (E) personnel whose primary responsibility is administration, supervision of personnel, academic or trade instruction, clerical, kitchen or maintenance shall not be classified as youth supervision staff. Two subsections this register did not carry are now recorded. (C) requires at least two wide-awake youth supervision staff members on duty at all times regardless of the number of youth in detention, unless an arrangement has been made for backup support services allowing immediate response to emergencies, which is a floor the federal ratios do not state and which binds on low-count units. (D) requires at least one youth supervision staff member on duty who is the same gender as youth housed in the facility, which bears on the 115.315 cross-gender viewing and announcement duties and should be read alongside them rather than as a staffing rule alone. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1301 is unchanged and confirmed as cited: a county operating a local juvenile facility may adopt standards governing its own employees and facilities 'provided such standards and requirements meet or exceed and do not conflict with these standards and requirements.' Adopting the federal 1:8 and 1:16 ratios is therefore open to the department without a variance, and 1321(h)(1) is a floor rather than a ceiling.

Change log: VERIFIED in 5: 15 CCR 1321(h)(1)(A)-(B) and 1301 confirmed against source; 1321(h)(1)(E) staff-exclusion rule added. REVISED in 7: 1321(h)(1) and 1301 re-verified against the 2019 edition. The conflict is unchanged on both sides. (C) and (D) added.

3. 28 CFR 115.311(c)

Status	Not Addressed, Critical priority
Departmental provision	None

The standard requires. Where an agency operates more than one facility, each facility shall designate a PREA Compliance Manager with sufficient time and authority to coordinate that facility's compliance.

Divergence. No facility-level PREA Compliance Manager is designated for YDF. Confirm the current count of departmentally operated juvenile facilities; if more than one is operated, a Compliance Manager is required at each. Facility facts confirmed by the department in Revision 8: the Juvenile Hall houses residents aged 13 to 25, has 17 units of which 12 are in use, houses girls separately from boys, groups boys by age, and treats a resident under 16 housed with one over 18 as uncommon but not prohibited. Note that this answers a different question than the one this row asks. Twelve units in use describes the size of one facility; it does not say how many juvenile facilities the department operates, which is what 115.311(c) turns on. Open question 1 stays open.

Change log: REVISED in 8: unit count recorded. The facility count 115.311(c) turns on is still open.

5. 28 CFR 115.313(a)-(b); 15 CCR 1321(a), (h)

Status	Not Addressed, Critical priority
Departmental provision	OO 1321 (Staffing)

The standard requires. Develop, implement, and document a staffing plan providing adequate staffing and, where applicable, video monitoring, weighing 11 enumerated factors including blind spots, resident composition, supervisory placement, and prevalence of substantiated and unsubstantiated incidents. Comply with the plan except in limited, discrete, fully documented exigent circumstances.

Divergence. OO 1321 restates the Title 15 ratios and generic adequacy language. There is no documented PREA staffing plan, none of the 11 required factors is analyzed, and there is no mechanism for documenting deviations. A written staffing plan is one of the most frequently cited findings in juvenile PREA audits. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1321(a) requires 'an adequate number of personnel sufficient to carry out its program,' and 1321(h) requires assignment of sufficient youth supervision staff for continuous wide awake supervision. Both read as cited. Neither supplies the written staffing plan this requirement concerns, so the finding stands. The eleven factors are enumerated here so the staffing plan can be drafted from this row rather than from the standard. 28 CFR 115.313(a) requires the agency to take into consideration: (1) generally accepted juvenile detention, correctional, or secure residential practices; (2) any judicial findings of inadequacy; (3) any findings of inadequacy from Federal investigative agencies; (4) any findings of inadequacy from internal or external oversight bodies; (5) all components of the facility's physical plant, including blind spots or areas where staff or residents may be isolated; (6) the composition of the resident population; (7) the number and placement of supervisory staff; (8) institution programs occurring on a particular shift; (9) any applicable State or local laws, regulations, or standards; (10) the prevalence of substantiated and unsubstantiated incidents of sexual abuse; and (11) any other relevant factors. Three are harder for this department than they look. Factor 10 cannot currently be computed at all, because the Internal Affairs six-category disposition taxonomy does not map to the three PREA findings; see row 81. Factor 4 now takes in this register itself, which is a finding of inadequacy from an internal review. Factor 5 has no supporting document, because the Institutional Policy on Video Recording and Photograph System has never been produced. CORROBORATION NOTE: the eleven factors are corroborated from search, including exact-phrase matches against the Cornell, eCFR, and PREA Resource Center listings, and have not been read from the Code of Federal Regulations itself, because network access to those sources is blocked from the drafting environment. Confirm the wording against 28 CFR 115.313(a) before it is adopted into a staffing plan. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1321(h)(1) is confirmed as cited for juvenile halls: (A) one wide-awake youth supervision staff member for each 10 youth during waking hours, (B) one for each 30 during sleeping hours, and (E) personnel whose primary responsibility is administration, supervision of personnel, academic or trade instruction, clerical, kitchen or maintenance shall not be classified as youth supervision staff. Two subsections this register did not carry are now recorded. (C) requires at least two wide-awake youth supervision staff members on duty at all times regardless of the number of youth in detention, unless an arrangement has been made for backup support services allowing immediate response to emergencies, which is a floor the federal ratios do not state and which binds on low-count units. (D) requires at least one youth supervision staff member on duty who is the same gender as youth housed in the facility, which bears on the 115.315 cross-gender viewing and announcement duties and should be read alongside them

rather than as a staffing rule alone. Facility facts confirmed by the department in Revision 8: the Juvenile Hall houses residents aged 13 to 25, has 17 units of which 12 are in use, houses girls separately from boys, groups boys by age, and treats a resident under 16 housed with one over 18 as uncommon but not prohibited. The unit count is a direct input to the staffing plan. Twelve units in use interacts with 1321(h)(1)(C), which requires at least two wide-awake youth supervision staff on duty at all times regardless of the number of youth in detention, absent a backup arrangement allowing immediate response. On a low-count unit that floor binds before any ratio does, and with twelve units running it is a staffing question before it is a PREA question. Factor 6, the composition of the resident population, now has a concrete answer that the plan has to weigh: a twelve year age span, 13 to 25.

Change log: VERIFIED in 5: 15 CCR 1321(a) and (h) confirmed against source. REVISED in 6: the eleven 115.313(a) factors enumerated, with the factor 10, 4, and 5 problems named. REVISED in 7: 1321(h)(1) re-verified against the 2019 edition. (C) two-staff minimum and (D) same-gender staffing added. REVISED in 8: unit count and the 1321(h)(1)(C) two-staff interaction recorded against factors 5 and 6.

7. 28 CFR 115.313(d)

Status	Not Addressed, High priority
Departmental provision	None

The standard requires. At least annually, in consultation with the PREA Coordinator, assess, determine, and document whether adjustments are needed to the staffing plan, prevailing staffing patterns, video monitoring deployment, and resources available to adhere to the plan.

Divergence. No annual staffing and monitoring-technology review is required or documented. Depends on 115.311(b) being fixed first.

10. 28 CFR 115.315(d); 15 CCR 1352.5(e)

Status	Not Addressed, High priority
Departmental provision	OO 1360, Attachment A (medical screen for shower-room strip searches)

The standard requires. Residents must be able to shower, perform bodily functions, and change clothing without non-medical staff of the opposite gender viewing their breasts, buttocks, or genitalia, except in exigent circumstances or incidental to routine cell checks. Opposite-gender staff must announce their presence when entering a resident housing unit.

Divergence. Attachment A requires a medical screen when a shower room is used for a strip search, which is a privacy measure but not this standard. Still absent: any provision on residents showering, using the toilet, or changing clothing without non-medical staff of the opposite gender viewing their breasts, buttocks, or genitalia, and the requirement that opposite-gender staff announce their presence when entering a resident housing unit. The announcement rule is a discrete, no-cost policy fix and is a standard youth-interview question during an audit. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1352.5 exists, titled Transgender and Intersex Youth, running (a) to (e). Most relevant to this register: (c) requires staff to 'house youth in the unit or room that best meets their individual needs,' provides that staff 'may not automatically house youth

according to their external anatomy,' requires documented reasons for any placement not matching gender identity, and requires consideration of the youth's preferences and of provider recommendations. That is an expressly individualized standard, which is what makes a categorical single-room rule a conflict with it.

Change log: REVISED: gap text updated to credit the Attachment A medical screen. FLAGGED in 5: 15 CCR 1352.5 not confirmed; absent from the produced edition. REVISED in 6: 1352.5 confirmed against the 2019 edition and quoted.

12. 28 CFR 115.315(f)

Status	Not Addressed, High priority
Departmental provision	None

The standard requires. Train security staff how to conduct cross-gender pat-down searches and searches of transgender and intersex residents professionally, respectfully, and in the least intrusive manner consistent with security needs.

Divergence. Not listed in OO 1322 or in the PREA policy training section. Directly relevant to the Use of Force Training Unit curriculum.

15. 28 CFR 115.318(a)-(b)

Status	Not Addressed, Low priority
Departmental provision	None

The standard requires. When designing, acquiring, expanding, or modifying facilities, and when installing or updating video or other monitoring technology, consider the effect on the ability to protect residents from sexual abuse.

Divergence. No requirement that PREA implications be evaluated in capital planning or camera upgrades. Cheap to add now, expensive to retrofit after a build.

83. 28 CFR 115.317(c)(2), (d)

Status	Not Addressed, Critical priority
Departmental provision	OO 1352 I.B.3 (CPS database check on youth); no employee or contractor registry provision located

The standard requires. Consult any child abuse registry maintained by the state or locality before hiring an employee who may have contact with residents, and perform a criminal background records check and consult applicable child abuse registries before enlisting the services of any contractor who may have contact with residents.

Divergence. Separated from the main 115.317 row because it is the piece most likely to be genuinely absent rather than merely undocumented. The department already queries the Child Protective Services database, but under OO 1352 I.B.3 that query runs against each youth at classification, not against employment applicants or contractors. Confirm with County Personnel whether a child abuse registry consultation occurs in the hiring workflow. The contractor and volunteer side is the larger exposure: the Code of Conduct for Non-Sworn and Non-County Personnel governs medical, mental health, kitchen, school, temporary, contract, volunteer, and intern staff, and neither it nor any other reviewed document requires a background check or registry consultation before those individuals are granted access to youth. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: I.B.3 is confirmed: the Classification Officer shall "Check each youth status in the Child Protective Services (CPS) database and review resident's most recent Court Reports and other relevant information contained in JPIP scanned documents relative to the youth." That is a registry check run against the YOUTH on admission. Reading the full order confirms the asymmetry this row records: nothing anywhere in OO 1352 requires any registry or background check of an employee, contractor, volunteer or intern. The only registry duty in the classification system runs against the children.

Change log: NEW in revision 2. Split out from the main 115.317 row. VERIFIED in 9 against the produced order: I.B.3 quoted. The absence of any employee or contractor registry provision is confirmed by reading the full order rather than inferred.

1. 28 CFR 115.311(a); 15 CCR 1324(n)

Status	Partial, High priority
Departmental provision	PREA Policy, Guidelines (zero tolerance; retaliation paragraph)

The standard requires. Written policy mandating zero tolerance toward all forms of sexual abuse and sexual harassment, outlining the agency's approach to preventing, detecting, and responding to such conduct, including retaliation and reporting by youth, staff, or a third party.

Divergence. Zero tolerance and retaliation prohibition are stated. The policy is not organized around a prevent / detect / respond framework, uses 'sexual misconduct' rather than the regulatory terms 'sexual abuse' and 'sexual harassment' as its operative trigger, and contains no third-party reporting provision required by both 1324(n) and 115.354. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1324(n) exists and reads 'establishment of a policy that prohibits all forms of sexual abuse, sexual assault and sexual harassment. The policy shall include an approach to preventing, detecting and responding to such conduct and any retaliation for reporting such conduct, as well as a provision for reporting such conduct by youth, staff or a third party.' Note what the text does not do: it does not name a victim, so unlike the federal definitions it is not written as resident-protective on its face. Whether BSCC reads it to reach conduct directed at staff is untested and is not asserted here.

Change log: FLAGGED in 5: 15 CCR 1324(n) not confirmed; produced edition ends 1324 at (j). REVISED in 6: 1324(n) confirmed against the 2019 edition and quoted.

4. 28 CFR 115.312(a)-(b)

Status	Partial, Low priority
Departmental	PREA Policy II.C.2

provision	

The standard requires. New or renewed contracts for confinement of residents with other entities must include the entity's obligation to adopt and comply with the PREA standards, and must provide for agency contract monitoring.

Divergence. The contract-language requirement is captured. The separate requirement that the contract provide for agency monitoring of the contractor's PREA compliance is missing.

8. 28 CFR 115.313(e)

Status	Partial, High priority
Departmental provision	PREA Policy II.C.1

The standard requires. Intermediate-level or higher supervisors shall conduct and document unannounced rounds on day and night shifts to identify and deter staff sexual abuse and harassment. Policy must prohibit staff from alerting others that supervisory rounds are occurring.

Divergence. Unannounced rounds by supervisors, ACDs, and Chief Deputies on day and night shifts are required. Two required elements are missing: documentation of the rounds, and an express prohibition on staff alerting other staff that rounds are underway.

9. 28 CFR 115.315(a)-(c); 15 CCR 1360(g)

Status	Partial, Medium priority
Departmental provision	OO 1360 (Searches) II.B, III.B.4-5, XI.A; PREA Policy II.D.1

The standard requires. No cross-gender strip or visual body cavity searches except in exigent circumstances or by a medical practitioner; no cross-gender pat-down searches except in exigent circumstances; all such searches documented and justified in writing.

Divergence. OO 1360 is substantially compliant and in places exceeds the standard. II.B prohibits cross-gender pat-down searches absent emergency circumstances. III.B.4 and III.B.5 require the searching officer AND the witness to be the same sex as the youth and bar any opposite-sex person from viewing a strip search, with no exigent exception, which is stricter than 115.315(a). Physical body cavity searches are never performed by probation staff and require a warrant and medical personnel. XI.A requires every strip search to be documented on an electronic Strip Search Authorization Form recording why, who conducted it, when and where, who was present, the gender of the resident and the searching officer, and the results. Remaining gap: 115.315(c) and 15 CCR 1360(g) require that cross-gender pat-down searches also be documented and justified in writing. The Strip Search Authorization Form captures strip and visual body cavity searches only; there is no comparable record for an emergency cross-gender pat-down. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1360(g) exists and reads 'Cross-gender pat-down searches and strip searches

are prohibited except in exigent circumstances or when conducted by a medical professional. Such searches must be justified and documented in writing.' The citation is sound as used in this row.

Change log: REVISED: was Partial / High. OO 1360 reviewed; most elements met or exceeded. Remaining gap narrowed to cross-gender pat-down documentation. FLAGGED in 5: 15 CCR 1360(g) not confirmed; produced edition ends 1360 at (f). REVISED in 6: 1360(g) confirmed against the 2019 edition and quoted.

13. 28 CFR 115.316(a)-(c); 15 CCR 1302 ('linguistically appropriate'), 1353

Status	Partial, Medium priority
Departmental provision	PREA Policy II.B.5

The standard requires. Ensure residents with disabilities and residents who are limited English proficient have equal opportunity to participate in all aspects of PREA efforts, including qualified interpreters and accessible written materials. Do not rely on resident interpreters or readers except in narrow circumstances.

Divergence. Accommodation is addressed only for resident PREA education. The standard reaches every aspect of prevention, detection, and response, including reporting and investigative interviews. The prohibition on using resident interpreters is absent. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1353 requires orientation before placement in a living area, in both written and verbal form, with provision for youth with disabilities, limited English proficiency, or limited literacy, across sixteen listed topics at (a) to (p), including (p) non-discrimination policy. The accessibility duty this requirement concerns is confirmed.

Change log: VERIFIED in 5: 15 CCR 1353 confirmed against source.

14. 28 CFR 115.317(a)-(h); 15 CCR 1320(b)(4)

Status	Partial, High priority
Departmental provision	Departmental hiring process (not produced); arrest and new-charge notification protocol (not produced); employee reporting requirement (confirmed by the department, source document not produced)

The standard requires. Do not hire, promote, or contract with anyone who has engaged in sexual abuse in an institution or been convicted or adjudicated for coercive sexual activity. Before hiring: criminal background check, child abuse registry check, and best efforts to contact all prior institutional employers about substantiated allegations or resignations during a pending investigation. Repeat background checks at least every five years. Ask applicants and employees directly about prior misconduct, impose a continuing duty to disclose, treat material omissions as grounds for termination, and respond to reference requests from other institutional employers.

Divergence. Correction to revision 2: the department confirms that employees are required to report. Read against 115.317(f), that supplies the continuing affirmative duty to disclose, which revision 2 wrongly inferred was absent. Combined with formalized criminal background checks at hire, which addresses 115.317(c)(1), and the independent protocol by which new charges reach the department, which likely satisfies 115.317(e) because that subsection expressly permits a system for otherwise capturing such information for current employees in lieu of five-year re-checks, three of the eight

subsections now appear substantially covered in practice. Two verification points on the reporting duty, both substantive rather than technical. First, produce the writing: an auditor scores the policy or the general order, not the practice. Second, confirm scope. An arrest or new-charge reporting rule is narrower than 115.317, which reaches conduct that may never generate a criminal charge, specifically prior sexual abuse in any institution, civil or administrative adjudications, and resignation during a pending investigation. If the duty as written covers only criminal charges, it does not reach the category the standard was drafted to capture. Still outstanding regardless: (c)(2) child abuse registry consultation, addressed separately in the register; (c)(3) best efforts to contact all prior institutional employers; (f) direct questioning of applicants and current employees about prior sexual misconduct in written applications, interviews, and self-evaluations, which is the intake side of the same subsection; (g) material omission as grounds for termination; and (h) responding to reference requests from other institutional employers.

Change log: REVISED in 2.1: the continuing affirmative duty to disclose exists. Remaining work is producing the writing and confirming its scope reaches non-criminal conduct.

11. 28 CFR 115.315(e); 15 CCR 1352.5

Status	Addressed, Low priority
Departmental provision	OO 1352.5 (Transgender and Intersex Youth) IV.A.1-3 and IV.A.3.a-c

The standard requires. No search or physical examination of a transgender or intersex resident for the sole purpose of determining genital status.

Divergence. Closed, and in places the order exceeds the standard. IV.A.1 prohibits physically searching a youth to determine anatomical sex. IV.A.2 requires that unknown genital status be determined through conversation with the youth or medical records review, which is better than PREA Policy VIII.B, which contemplates a private physical examination and should be conformed to this order. IV.A.3 respects the youth's preference regarding the gender of searching staff whenever feasible. IV.A.3.a requires an Identification Preference Form for all youth at intake, supervisor review of any preference request, a direct meeting between the supervisor and the youth before authorizing, and documentation of the request, the rationale, and who conducted the search in the youth's file, JPIP, and the Strip Search Authorization Application. IV.A.3.b and c specify two-staff procedures for strip and pat-down searches with the preferred gender staff conducting and the second staff within hearing but out of view. This also resolves the tension flagged in revision 2 between OO 1360 III.B.4-5 and 1352.5: the two orders do reconcile, with 1352.5 supplying the exception. Recommend only that OO 1360 carry an explicit cross-reference so a reader of 1360 alone is not misled. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1352.5 exists, titled Transgender and Intersex Youth, running (a) to (e). Most relevant to this register: (c) requires staff to 'house youth in the unit or room that best meets their individual needs,' provides that staff 'may not automatically house youth according to their external anatomy,' requires documented reasons for any placement not matching gender identity, and requires consideration of the youth's preferences and of provider recommendations. That is an expressly individualized standard, which is what makes a categorical single-room rule a conflict with it.

Change log: MATERIALLY REVISED in 3: was Not Evidenced. OO 1352.5 closes this and resolves the OO 1360 conflict. FLAGGED in 5: 15 CCR 1352.5 not confirmed; absent from the produced edition. REVISED in 6: 1352.5 confirmed against the 2019 edition and quoted.

Responsive Planning

16. 28 CFR 115.321(a)-(b); 15 CCR 1452, 1453

Status	Partial, High priority
Departmental provision	OO 1453 I.A.3, I.A.5, I.A.11; PREA Policy VIII.A

The standard requires. Follow a uniform evidence protocol that maximizes usable physical evidence, developmentally appropriate for youth and adapted from the DOJ Office on Violence Against Women national protocol for sexual assault medical forensic examinations or a comparable authoritative protocol.

Divergence. OO 1453 supplies real evidence procedure: crime scene sealing, prevention of showering, collection of toilet tissue, and at I.A.11 a fallback protocol where the Sheriff's Department or CSI cannot respond immediately, under which the Duty Supervisor photographs the scene, gloves up, collects and marks evidence with date, time, location, ownership and description, seals and logs it, and places it in the evidence locker at Intake and Booking. That is a workable chain of custody procedure. Two concerns. First, the standard requires a uniform evidence protocol that is developmentally appropriate for youth and adapted from the DOJ Office on Violence Against Women national protocol or a comparable authoritative source; OO 1453 is a locally drafted procedure with no such derivation and no youth-specific adaptation. Second, I.A.11 authorizes a Duty Supervisor to collect sexual assault evidence with no stated training prerequisite. 15 CCR 1452 requires forensic medical evidence be collected by appropriately trained medical personnel not responsible for the youth's ongoing care. Scene evidence is not forensic medical evidence and the two are governed differently, but an untrained supervisor collecting evidence in a sexual assault case is a cross-examination target and a chain of custody risk. Add a training requirement and derive the protocol from an authoritative source. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1453 requires the health administrator, with the facility administrator, to develop policy for treating victims of sexual assault and for reporting such incidents to local law enforcement, and requires that 'the evidentiary examination and initial treatment of victims of sexual assault shall be conducted at a health facility that is separate from the custodial facility and is properly equipped and staffed with personnel trained and experienced in such procedures.' The off-site examination duty is a state requirement, not merely a PREA preference. 1452 requires forensic evidence to be collected by appropriately trained medical personnel who are not responsible for the youth's ongoing health care. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1452 and 1453 are unchanged from the 2014 text and confirmed as cited. 1452 requires forensic medical services for the purpose of prosecution to be collected by appropriately trained medical personnel who are not responsible for providing ongoing health care to the youth. 1453 requires policy for treating victims of sexual assault, preservation of evidence, and reporting to local law enforcement, and requires that the evidentiary examination and initial treatment occur at a health facility separate from the custodial facility, properly equipped and staffed with trained and experienced personnel. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: the fallback evidence protocol is confirmed word for word. I.A.11: "If the Sheriff's Department, C.S.I. (Crime Scene Investigations) or detectives cannot respond immediately, the duty supervisor may need to collect evidence," followed by (a) photograph crime scene, (b) "After putting gloves on, collect evidence, clearly marking date, time, location, ownership and description of item," and (c) "Seal all evidence bags and envelopes, log items and place evidence in the evidence locker located in the Property Room at Intake/Booking." I.A.12 is new to this register: "Non-consensual sexual assault suspects shall undergo a 'suspect rape exam', which shall be

the responsibility of the Sheriff's Department as the investigating agency." The 115.321(a) gap stands: the protocol is a chain of custody procedure, not a uniform evidence protocol developmentally appropriate for youth and adapted from the DOJ OVW national protocol.

Change log: REVISED in 3: OO 1453 evidence procedure credited; training prerequisite and protocol derivation identified as the residual gaps. VERIFIED in 5: 15 CCR 1452 and 1453 confirmed against source, including the off-site evidentiary examination requirement. REVISED in 7: 1452 and 1453 re-verified against the 2019 edition, unchanged. VERIFIED in 10 against the produced order: I.A.11 quoted verbatim. I.A.12, the suspect rape exam and its assignment to the Sheriff, is new to this register.

17. 28 CFR 115.321(c); 15 CCR 1452, 1453

Status	Partial, Medium priority
Departmental provision	PREA Policy VIII.A; X.A-B

The standard requires. Offer all residents who experience sexual abuse access to forensic medical examinations without financial cost, performed by SAFEs or SANEs where possible, with documented efforts to obtain them.

Divergence. Transport to a local medical facility (UC Davis Medical Center) for an evidentiary examination is required, which satisfies the 1453 off-site requirement. Missing: the SAFE/SANE preference, documentation of efforts to secure a SAFE/SANE, and the express statement that examinations are provided without financial cost to the youth. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1453 requires the evidentiary examination and initial treatment to occur at a health facility separate from the custodial facility, properly equipped and staffed with trained and experienced personnel. 1452 requires collection by trained medical personnel who are not the youth's ongoing care providers. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1452 and 1453 are unchanged from the 2014 text and confirmed as cited. 1452 requires forensic medical services for the purpose of prosecution to be collected by appropriately trained medical personnel who are not responsible for providing ongoing health care to the youth. 1453 requires policy for treating victims of sexual assault, preservation of evidence, and reporting to local law enforcement, and requires that the evidentiary examination and initial treatment occur at a health facility separate from the custodial facility, properly equipped and staffed with trained and experienced personnel. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: I.A.13 is confirmed: victims "shall be transported by a Transportation Officer, or designated staff appointed by the duty Supervisor (taking gender into consideration), to a local medical facility for an evidentiary exam." The off-site requirement is satisfied. The gaps stand unchanged: no SAFE or SANE preference, no documentation of efforts to secure one, and no express statement that the examination is provided without financial cost to the youth.

Change log: VERIFIED in 5: 15 CCR 1452 and 1453 confirmed against source. REVISED in 7: 1452 and 1453 re-verified against the 2019 edition, unchanged. VERIFIED in 10 against the produced order: I.A.13 transport and off-site examination confirmed.

18. 28 CFR 115.321(d)-(e), (h)

Status	Partial, High priority
Departmental provision	OO 1453 I.A.13; PREA Policy XV.A, XVI.A-B, I.AA

The standard requires. Attempt to make a victim advocate from a rape crisis center available to accompany and support the victim through the forensic examination and investigatory interviews; document efforts; where no rape crisis center is available, use a screened and trained community-based or agency staff member.

Divergence. OO 1453 I.A.13 is stronger than the PREA policy alone: it states that in most cases the victim advocate will be from a local Rape Crisis Center, recites the PC 264.2 right to an advocate or support person during the medical examination and the PC 679.04 right during investigatory interviews, and assigns Sheriff's Officers to follow YDF staff to the medical center. Remaining gaps: 115.321(d) requires the agency to attempt to make an advocate available rather than treating the advocate as something the victim invokes, and 115.321(e) requires documentation of those efforts. Neither appears. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: I.A.13 is confirmed and it is stronger than this row credited, but its scope is narrower than assumed and that correction matters. The order states: "Pursuant to Section 264.2 of the California Penal Code, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during their medical examination. In most cases, the victim advocate will be from a local Rape Crisis Center. Sheriff's Officers will follow Youth Detention Facility staff to the Med Center and fill out all necessary paperwork. Pursuant to Section 679.04, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during all investigatory interviews conducted by law enforcement, the district attorney, or defense counsel." CORRECTION TO THIS PROJECT'S OWN WORK: the supervisor guide and the field card have treated the 679.04 right as attaching to investigatory interviews generally. As the order recites the statute, and as the statute reads, it attaches to interviews conducted by LAW ENFORCEMENT, THE DISTRICT ATTORNEY OR DEFENSE COUNSEL. It does not on its face reach the initial statement the duty supervisor is directed to take under I.A.6. That makes the I.A.6 problem worse rather than better, because the one interview the order actually assigns to facility staff is the one with no advocate right attached to it. See row 91. The 115.321(d) and (e) gaps stand: the agency must ATTEMPT to make an advocate available rather than treat it as a right the victim invokes, and must document those efforts.

Change log: REVISED in 3: OO 1453 I.A.13 credited. VERIFIED in 10 against the produced order: I.A.13 quoted verbatim. CORRECTION: PC 679.04 as recited reaches interviews by law enforcement, the DA or defense counsel, not the duty supervisor's I.A.6 initial statement. This project had stated it more broadly.

19. 28 CFR 115.322(a)-(c)

Status	Partial, High priority
Departmental provision	OO 1453 I.A.8, I.A.10, I.A.14; PREA Policy VII.A.1, XII.A-C

The standard requires. Ensure an administrative or criminal investigation is completed for every allegation of sexual abuse and sexual harassment; maintain a policy referring allegations to an entity with criminal investigative authority; publish that policy on the agency website describing the responsibilities of both the agency and the investigating entity; document all referrals.

Divergence. OO 1453 tightens this considerably. I.A.8 requires the Duty Supervisor to notify the Sheriff's Department immediately once it is believed a sexual assault occurred. I.A.10 requires the reporting or investigating officer to brief responding Sheriff's officers and provide an interview room.

I.A.14 routes consensual sex act discovery and investigative reports to the Supervising District Attorney and the Sheriff's Sexual Assaults Unit. Remaining: publication of the referral policy on the department website describing the responsibilities of the agency and the investigating entity, documentation of all referrals, and an express commitment that every allegation, including sexual harassment, receives an administrative or criminal investigation. Note also that the PREA Policy Guidelines say sexual misconduct 'may be referred' to the District Attorney where 115.371(i) requires that substantiated conduct appearing criminal shall be referred. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: confirmed. I.A.8: "If after initial inquiry it is believed a sexual assault occurred, the Sheriff's Department will be notified immediately by the duty Supervisor in order to take a report." I.A.10: "The reporting/investigating officer (usually a Supervisor) shall brief the responding Sheriff's officers upon their arrival. Sheriff's officers will be provided with a room to conduct any interviews." I.A.14: "If a consensual sex act occurred, all discovery and investigative reports are to be forwarded to the Supervising District Attorney and the Sacramento Sheriff's Sexual Assaults Unit." Two phrases in I.A.8 and I.A.10 matter and were not previously recorded. The Sheriff trigger is conditioned on an "initial inquiry" by the facility, and the parenthetical "(usually a Supervisor)" confirms that the department treats the Duty Supervisor as the investigating officer. See row 91, which is where that leads.

Change log: REVISED in 3: OO 1453 referral provisions credited. VERIFIED in 10 against the produced order: I.A.8, I.A.10 and I.A.14 quoted verbatim. New: the Sheriff trigger runs through an "initial inquiry" by the facility, and I.A.10 names the Supervisor as the usual investigating officer.

Training and Education

21. 28 CFR 115.331(b)

Status	Not Addressed, Medium priority
Departmental provision	None

The standard requires. Training tailored to the unique needs and attributes of juvenile residents and to the gender of residents at the employee's facility, with additional training when an employee transfers between a male-only and a female-only facility.

Divergence. No gender-tailoring or reassignment-triggered training requirement. If YDF houses both genders in a single facility the reassignment clause has limited application, but the gender-tailoring requirement still applies and should be stated.

27. 28 CFR 115.333(c)

Status	Not Addressed, Medium priority
Departmental provision	None

The standard requires. Residents receive education upon transfer to a different facility to the extent the new facility's policies and procedures differ.

Divergence. No transfer-triggered re-education requirement. Relevant to movement between YDF and any other departmentally operated juvenile facility.

29. 28 CFR 115.334(a)-(d)

Status	Not Addressed, Critical priority
Departmental provision	Internal Affairs Administrative Investigations (eff. 01/11/2011) VII, VIII

The standard requires. Investigators who conduct sexual abuse investigations must receive specialized training covering techniques for interviewing juvenile victims, proper use of Miranda and Garrity warnings, evidence collection in confinement settings, and the criteria and evidence required to substantiate a case for administrative action or prosecution referral; maintain documentation.

Divergence. The Internal Affairs policy confirms the department conducts its own administrative investigations of employee misconduct, so this standard applies squarely. Section VII requires an Administrative Admonishment or a Lybarger warning before every interview or interrogation, which is the California analog of the Garrity element of 115.334(b), and section VIII sets out interrogation conduct rules. What is absent is the training itself: no requirement that investigators be trained in techniques for interviewing juvenile sexual abuse victims, in sexual abuse evidence collection in confinement settings, or in the criteria and evidence required to substantiate a case for administrative action or prosecution referral, and no documentation that investigators completed such training.

Change log: REVISED: gap text updated. IA policy confirms the standard applies and supplies the Lybarger element only.

20. 28 CFR 115.331(a); 15 CCR 1322, 1324(d)-(e)

Status	Partial, High priority
Departmental provision	PREA Policy II.A.1-2 (a-g); OO 1322 III.B.1.e

The standard requires. Train all employees who may have contact with residents on 11 enumerated topics, including the zero tolerance policy, their responsibilities under it, residents' right to be free from abuse and harassment, freedom from retaliation, dynamics of abuse in juvenile facilities, common reactions of juvenile victims, detection and response, avoiding inappropriate relationships, professional communication including with LGBTQI youth, mandatory reporting laws, and the applicable age of consent.

Divergence. Seven of the eleven topics are present. Missing: the zero tolerance policy itself as a training subject; how to fulfill responsibilities under the agency's prevention, detection, reporting and response procedures; residents' right to be free from sexual abuse and harassment; the right of residents and employees to be free from retaliation; and relevant laws on the applicable age of consent. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1324(d) requires an initial orientation and training program for employees, and 1324(e) requires initial orientation including safety, security, and anti-discrimination policies for support staff, contract employees, school and medical staff, program providers, and volunteers. Both subsections read as cited.

Change log: VERIFIED in 5: 15 CCR 1324(d) and (e) confirmed against source.

23. 28 CFR 115.331(d)

Status	Partial, Medium priority
Departmental provision	PREA Policy II.A.2 (Acknowledgement Form for reading the policy)

The standard requires. Document, through employee signature or electronic verification, that employees understand the training they received.

Divergence. The existing acknowledgement confirms the employee read and understood the policy, not that the employee understood the training. Add a training-comprehension attestation to the roster or LMS record.

24. 28 CFR 115.332(a)-(c); 15 CCR 1324(e)

Status	Partial, High priority
Departmental provision	PREA Policy II.A.1-2; Code of Conduct (Non-Sworn and Non-County Personnel), VIII Acknowledgment

The standard requires. Train all volunteers and contractors who have contact with residents on their responsibilities under the agency's prevention, detection, and response policies, at a level based on the services provided and level of contact, and maintain documentation confirming they understand the training.

Divergence. Volunteers and contractors are covered by the training sentence and sign a Code of Conduct affirmation. Missing: tiering of training level to level of resident contact, and documentation confirming comprehension of the training rather than receipt of the Code of Conduct. Note the Code of Conduct itself is dated 06/01/11 and contains no PREA content whatsoever, no zero tolerance statement, and no instruction on how to report sexual abuse, which 115.332(b) requires be given to every volunteer and contractor. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1324(e) reaches support staff, contract employees, school and medical staff, program providers, and volunteers, which is the population this requirement concerns.

Change log: VERIFIED in 5: 15 CCR 1324(e) confirmed against source.

22. 28 CFR 115.331(c); 15 CCR 1322

Status	Addressed, Low priority
Departmental provision	PREA Policy II.A.2 ('annually thereafter'); OO 1322 III.B.1.e

The standard requires. Refresher training every two years, with refresher information on current policies in the intervening years.

Divergence. Annual PREA training exceeds the biennial federal minimum. Retain this. Verify that delivery and rosters actually match the policy, since audits test attendance records rather than policy text.

25. 28 CFR 115.333(a); 15 CCR 1353(c)

Status	Addressed, Low priority
Departmental provision	PREA Policy II.B.1

The standard requires. At intake, provide age-appropriate information explaining the zero tolerance policy and how to report incidents or suspicions of sexual abuse or sexual harassment.

Divergence. Verbal and written intake information covering zero tolerance, prevention and intervention, reporting, and treatment is required. Confirm the Detention and Intake Responsibility policy is updated to reference it, since that policy contains no PREA content at all. CITATION FLAGGED in Revision 5. In the produced edition, 15 CCR 1353(c) is 'access to legal services,' which is not the resident education content this row scores. Either the subsection lettering changed in the January 2019 rewrite or the citation is to the wrong subsection. The substance of the finding is unaffected, because 1353 plainly requires orientation on the listed topics, but the pinpoint must be corrected against the current edition before it is quoted. RESOLVED in Revision 6. The lettering did change in the January 2019 rewrite. In the edition effective 01/01/2019, 1353(c) reads 'age appropriate information that explains the facility's policy prohibiting sexual abuse and sexual harassment and how to report incidents or suspicions of sexual abuse or sexual harassment,' which is exactly the content this row scores. The citation is correct for the current text and was correct all along; it was the 2014 edition that did not match.

Change log: FLAGGED in 5: 15 CCR 1353(c) reads 'access to legal services' in the produced edition; pinpoint needs correction against the current text. RESOLVED in 6: the 1353(c) flag is cleared. The 2019 rewrite moved it; the citation is correct for current text.

26. 28 CFR 115.333(b), (e)

Status	Addressed, Low priority
Departmental provision	PREA Policy II.B.3

The standard requires. Within 10 days of intake, provide comprehensive age-appropriate education, in person or by video, on the right to be free from sexual abuse and harassment and from retaliation, and on agency response procedures; maintain documentation of resident participation.

Divergence. The 10-day requirement, the in-person or video delivery option, and documentation of participation are all present.

28. 28 CFR 115.333(d), (f); 15 CCR 1353

Status	Addressed, Low priority

Departmental provision	PREA Policy II.B.2, II.B.4, II.B.5

The standard requires. Provide education in formats accessible to LEP, deaf, visually impaired, otherwise disabled, and limited-reading residents, and ensure key information is continuously and readily available through posters, handbooks, or other written formats.

Divergence. Resident handbook, posted PREA notices with reporting telephone numbers in housing units, clinic, visiting, mental health offices, and booking and release areas, and accommodations for LEP and disabled youth are all required by policy. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1353 is confirmed, including the requirement that orientation occur prior to placement in a living area and be given in both written and verbal form.

Change log: VERIFIED in 5: 15 CCR 1353 confirmed against source.

30. 28 CFR 115.335(a)-(d)

Status	Addressed, Low priority
Departmental provision	PREA Policy IX.A.1-4 and Note

The standard requires. Train all full- and part-time medical and mental health practitioners who work regularly in the facility to detect and assess signs of sexual abuse, preserve physical evidence, respond effectively to juvenile victims, and know how and to whom to report; document the training; ensure they also receive employee or contractor training.

Divergence. All four required subjects are stated, plus the forensic examination training and documentation caveat. Confirm training records for clinic and mental health staff are actually retained on file at YDF as the policy note requires.

Screening

36. 28 CFR 115.342(c); 15 CCR 1352(e)-(f)

Status	**Conflict, Critical priority**
Departmental provision	OO 1352 II.M (S-8), III.I; OO 1352.5 III.H; PREA Policy III.E

The standard requires. LGBTI residents shall not be placed in particular housing, bed, or other assignments solely on the basis of that identification or status, and such status shall not be considered an indicator of likelihood of being sexually abusive.

Divergence. Unchanged as a finding and now supported by a fourth internal contradiction. OO 1352 II.M creates classification S-8 for any LGBTQI youth and III.I requires single-room housing at all times for S-8. That conflicts with 115.342(c), with 15 CCR 1352(e), with the Purpose and Scope paragraph of OO 1352 itself, with PREA Policy III.E, and now with OO 1352.5 III.H, which states that staff shall not consider a youth's sexual orientation or gender identity as a reason to isolate or withhold program options. OO 1352.5 took effect March 1, 2019. OO 1352 created S-8 effective December 9, 2019 and

was revised February 27, 2020. The department adopted the correct rule first and then adopted the opposite rule twice afterward. Note that S-8 is materially broader than the OO 1352.5 III.I provision, because it sweeps in lesbian, gay, bisexual, and questioning youth for whom no anatomical privacy rationale exists at all. MATERIALLY STRENGTHENED in Revision 5 by verification against source. 15 CCR 1352(e) reads, in the edition effective April 1, 2014: 'provide that facility staff shall not separate youth from the general population or assign youth to a single occupancy room based solely on the youth's actual or perceived race, ethnic group identification, ancestry, national origin, color, religion, gender, sexual orientation, gender identity, gender expression, mental or physical disability, or HIV status.' The section then supplies its own carve-out: 'This section does not prohibit staff from placing youth in a single occupancy room at the youth's specific request or in accordance with Title 15 regulations regarding separation.' Two consequences. First, the chronology is far worse than Revision 4 recorded. This rule was not added by the 2019 Title 15 rewrite. It has been California law since at least April 1, 2014, five and a half years before OO 1352 created S-8 on December 9, 2019 and retained it on the February 27, 2020 revision. Second, the carve-out states the lawful alternative on the face of the regulation: individualized placement, or single-room housing at the youth's own request. S-8 is neither. A second and independent state hook is now confirmed: 1324(k) requires the policy and procedure manual itself to contain a non-discrimination provision barring discrimination on the same listed bases 'including restrictive housing or classification decisions based solely on any of the above mentioned categories.' S-8 is a classification decision based solely on a listed category, so it is both an operational violation of 1352(e) and a defect in the required contents of the manual under 1324(k). The 1324(k) route is the cleaner BSCC inspection finding because it does not depend on whether PREA binds a county facility. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1352(f) exists and is a third and independent hook on S-8: 'facility staff shall not consider lesbian, gay, bisexual, transgender, questioning or intersex identification or status as an indicator of likelihood of being sexually abusive.' If the S-series is a sexual-risk taxonomy, which the S-4 High and S-4 Low criteria indicate, then placing LGBTQI youth into that series at all is what 1352(f) forbids, independent of the housing consequence. Confirming that requires OO 1352, which has never been produced, so it is recorded as a hook to test rather than as a scored finding. CITATION CORRECTED in Revision 6, and this one was load-bearing. Revision 5 recorded the non-discrimination hook as 1324(h) from the 04/01/2014 edition. In the edition effective 01/01/2019, 1324(h) is 'trauma-informed approaches' and the non-discrimination provision is 1324(k). The 2019 text is also broader than the 2014 text, adding immigration status to the listed bases. Anything citing 1324(h) for this proposition, including redline change 1 as originally drafted, is wrong for the current edition. DISTINCTION WORTH HAVING READY, added in Revision 8. The department houses girls separately from boys, and someone will reasonably ask why that is lawful if categorical housing on a listed basis is not, since gender is on the 1352(e) and 1324(k) lists. The answer is in the operative words. 1352(e) bars separating a youth FROM THE GENERAL POPULATION or assigning to a SINGLE OCCUPANCY ROOM solely on a listed basis. A girls unit is a general population assignment and is neither of those things. S-8 is a single occupancy assignment made solely on a listed basis and is squarely both. Same list, opposite result, and the difference is the operational consequence rather than the category. This is the cleanest way to explain the finding to an administrator who pushes back. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: both halves of this conflict are now quotable. II.M "S-8 Other Guidelines" reads in full: "1. Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth to further protect against victimization/discrimination within the unit setting. a. See the Transgender and Intersex Youth Policy for housing guidelines." III.I "S-8 Housing and Security Guidelines" reads in full: "1. Any youth classified S-8 will require a single room (no roommate) housing at all times." The Purpose and Scope paragraph tracks 15 CCR 1352(e) almost verbatim, including the carve-out: "Classification Officers shall not separate youth from the general population or assign youth to a single occupancy room based solely on the youth's actual or perceived race, ethnic group

identification, ancestry, natural origin, color, religion, gender, sexual orientation, gender identity, gender expression, mental or physical disability, or HIV status. Staff are not prohibited from placing youth in a single occupancy room at the youth's specific request or in accordance with regulations regarding separation." FIFTH INTERNAL CONTRADICTION, NEW IN REVISION 9: II.M.1.a defers housing to the Transgender and Intersex Youth Policy, and III.I.1 then mandates single-room housing at all times. The same order both defers the housing decision and forecloses it. CORRECTION, AND IT REMOVES A THEORY FROM THIS ROW: Revision 6 recorded a 15 CCR 1352(f) hook reasoned on the S-series being a sexual-risk taxonomy. THAT REASONING FAILS. The S-series is a general security taxonomy: S-3 suicide, S-5 mental health, S-6 gang, S-7 medical. And II.M.1 states S-8's purpose as protection "against victimization/discrimination," which is the vulnerability framing 15 CCR 1350.5 requires, not the abusiveness framing 1352(f) forbids. On its face II.M is consistent with 1352(f). A STRONGER REPLACEMENT, GROUNDED IN THE ORDER'S OWN TEXT: III.I.1 and III.E.1.a are word-for-word identical, both reading "will require a single room (no roommate) housing at all times," and they are the ONLY two provisions in the entire order imposing that mandate. III.E.1.a governs S-4 High, which II.F.1 defines by "the youth's potential for sexually acting out against other youth and/or staff" and II.G.1 populates with documented sex offenses. So the order gives LGBTQI youth the identical housing restriction it reserves for adjudicated sex offenders, and gives it to no one else. That is the 1352(f) argument, and it no longer depends on an inference about what the S-series is. It is now a scored element of this row rather than a hook to test. Page 12 also confirms the chronology: the order "Amends/Replaces Previous Order: Classification System Title XV 1352, 10/01/2013," so S-8 was created in the 2019 rewrite, five and a half years after 15 CCR 1352(e) took effect on 04/01/2014, and was signed by the Chief Deputy on 02/27/2020.

Change log: REVISED in 3: OO 1352.5 III.H adds a fourth internal contradiction and a damaging chronology. MATERIALLY REVISED in 5: 15 CCR 1352(e) verified against source and dated to 04/01/2014, not 2019, so S-8 postdates the rule by five and a half years. 15 CCR 1324(h) added as an independent hook. 1352(f) not confirmed. CORRECTED in 6: 1324(h) is 1324(k) in the 2019 edition. 1352(f) confirmed and added as a third hook. REVISED in 8: added the general population versus single occupancy distinction. VERIFIED in 9 against the produced order: II.M, III.I and the Purpose paragraph quoted verbatim. Fifth internal contradiction added (II.M.1.a defers housing, III.I.1 forecloses it). CORRECTED in 9: the Revision 6 1352(f) taxonomy theory fails and is withdrawn; replaced by the stronger textual argument that III.I.1 and III.E.1.a are identical and unique in the order.

37. 28 CFR 115.342(d)-(g); 15 CCR 1352.5(a)-(e)

Status	Conflict, High priority
Departmental provision	OO 1352.5 II.A-D, III.A-K

The standard requires. Decide transgender and intersex facility, housing, and program assignments case by case considering health, safety, and management concerns; reassess at least twice yearly; give serious consideration to the resident's own views on safety; provide the opportunity to shower separately.

Divergence. Nearly everything required is present, and one provision undoes part of it. Present and in two places exceeding the standard: individualized assessment at admission with an Identity Preference Form (III.A); no automatic housing by external anatomy and documented reasons for any placement not matching gender identity (III.B); consideration of the youth's preferences and provider recommendations (III.C), which closes 115.342(f); housing based on individualized needs prioritizing emotional and physical safety and considering the youth's own perception of where they will be most

secure, documented in JPIP classification comments with date and justification (III.F); reassessment of placement and program assignment monthly or as needed (III.G), which exceeds the twice-yearly minimum at 115.342(e); a prohibition on considering sexual orientation or gender identity as a reason to isolate or withhold program options (III.H); private showers for all youth (III.J), which closes 115.342(g); and preservation of program participation despite private accommodations (III.K). The defect is III.I: all transgender and intersex youth shall be provided a single room. That is a categorical housing outcome assigned by status, which is what 115.342(c) and 15 CCR 1352(e) prohibit, and it contradicts III.B, III.F, and III.H within the same order. This version is more defensible than the S-8 mandate in OO 1352 because it is limited to transgender and intersex youth, states a privacy and safety rationale, and preserves program access, but categorical is still categorical. The fix is narrow: make a single room the presumptive result of the III.F individualized determination with documented reasons, rather than an automatic rule. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1352.5 exists, titled Transgender and Intersex Youth, running (a) to (e). Most relevant to this register: (c) requires staff to 'house youth in the unit or room that best meets their individual needs,' provides that staff 'may not automatically house youth according to their external anatomy,' requires documented reasons for any placement not matching gender identity, and requires consideration of the youth's preferences and of provider recommendations. That is an expressly individualized standard, which is what makes a categorical single-room rule a conflict with it. Revision 8 adds the housing context that makes this finding bite harder. The department houses girls separately from boys, so a transgender or intersex youth is the case the system has no default for, and III.I resolves it by assigning a single room by status rather than by the individualized determination III.B and III.F require. Where every other resident is housed in general population by sex, that difference is the whole finding. Recommended change 2 makes single occupancy the presumptive outcome of the III.F determination instead.

Change log: MATERIALLY REVISED in 3: was Not Evidenced. OO 1352.5 largely closes the standard; III.I is a discrete conflict. FLAGGED in 5: 15 CCR 1352.5 not confirmed; absent from the produced edition. REVISED in 6: 1352.5 confirmed and quoted. 1352.5(c) is the individualized standard the III.I categorical rule conflicts with. REVISED in 8: sex-segregated housing context added.

80. 28 CFR 115.341(c), 115.342; 15 CCR 1350.5(a)

Status	Conflict, High priority
Departmental provision	OO 1352 II.F.2 and note; II.G, II.H (S-4 High and S-4 Low criteria); III.E

The standard requires. Screen for prior sexual victimization and for prior sexual abusiveness as distinct risk factors, and use the results to keep residents safe; do not treat a youth's own victimization as an indicator of likely abusiveness.

Divergence. Two problems in the S-4 classification. First, the note at II.F.2 states that a youth with a history of being a victim of molest, arson, or cruelty to animals 'should alert the Classification Officer for possible sexually inappropriate tendencies.' That instructs staff to treat a youth's own sexual victimization as a predictor of sexual abusiveness. The Macdonald triad on which the molest, arson, and animal cruelty grouping rests has not held up, and the victim-to-perpetrator inference runs against 115.341(c), which lists prior victimization and prior abusiveness as separate factors serving different purposes. In litigation this single sentence is a gift to a plaintiff's expert. Second, S-4 as a code mixes populations: S-4 High captures youth with sex offense adjudications, while S-4 Low captures both youth who act out sexually and youth who have been victims of sexual abuse or are susceptible to victimization. To the department's credit the housing matrix at III.E keeps S-4 Low away from S-4 High

and from S-3 moderate and high and S-5, so the operational outcome is sound. The defect is in the classification logic and its documentation, which will not survive an auditor tracing how victimization risk and abusiveness risk are separately assessed and separately acted on. Split the code and delete the note. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1350.5 exists, titled Screening for the Risk of Sexual Abuse, requiring assessment of each youth within 72 hours of admission against eleven listed factors at (a) to (k). Two are worth noting for this register: (a) is 'Prior sexual victimization or abusiveness,' and (b) is gender nonconforming appearance or LGBTQI identification 'and whether the youth may, therefore, be vulnerable to sexual abuse.' The state text treats LGBTQI status as a vulnerability factor, never as an abusiveness indicator. It also requires controls on dissemination so the information is not 'exploited to the youth's detriment by staff or other youth.' VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1350.5(a) lists 'Prior sexual victimization or abusiveness' as a single screening factor and 1350.5(b) treats LGBTQI identification as bearing on whether a youth 'may, therefore, be vulnerable to sexual abuse.' The state text therefore uses victimization to assess vulnerability, never abusiveness, which is the same separation 115.341(c) draws. A further and independent hook now confirmed: 1352(f) provides that 'facility staff shall not consider lesbian, gay, bisexual, transgender, questioning or intersex identification or status as an indicator of likelihood of being sexually abusive.' That provision does not reach the II.F.2 molest-victim note directly, because that note turns on victimization history rather than LGBTQI status, but it establishes that California has legislated against precisely this species of inference inside the classification section. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the note at II.F.2 reads, in bold in the original: "Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies." The finding is confirmed and the wording is now exact. WORSE THAN RECORDED, NEW IN REVISION 9: the victim-to-perpetrator inference appears TWICE, not once. Besides the note, II.F.2 lists the criteria for an S-4 classification as "a. A current sexual offense; b. Prior history of sexual offense(s); c. Sexual acting out in an institutional/placement setting; d. History of victimization related to sexual abuse or a sexual offense." Criterion (d) puts the youth's own victimization into the S-4 determination as a lettered criterion, alongside three abusiveness criteria, independently of the note. Striking the note alone leaves the defect in force. The order then contradicts itself on the same fact: II.H.3 makes "any youth who has been the victim of any CPS referral relative to sexual abuse or has been the victim of any sustained sex offense" a criterion for S-4 Low, which the III.E.2 housing matrix treats protectively. So victimization history is used once as an abusiveness indicator and once as a vulnerability indicator, in the same classification, in the same order. The S-4 High and S-4 Low split the register described is confirmed and is sounder than the label suggests, but II.H.2 undercuts it by placing perpetrator conduct, "masturbation in front of others, exposing genitals, or continued sexual comments for the purpose of arousal," in the same Low tier as the two victimization criteria.

Change log: NEW in revision 2, from OO 1352. FLAGGED in 5: 15 CCR 1350.5 not confirmed; absent from the produced edition. REVISED in 6: 1350.5 confirmed and quoted. 1352(f) added as adjacent state authority against status-based abusiveness inference. VERIFIED in 9 against the produced order: II.F.2 note quoted exactly. EXPANDED in 9: II.F.2.d is a second, independent instance of the same inference in the lettered criteria, and II.H.3 uses the same fact for the opposite purpose. Redline 6 struck only the note and has been corrected.

32. 28 CFR 115.341(b)

Status	Not Addressed, Critical priority

Departmental provision	OO 1352 I.B.6 (MAYSI-2), I.B.12 (CATS, ATV), II.F-H (S-4 criteria)

The standard requires. Assessments shall be conducted using an objective screening instrument.

Divergence. The department does use objective instruments, but none of them screens for sexual abuse risk. MAYSI-2 is administered, scored, and acted on before any housing assignment, and CATS and ATV are completed at classification, but these are mental health, suicide, trauma, and violence instruments. The S-4 classification supplies structured criteria for sexual risk and is the closest thing in the packet to an instrument, but it is applied on a totality-of-circumstances judgment by the Classification Officer rather than through a scored instrument, and it does not capture the 11 factors of 115.341(c) and 15 CCR 1350.5. Adopt a validated or structured sexual abuse risk instrument producing a documented, reviewable output. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the instruments are confirmed. I.B.6 requires the MAYSI-2 be "administered, scored, and an appropriate response initiated prior to assigning any youth to a housing unit," with the Scores by Factors report filed. I.B.12 requires the Child and Adolescent Trauma Screen and the Alternatives to Violence assessment. II.F.1 carries the note "The totality of circumstances will allow the Classification Officer and/or Supervisor to determine this classification," which confirms that the S-4 decision is a judgment rather than a scored instrument output. NEW IN REVISION 9, AND IT IS THE structural point: OO 1352 never once references OO 1350.5, the Screening for the Risk of Sexual Abuse order, anywhere in its twelve pages. The order that performs the sexual abuse risk screening and the order that makes the housing, bed and program assignments the screening is supposed to drive do not cite each other in either direction. 115.341 requires the screening results to inform exactly those assignments. The link may well exist in practice; it does not exist on paper, and an auditor tracing a screening result to a housing decision has nothing written to follow.

Change log: REVISED: gap text updated to credit MAYSI-2, CATS, ATV, and the S-4 criteria while explaining why none satisfies the standard. VERIFIED in 9 against the produced order: I.B.6, I.B.12 and the II.F.1 totality note quoted. NEW in 9: OO 1352 contains no reference to OO 1350.5 anywhere, so the screening-to-classification link is undocumented in both directions.

31. 28 CFR 115.341(a); 15 CCR 1350.5

Status	Partial, High priority
Departmental provision	OO 1350.5 I.A; OO 1352 (Classification) V.A-C

The standard requires. Within 72 hours of arrival and periodically throughout confinement, obtain and use information about each resident's personal history and behavior to reduce the risk of sexual abuse by or upon that resident.

Divergence. The 72-hour initial assessment is required and matches Title 15. On periodic reassessment, OO 1352 V now supplies a partial answer: a classification review at 90 days and every 90 days thereafter, following any major disciplinary action or emergency circumstance, and on the request of a Duty Supervisor, Mental Health, or Medical staff. Two limits. First, most youth are released well before 90 days, so the interval review will rarely trigger. Second, this is a security classification review, not a reassessment against the 11 sexual abuse risk factors. Add an express PREA reassessment trigger set: on receipt of new information, after any sexual abuse allegation or incident, on referral by staff or a clinician, and at the youth's request. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the

post-rewrite edition: 1350.5 exists, titled Screening for the Risk of Sexual Abuse, requiring assessment of each youth within 72 hours of admission against eleven listed factors at (a) to (k). Two are worth noting for this register: (a) is 'Prior sexual victimization or abusiveness,' and (b) is gender nonconforming appearance or LGBTQI identification 'and whether the youth may, therefore, be vulnerable to sexual abuse.' The state text treats LGBTQI status as a vulnerability factor, never as an abusiveness indicator. It also requires controls on dissemination so the information is not 'exploited to the youth's detriment by staff or other youth.' VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the reassessment cycle is confirmed and is better than this row assumed. V.A requires a classification review of each youth detained more than ninety days and every ninety days thereafter. V.B requires review "following any major disciplinary actions or emergency circumstances." V.C requires review on the request of a Duty Supervisor "regardless of circumstances," or when requested by Mental Health or Medical staff. IV.A adds review on a legal status change. So there are four independent triggers, three of them event-driven rather than calendar-driven, and the Mental Health and Medical request route is the one that matters most for a youth whose vulnerability emerges after intake.

Change log: REVISED: OO 1352 V classification review cycle credited; gap narrowed and sharpened. FLAGGED in 5: 15 CCR 1350.5 not confirmed; absent from the produced edition. REVISED in 6: 1350.5 confirmed against the 2019 edition and quoted. VERIFIED in 9 against the produced order: V.A, V.B, V.C and IV.A quoted. Four reassessment triggers confirmed, three event-driven. Status held at Partial.

35. 28 CFR 115.342(b), (h)-(i); 15 CCR 1354, 1354.5; WIC 208.3

Status	Partial, High priority
Departmental provision	PREA Policy III.D; OO 1352 III.E.1.a (S-4 High single room), III.I (S-8 single room); OO 1354.5 (Room Confinement, eff. 04/05/2023) I.A-E, II.A-K, III.A

The standard requires. Isolate residents only as a last resort when less restrictive measures are inadequate and only until an alternative can be arranged; do not deny daily large-muscle exercise or legally required education; provide daily visits from a medical or mental health clinician; document the basis for the safety concern and why no alternative separation is available; review every 30 days.

Divergence. Materially improved by OO 1354.5, effective April 5, 2023, which was not available for revisions 1 through 3. What that order supplies: room confinement only on enumerated criteria, with less restrictive options attempted and exhausted (I.A), which is the last resort standard; an express prohibition on confinement for punishment, coercion, convenience, or retaliation by staff, and on confinement that compromises the youth's mental or physical health (I.C), tracking WIC 208.3; thorough documentation in an Institutional Incident Report including the time placed and the time removed, imposed only by a supervisor or Watch Commander (I.B); and for extended room confinement beyond four hours, documented justification (II.E), imposition only by a YDF manager (II.G), documented manager authorization for the initial extension and again every four hours thereafter carrying the justification, the basis for the extension, and the date and time the youth is authorized to return to full programming (II.K), an individualized reintegration plan with goals and objectives (II.H.4, II.K.3), and immediate discontinuance once the youth can safely return (II.H.5). III.A guarantees one hour of large muscle exercise, education including individual instruction in the unit day space or the youth's room where classroom attendance is unsafe, and access to medical services and mental health counseling. The four-hour review cycle and the documented supervisor authorization that revision 3 recorded as missing are therefore present, and the WIC 208.3 interaction that revision 3 said the PREA policy did not address is now addressed in a current order. Two defects persist and one is new. First, III.A guarantees access to medical services and mental health counseling, where the

standard requires daily visits from a medical or mental health clinician. Access is a weaker duty than an affirmative daily visit, and on its face weaker than the regular visits language in PREA Policy III.D that revision 3 already scored as insufficient. Second, no provision expressly requires documentation of why no alternative separation could be arranged, which 115.342(h) requires, although I.A.4 makes exhaustion of less restrictive options a criterion and I.B requires thorough IIR documentation, so this is close. Third and most significant for PREA: OO 1354.5 defines Separation in its definitions section, expressly including protective custody, and then regulates only Room Confinement and Extended Room Confinement. None of the safeguards above attach to a protective separation, which is the placement this standard actually governs. OO 1352's categorical single-room rules for S-4 High and S-8 remain in place and remain the other half of this finding. OO 1354, still outstanding, is the document that would close the scope hole. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1354 requires written policies and procedures addressing separation 'for reasons that include, but are not be limited to, medical and mental health conditions, assaultive behavior, disciplinary consequences and protective custody,' provides that 'Separated youth shall not be denied normal privileges available at the facility, except when necessary to accomplish the objective of separation,' and requires that policies 'ensure a daily review of separated youth to determine if separation remains necessary.' This confirms and sharpens the Revision 4 finding. OO 1354.5's definition of Separation tracks the 1354 list almost verbatim, so the department took the scope from 1354 and then wrote safeguards for only one branch of it. The daily review obligation attaches to all separated youth, including protective custody, and is the specific provision OO 1354 must be shown to implement. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1354.5 exists, titled Room Confinement, and tracks WIC 208.3: (a)(1) room confinement only after less restrictive options are attempted and exhausted, (a)(2) never for punishment, coercion, convenience, or retaliation by staff, (a)(3) never to the extent it compromises the youth's mental and physical health, (b) a four-hour ceiling before staff must return the youth to general population, consult mental health or medical staff, or build an individualized reintegration plan, and (b)(4)(C) documented authorization by the facility superintendent or designee every four hours thereafter. OO 1354.5 tracks the regulation closely. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1354 runs (a) to (f) and is more useful than the 2014 text this register was built on. (a) separation for reasons including protective custody. (b) consideration of positive youth development and trauma-informed care, which is new. (c) separated youth shall not be denied normal privileges available at the facility except when necessary to accomplish the objective of separation. (d) is new and provides that where the objective of separation is discipline, section 1390 applies. (e) is new and provides that where separation results in room confinement, WIC 208.3 and section 1354.5 apply. (f) requires a daily review of separated youth to determine whether separation remains necessary. The structural consequence matters for this row: (d) and (e) route disciplinary separation and room confinement elsewhere, so separation that is neither, which is the protective custody placement at issue here, is governed by 1354 itself through the (c) privileges rule and the (f) daily review. The state does regulate this placement. What is missing is the departmental order implementing it, and OO 1354 has still never been produced. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: III.E.1.a reads "Any youth classified S-4 high will require a single room (no roommate) housing at all times" and III.I.1 reads "Any youth classified S-8 will require a single room (no roommate) housing at all times." The two are word-for-word identical and are the only provisions in the order imposing that mandate; every other classification is written permissively, with supervisor approval and documentation in the resident's Classification sheet and the unit Red Book. III.D.8 supplies a general deviation rule: "Deviation from the above housing patterns must be approved and documented by a supervisor on the classification form." That rule is attached to the S-3 matrix and is not extended to III.E.1.a or III.I.1, so the two "at all times" mandates have no written override path at all. OO 1354 is still outstanding.

Change log: REVISED: OO 1352 categorical single-room rules added to the gap. REVISED in 4: OO 1354.5 reviewed. Four-hour cycle, supervisor authorization, exercise, education, and the punitive-use prohibition are now documented. Daily clinician visits still missing, and OO 1354.5 excludes protective separation from its own scope. VERIFIED in 5: 15 CCR 1354 confirmed against source, including the daily review duty covering protective custody. 1354.5 not confirmed. REVISED in 6: 1354.5 confirmed against the 2019 edition and quoted. REVISED in 7: 1354 re-verified against the 2019 edition, now (a) to (f). New (d) and (e) show 1354 itself governs non-disciplinary, non-confinement separation. VERIFIED in 9 against the produced order: III.E.1.a and III.I.1 quoted and confirmed identical. NEW in 9: the III.D.8 deviation rule is not extended to either "at all times" mandate.

33. 28 CFR 115.341(c)-(e); 15 CCR 1350.5(a)-(k)

Status	Addressed, Low priority
Departmental provision	OO 1350.5 I.A.1-11

The standard requires. Ascertain the 11 enumerated risk factors through intake conversations, medical and mental health screenings, classification assessments, and record review; control dissemination of the responses so sensitive information is not exploited to the youth's detriment.

Divergence. All 11 factors are reproduced and the information-source language tracks the regulation. Note the operational order omits the Title 15 sentence on controls over dissemination that appears in the Purpose and Scope section only as 'all classification material shall be confidential.' Restating the dissemination-control duty as an operative requirement would close the residual exposure. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1350.5 exists, titled Screening for the Risk of Sexual Abuse, requiring assessment of each youth within 72 hours of admission against eleven listed factors at (a) to (k). Two are worth noting for this register: (a) is 'Prior sexual victimization or abusiveness,' and (b) is gender nonconforming appearance or LGBTQI identification 'and whether the youth may, therefore, be vulnerable to sexual abuse.' The state text treats LGBTQI status as a vulnerability factor, never as an abusiveness indicator. It also requires controls on dissemination so the information is not 'exploited to the youth's detriment by staff or other youth.'

Change log: FLAGGED in 5: 15 CCR 1350.5 not confirmed; absent from the produced edition. REVISED in 6: 1350.5 confirmed against the 2019 edition and quoted.

34. 28 CFR 115.342(a); 15 CCR 1352

Status	Addressed, Low priority
Departmental provision	OO 1352 (Classification), Purpose and Scope; I.B.9-11

The standard requires. Use screening information to make housing, bed, program, education, and work assignments with the goal of keeping residents safe from sexual abuse.

Divergence. The Purpose and Scope paragraph states that the Classification Officer shall use all information obtained to make housing, bed, program, education, and work assignments for youth with the goal of keeping all youth safe and free from sexual abuse in accordance with the Prison Rape Elimination Act. That is the standard almost verbatim. One tightening step: OO 1350.5 should cross-reference OO 1352 so the screening output is expressly an input to classification. VERIFIED in Revision

9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the Purpose and Scope paragraph reads "The Classification Officer shall use all information obtained to subsequently make housing, bed, program, education, and work assignments for youth with the goal of keeping all youth safe and free from sexual abuse in accordance with the Prison Rape Elimination Act," confirming the near-verbatim adoption this row credits. I.B.9 to I.B.11 are confirmed as the assignment and recording duties. The classification factors are enumerated as "age, maturity, sophistication, emotional stability, program needs, legal status, public safety considerations, gender and gender identity," on an express "including but not limited to" basis. The tightening step this row already recommends is now confirmed to be needed in both directions: OO 1352 does not reference OO 1350.5 either. See row 32.

Change log: MATERIALLY REVISED: was Partial / High. OO 1352 states the standard nearly verbatim. VERIFIED in 9 against the produced order: Purpose and Scope, I.B.9-11 and the classification factor list quoted. Status and priority unchanged.

Reporting

44. 28 CFR 115.353(c)

Status	Not Addressed, High priority
Departmental provision	OO 1361 I.C names WEAVE; no MOU located

The standard requires. Maintain or attempt to enter into memoranda of understanding or other agreements with community service providers able to provide confidential emotional support services related to sexual abuse; maintain copies of the agreements or documentation of attempts.

Divergence. No MOU requirement and no evidence of an MOU with a rape crisis center or victim services provider, or of documented attempts to obtain one. Auditors request the agreement or the attempt documentation as a document review item and there is no way to pass this standard without one on file. The good news is that OO 1361 already names WEAVE as an available confidential support line, so an operating relationship exists in some form and formalizing it should be a short task rather than a new partnership.

Change log: REVISED: was Critical. WEAVE relationship already referenced in policy, so this is a documentation task.

46. 28 CFR 115.354; 15 CCR 1324(n)

Status	Not Addressed, High priority
Departmental provision	None

The standard requires. Establish a method to receive third-party reports of sexual abuse and sexual harassment and distribute publicly information on how to report on behalf of a resident.

Divergence. No third-party reporting method and no publicly distributed information on how a parent, attorney, advocate, or community member reports on a youth's behalf. OO 1361 addresses only youth-filed grievances. 15 CCR 1324(n) independently requires a provision for reporting by a third party. The OYCR Ombudsperson does accept complaints from families, staff, and others under WIC 2200(d)(2), which helps, but the standard obliges the agency itself to establish a receiving method and to publish

how to use it. A dedicated web page and a posted telephone number closes this. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1324(n) exists and reads 'establishment of a policy that prohibits all forms of sexual abuse, sexual assault and sexual harassment. The policy shall include an approach to preventing, detecting and responding to such conduct and any retaliation for reporting such conduct, as well as a provision for reporting such conduct by youth, staff or a third party.' Note what the text does not do: it does not name a victim, so unlike the federal definitions it is not written as resident-protective on its face. Whether BSCC reads it to reach conduct directed at staff is untested and is not asserted here.

Change log: REVISED: was Critical. OYCR Ombudsperson provides a partial external route; agency-side method and publication still required. FLAGGED in 5: 15 CCR 1324(n) not confirmed; produced edition ends 1324 at (j). REVISED in 6: 1324(n) confirmed against the 2019 edition and quoted.

38. 28 CFR 115.351(a); 15 CCR 1361(h)

Status	Partial, Medium priority
Departmental provision	OO 1361 (Grievances) I.C, I.D, II.A, II.B; PREA Policy II.B.2; Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Resident Grievances or Complaints; Non-Discretionary Referral to Internal Affairs

The standard requires. Provide multiple internal ways for residents to privately report sexual abuse and sexual harassment, retaliation, and staff neglect or violation of responsibilities that may have contributed to an incident.

Divergence. OO 1361 I.C is strong: a youth reporting sexual assault or sexual harassment may use the grievance process in addition to telephone and in-person reporting, and may report to probation, medical, or mental health staff. I.D requires grievance forms to be accessible in each living unit without asking staff. II.B allows the youth to place the grievance in the secured box personally. II.A requires staff assistance within two hours of request. That is multiple private internal routes. Remaining gap: the standard also requires internal routes for reporting retaliation and for reporting staff neglect or violation of responsibilities that may have contributed to an incident. Neither is named as separately reportable. Internal Complaints narrows the retaliation element. It makes retaliation for filing a grievance a non-discretionary referral to the Assistant Division Chief of Internal Affairs, which gives a resident complaint about retaliation a mandatory destination once it is made. It does not make retaliation a separately reportable category within the resident-facing reporting routes, which is what this standard requires, and it does not name staff neglect or violation of responsibilities as reportable. Its resident grievance section also inserts a review gate: a grievance alleging staff misconduct is forwarded to an institutional manager for review, and only if that manager determines misconduct is alleged or present does the matter become a personnel complaint. For a sexual abuse allegation that gate should not exist, and removing it belongs in the same amendment as the OO 1361 rebuild. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1361(h) exists and reads 'the policy shall provide multiple internal and external methods to report sexual abuse and sexual harassment. Whether or not associated with a grievance, concerns of parents, guardians, staff or other parties shall be addressed and documented in accordance with written policies and procedures within a specified timeframe.' That supplies a state hook for three things this register previously scored as federal-only: external reporting methods, third-party concerns including parents and guardians, and staff reporting.

Change log: REVISED: was Partial / High. OO 1361 supplies multiple internal private routes; gap narrowed to retaliation and staff-neglect reporting. REVISED in 4: Internal Complaints reviewed.

Retaliation now has a mandatory destination once reported. New observation: an institutional manager review gate sits ahead of the personnel complaint route. FLAGGED in 5: 15 CCR 1361(h) not confirmed; produced edition ends 1361 at (f). REVISED in 6: 1361(h) confirmed against the 2019 edition and quoted.

39. 28 CFR 115.351(b); 15 CCR 1361(h)

Status	Partial, High priority
Departmental provision	OO 1361 I.C (WEAVE, Office of the Inspector General); OYCR Ombudsperson per department; attorney access

The standard requires. Provide at least one way for residents to report abuse or harassment to a public or private entity or office not part of the agency, able to receive and immediately forward reports to agency officials, allowing the resident to remain anonymous on request.

Divergence. Updated on department information: youth advocates no longer exist, and external access now consists of the Office of Youth and Community Restoration Ombudsperson, attorney access, and the WEAVE and Inspector General lines named in OO 1361 I.C. Assessment of each against the standard, which requires an entity not part of the agency, able to receive and immediately forward reports to agency officials, with anonymity available on request. The OYCR Ombudsperson is the right answer and very likely satisfies it: a state office with statutory authority under WIC 2200 and following to receive complaints from youth in any juvenile facility, independent of the department, with a toll-free number WIC 224.72 already requires be posted. Attorney access does not satisfy it, because counsel represents the youth and is not a channel that forwards reports to agency officials. WEAVE satisfies 115.353(a) outside support, not this standard. Three steps close it: name the OYCR Ombudsperson in OO 1361 I.C and correct or remove the Office of the Inspector General reference, whose statutory oversight runs to CDCR; obtain written confirmation from the Ombudsperson's office of its forwarding practice and its handling of anonymous complaints; and state in policy that a youth may remain anonymous on request. This is a drafting and confirmation task, not a construction task. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1361(h) exists and reads 'the policy shall provide multiple internal and external methods to report sexual abuse and sexual harassment. Whether or not associated with a grievance, concerns of parents, guardians, staff or other parties shall be addressed and documented in accordance with written policies and procedures within a specified timeframe.' That supplies a state hook for three things this register previously scored as federal-only: external reporting methods, third-party concerns including parents and guardians, and staff reporting.

Change log: REVISED in 3: youth advocates eliminated; OYCR Ombudsperson identified as the operative channel. Path to closure is now specific. FLAGGED in 5: 15 CCR 1361(h) not confirmed; produced edition ends 1361 at (f). REVISED in 6: 1361(h) confirmed against the 2019 edition and quoted.

40. 28 CFR 115.351(c)-(d)

Status	Partial, Medium priority
Departmental provision	OO 1361 I.C, I.D, II.A, II.B; PREA Policy V.A.3

The standard requires. Staff shall accept reports made verbally, in writing, anonymously, and from third parties, and shall promptly document verbal reports; the facility shall provide residents access to the tools necessary to make a written report.

Divergence. Free access to grievance forms in every living unit (I.D), confidential deposit in the secured box (II.B), staff assistance within two hours (II.A), and verbal and in-person reporting (I.C) are all covered, which satisfies 115.351(d) and much of (c). Remaining gap: no statement that staff shall accept anonymous reports and third-party reports, and no requirement that verbal reports be promptly documented. Verbal reporting is authorized by I.C but nothing says what the receiving staff member must then write down.

Change log: REVISED: was Partial / High. OO 1361 closes the tools-and-access half; gap narrowed to anonymous, third-party, and documentation of verbal reports.

41. 28 CFR 115.351(e)

Status	Partial, High priority
Departmental provision	Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Non-Discretionary Referral to Internal Affairs; Personnel Complaint Intake Form

The standard requires. Provide a method for staff to privately report sexual abuse and sexual harassment of residents.

Divergence. Upgraded from Not Addressed. Revision 3 recorded that staff had no private channel and named the cheap fix as a confidential line, a named recipient outside the chain, or an express route to Internal Affairs stated in policy. The Internal Complaints policy supplies the third of those. Any internally generated complaint where staff misconduct is alleged or present shall be referred to the Assistant Division Chief of Internal Affairs where the matter involves unreasonable use of force, threats of violence toward a resident, retaliation for filing a grievance, or criminal conduct, documented on a Personnel Complaint Intake Form and forwarded to the Internal Affairs Manager. Staff sexual abuse of a resident is criminal conduct, so the route is mandatory and the recipient is named and sits outside the living unit chain. That is a method within the meaning of the standard. What is still missing is the privacy the standard exists to provide. The policy nowhere states that the route is confidential, does not say who makes the referral or that any employee may make it directly, and does not address the case the standard is written for, where the suspected abuser is the reporting employee's supervisor or the institutional manager to whom resident grievances are routed for review. The residual fix is narrow: state in policy that any employee may report directly and confidentially to Internal Affairs without going through the chain of command and that no supervisor may impede or inhibit the report, which also aligns the department with PC 11166(i)(1). Priority is held at High notwithstanding the narrowing, because the part that remains open is precisely the scenario the standard protects. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1361(h) requires the policy to 'provide multiple internal and external methods to report sexual abuse and sexual harassment' and requires that concerns of 'parents, guardians, staff or other parties' be addressed and documented within a specified timeframe. Staff are named in the state text, so a staff reporting route is a Title 15 requirement and not only a PREA one. 1324(n) independently requires a provision for reporting 'by youth, staff or a third party.'

Change log: REVISED in 3: downgraded from Partial. The advocates credited in revision 2.1 no longer exist. REVISED in 4: upgraded from Not Addressed to Partial. Internal Complaints supplies the express, mandatory route to Internal Affairs that revision 3 identified as a sufficient fix. Privacy is still not stated.

Priority held at High. REVISED in 6: 1361(h) and 1324(n) added as confirmed state hooks. Staff reporting is named in both, so this is a Title 15 defect too.

42. 28 CFR 115.352(a)-(g); 15 CCR 1361

Status	Partial, High priority
Departmental provision	OO 1361 (Grievances), I.A, II.B, II.D, II.F, IV; Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Resident Grievances or Complaints

The standard requires. No time limit on filing a sexual abuse grievance; no requirement to use an informal process or resolve with staff; the grievance may not be submitted to or referred to the staff member who is its subject; final agency decision within 90 days with a permitted 70-day extension on written notice; third parties, including parents and legal guardians, may file; emergency grievances alleging substantial risk of imminent sexual abuse get an initial response within 48 hours and a final decision within 5 calendar days; discipline for filing only on a demonstrated bad-faith showing.

Divergence. Now assessable. Met: no time limit on filing (I.A); confidential submission that does not pass through the subject staff member (II.B) and assignment only to staff not directly involved in the circumstances (II.F.2.a), which satisfies 115.352(c); appeal heard by a person not directly involved, escalating to the Assistant Division Chief with a five-day decision (IV). The three-business-day initial response and ten-business-day resolution sit comfortably inside the 90-day federal cap. Remaining gaps: (1) no emergency grievance track for an allegation of substantial risk of imminent sexual abuse, which requires immediate forwarding to a level where corrective action can be taken, an initial response within 48 hours, and a final decision within five calendar days, with both documenting the risk determination and the action taken; I.C's 'health and safety issues must be addressed immediately' is close but is not the standard; (2) the extension in II.D, 'unless circumstances dictate a longer time frame,' has no outer bound, whereas PREA caps extensions at 70 days with written notice and a stated decision date; (3) no statement that a youth alleging sexual abuse is not required to use the informal process first, which matters because the order's Purpose and the 'Your Voice' track both push toward informal resolution; (4) no third-party filing right and, in particular, no right for a parent or legal guardian to file a sexual abuse grievance and appeal on the youth's behalf without the youth's agreement, which 115.352(e)(4) requires; (5) no bad-faith-only rule for disciplining a grievant, which interacts with the PREA Policy XIV.A conflict below. Internal Complaints, now reviewed, closes none of the five gaps above. It directs that resident grievances be handled first under the Juvenile Institutions Grievance Policy, and adds one provision worth keeping in the rebuild: every attempt shall be made to interview the grievant and identified resident witnesses regardless of whether they have been released. It also inserts the institutional manager review gate described at row 38, which sits awkwardly against the duty to accept and process a sexual abuse grievance and should be expressly excepted for those allegations. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1361 is confirmed as cited, running (a) to (f). 1361(b) is directly relevant and was not previously drawn out: it requires that 'the youth shall have the option to confidentially file the grievance.' The confidential filing option is therefore already a state requirement, which narrows what OO 1361 has to add. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1361(h) supplies state authority for two of the five open gaps in this row. It requires 'multiple internal and external methods to report sexual abuse and sexual harassment,' which reaches the external reporting gap, and it requires that concerns of 'parents, guardians, staff or other parties' be addressed and documented within a specified timeframe 'whether or not associated with a grievance,'

which reaches the third-party filing gap. It does not supply the emergency grievance track, the outer bound on the extension, or the bad-faith-only discipline rule; those remain federal-only.

Change log: MATERIALLY REVISED: was Not Evidenced / Critical. OO 1361 reviewed; four of the standard's elements are met and five discrete gaps remain. REVISED in 4: Internal Complaints reviewed. None of the five gaps close. VERIFIED in 5: 15 CCR 1361 confirmed against source; 1361(b) confidential filing option added. REVISED in 6: 1361(h) added as a confirmed state hook reaching the external reporting and third-party filing gaps.

82. 28 CFR 115.351(b), 115.353(a); WIC 224.71, 224.72, 2200

Status	Partial, Medium priority
Departmental provision	Resident Orientation Handbook (confirmed to contain the Youth Bill of Rights; document not yet produced); OO 1352 I.B.8; PREA Policy II.B

The standard requires. Provide every youth an age and developmentally appropriate orientation including an explanation and copy of the Youth Bill of Rights; post the listing of rights conspicuously including in classrooms and living units; include a copy in orientation packets for parents and guardians; make copies available in visiting areas in English, Spanish, and other languages; post the OYCR Ombudsperson toll-free number. The enumerated rights include freedom from sexual abuse and the right to contact ombudspersons and other advocates free from retaliation.

Divergence. Confirmed by the department: the Resident Orientation Handbook contains the Youth Bill of Rights. Combined with OO 1352 I.B.8, which requires the Classification Officer to provide the handbook with a signed acknowledgement placed in the youth's file, that satisfies the core of WIC 224.72(a), the age and developmentally appropriate orientation including an explanation and copy of the rights, and creates the documentation an auditor would ask for. Three narrower elements of 224.72 remain to be verified rather than built: (b) the rights listing posted in a conspicuous location including classrooms and living units, which is separate from the handbook and separate from the PREA posters required at PREA Policy II.B.4; (c) a copy of the rights included in orientation packets provided to parents or guardians; and copies made available in the visiting areas in English, Spanish, and other languages as necessary. Also confirm the handbook edition in use reflects the current 224.71, which includes the right at subdivision (k) to contact ombudspersons, expressly including the Division of the Ombudsperson of the Office of Youth and Community Restoration, free from retaliation. That right connects directly to the external reporting channel discussed at 115.351(b).

Change log: REVISED in 2.1: was Not Evidenced / High. Department confirmed the handbook carries the Youth Bill of Rights; remaining items are posting, parent packets, and translations.

45. 28 CFR 115.353(d); 15 CCR 1356, 1377

Status	Not Evidenced, Low priority
Departmental provision	Not provided (Access to Legal Services policy not in packet)

The standard requires. Provide residents reasonable and confidential access to attorneys or other legal representation and reasonable access to parents or legal guardians.

Divergence. Likely addressed by the Access to Legal Services and Visiting policies under 15 CCR 1377 and 1374, which were not provided.

43. 28 CFR 115.353(a)-(b)

Status	Addressed, Low priority
Departmental provision	PREA Policy XVI.A; OO 1361 I.C (WEAVE)

The standard requires. Provide residents access to outside victim advocates by posting or otherwise making accessible mailing addresses and telephone numbers, including toll-free hotlines, of local, state, or national victim advocacy or rape crisis organizations; enable communication in as confidential a manner as possible; inform residents of the extent to which communications are monitored.

Divergence. Mailing addresses and hotline numbers must be made available, communications kept as confidential as possible, and residents informed that communications are monitored. OO 1361 I.C strengthens this by naming WEAVE as free confidential telephone support. Specify posting locations to match the PREA poster locations in PREA Policy II.B.4, and add the OYCR Ombudsperson toll-free number, which WIC 224.72 already requires be posted.

Change log: REVISED: OO 1361 naming of WEAVE credited.

Official Response

48. 28 CFR 115.361(b); PC 11164 et seq.; PC 11166(a); PC 11165.9

Status	**Conflict, Critical priority**
Departmental provision	PREA Policy V.A.4-5; OO 1453 (Sexual Assault) I.A.9; Code of Conduct VII.A.1-5

The standard requires. Require all staff to comply with applicable mandatory child abuse reporting laws.

Divergence. Worse than earlier revisions showed. The 24-hour Child Protective Services timeline now appears in two separate departmental documents. PREA Policy V.A.4 states it, and OO 1453 I.A.9 restates it: all incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours, with the written report within 36 hours. Penal Code 11166(a) requires the telephone report immediately or as soon as is practicably possible. OO 1453 was last revised December 9, 2019, six years after the PREA policy, so the department restated the error rather than catching it on review. The department's own Code of Conduct at VII.A.1 states the standard correctly, so three departmental documents now address the same duty and two of them are wrong. Separately, PC 11165.9 designates the agencies that may receive a mandated report, and PC 11166(j) imposes a distinct cross-reporting duty on a county probation department that receives one, requiring immediate telephone, fax, or electronic report to the law enforcement agency with jurisdiction, the agency responsible for WIC 300 investigations, and the district attorney, with written report within 36 hours. Neither is addressed in any reviewed document. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: the error is confirmed word for word. I.A.9 reads: "All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident." The 24 hour figure is the order's own text, not a

paraphrase, and the typographical error in "written reported" is also the order's. PC 11166(a) requires the telephone report immediately or as soon as is practicably possible. The 36 hour written figure is correct. Note also the scope limiter that runs through the whole order: the duty attaches to "all incidents of sexual assault," so on the face of the order the touching, exposure and masturbation tiers do not trigger it even where 11165.1(b)(4) and (b)(5) require a report. Redline 3 should correct the timeline and the scope in the same amendment.

Change log: REVISED in 3: the same 24-hour error appears again in OO 1453, revised December 2019. VERIFIED in 10 against the produced order: I.A.9 quoted verbatim. The conflict is confirmed and now carries the order's own words. New: the order's scope limiter means the CPS duty as written does not reach conduct short of sexual assault.

52. 28 CFR 115.363(a)-(d)

Status	**Conflict, Critical priority**
Departmental provision	PREA Policy V.A.7

The standard requires. On receiving an allegation that a resident was sexually abused while confined at another facility, notify the head of that facility or the appropriate agency office and the appropriate investigative agency as soon as possible and no later than 72 hours after receiving the allegation; document the notification.

Divergence. The policy sets a 14-day window for the Chief Deputy or Assistant Chief Deputy to notify the head of the facility where the abuse allegedly occurred. The federal standard is 72 hours. The 14-day figure appears to have been carried over from the attorney notification timeline in 115.361(e)(3). This is a straight timeline error and should be corrected to 72 hours, with documentation of the notification added.

50. 28 CFR 115.361(e)

Status	Not Addressed, Critical priority
Departmental provision	None

The standard requires. On receiving any allegation of sexual abuse, the facility head or designee shall promptly report it to the appropriate agency office and to the alleged victim's parents or legal guardians unless official documentation shows they should not be notified; to the caseworker instead if the youth is under child welfare guardianship; and, where a juvenile court retains jurisdiction, to the youth's attorney or legal representative of record within 14 days.

Divergence. No parent, guardian, caseworker, or attorney notification requirement appears in any document in the packet. This is a discrete, high-visibility failure. The 14-day attorney notification in particular is frequently missed and is easy to build into the IIR workflow in OO 1362.

47. 28 CFR 115.361(a)

Status	Partial, High priority
Departmental provision	PREA Policy IV.A; V.A.7; Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Non-Discretionary Referral to Internal Affairs

The standard requires. Require all staff to report immediately any knowledge, suspicion, or information regarding an incident of sexual abuse or sexual harassment that occurred in a facility, whether or not part of the agency; retaliation against residents or staff who reported; and any staff neglect or violation of responsibilities that may have contributed to an incident or to retaliation.

Divergence. Immediate confidential reporting to the Duty Supervisor of information or suspicion of sexual assault within a county institution is required. Three elements are missing: sexual harassment as a separately reportable category, reports of retaliation, and reports of staff neglect or violation of responsibilities contributing to an incident. Abuse at another facility is addressed only in V.A.7 and only as a chief-level notification duty. Internal Complaints partially reaches the retaliation element, but at the routing level rather than the duty level: retaliation for filing a grievance is a mandatory Internal Affairs referral once a complaint exists. It imposes no duty on staff to report retaliation they observe, and it does not touch sexual harassment as a separately reportable category or staff neglect or violation of responsibilities contributing to an incident. The reporting duty and the routing rule need to be stated together, in the same amendment. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: the Purpose and Scope paragraph is confirmed word for word: "All employees are responsible for protecting youth in their custody/care and are responsible for the immediate and confidential reporting to the duty supervisor any information and/or suspicion that indicates a youth is being, or has been sexually assaulted." Immediate, confidential, to the duty supervisor, on information or suspicion. That is a real and well drafted duty. The three gaps this row records are confirmed by reading the full order: sexual harassment is not a separately reportable category anywhere in it, retaliation is not mentioned, and staff neglect or violation of responsibilities contributing to an incident is not mentioned.

Change log: REVISED in 4: Internal Complaints reviewed. Retaliation routing exists; the staff reporting duty still does not reach it. VERIFIED in 10 against the produced order: the staff reporting duty quoted verbatim from the Purpose paragraph. All three recorded gaps confirmed by reading the full order.

49. 28 CFR 115.361(c)-(d)

Status	Partial, Medium priority
Departmental provision	PREA Policy I.Q ('Need to Know' definition); VIII.A

The standard requires. Staff may not reveal information related to a sexual abuse report except to the extent necessary for treatment, investigation, and security and management decisions. Medical and mental health practitioners must report to designated supervisors and to the state or local services agency where required, and must inform residents at the initiation of services of their duty to report and the limits of confidentiality.

Divergence. 'Need to Know' is defined but never operationalized as a disclosure restriction. The requirement that clinicians advise youth at the initiation of services of their reporting duty and the limits of confidentiality is absent.

51. 28 CFR 115.362

Status	Partial, High priority
Departmental provision	PREA Policy VI.A.1; VII.A.1 (separation and contact elimination)

The standard requires. When the agency learns a resident is subject to substantial risk of imminent sexual abuse, take immediate action to protect the resident.

Divergence. Separation after an incident is required. There is no stated duty to act immediately on a risk of imminent abuse that has not yet occurred, which is the trigger this standard addresses and the trigger the emergency grievance process under 115.352(f) feeds into.

53. 28 CFR 115.364(a)-(b)

Status	Partial, High priority
Departmental provision	OO 1453 (Sexual Assault) I.A.1, I.A.3, I.A.4, I.A.5; PREA Policy VI.A.1, VII.A.1

The standard requires. The first staff member to respond shall separate the alleged victim and abuser; preserve and protect the crime scene; and, where the timing still allows evidence collection, request that the victim take no action that could destroy physical evidence and ensure the alleged abuser takes no such action. A non-security first responder must make the request of the victim and then notify security staff.

Divergence. Substantially closed by OO 1453, which was not available for the earlier revisions. I.A.1 requires immediate separation of victim and suspect with no contact. I.A.3 requires unit staff to protect the crime scene, naming the youth's room, shower area, and laundry room, by sealing off the area and denying access to other staff and youth. I.A.4 requires preventing both victim and suspect from showering. I.A.5 requires keeping both from the bathroom where possible and collecting toilet tissue as evidence if used. That covers the substance of 115.364(a) and in the crime scene provision exceeds what most agencies write down. Remaining gap: 115.364(b), the distinct duties of a non-security first responder, who must request that the victim take no action that could destroy evidence and then notify security staff. OO 1453 is directed to 'All Sworn Personnel' and does not address SCOE, clinic, mental health, kitchen, or volunteer staff who may be first on scene. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: the first responder duties are confirmed and the wording is now exact. I.A.1: "Separate the victim and suspect immediately and ensure that the victim and suspect have no contact with one another (no access to toilet, see #5 below)." I.A.3: "Unit staff shall protect the crime scene (youth's room/shower area/laundry room, etc.) by sealing off the area and not allowing access by other staff or youth." I.A.4: "Prevent the victim and suspect from showering." I.A.5: "If possible, keep the victim and suspect from using the bathroom. If they use the bathroom, the toilet tissue shall be collected as evidence." I.A.2 adds a step no revision had recorded: "Immediately notify the Supervisor on duty. The Supervisor on Duty shall notify a facility Chief Deputy or Assistant Chief Deputy." The 115.364(b) gap, the distinct duties of a non-security first responder, is confirmed absent.

Change log: MATERIALLY REVISED in 3: OO 1453 closes 115.364(a). Only the non-security responder duty remains. VERIFIED in 10 against the produced order: I.A.1 and I.A.3 to I.A.5 quoted verbatim. I.A.2, the notification chain to a Chief Deputy or Assistant Chief Deputy, is new to this register.

54. 28 CFR 115.365

Status	Partial, Medium priority
Departmental provision	OO 1453 (Sexual Assault), full document

The standard requires. Develop a written institutional plan to coordinate actions taken in response to an incident of sexual abuse among staff first responders, medical and mental health practitioners, investigators, and facility leadership.

Divergence. Substantially closed. OO 1453 functions as a coordinated response plan in all but name: it sequences the first responder, the Duty Supervisor, the Chief Deputy or Assistant Chief Deputy, the Sheriff's Department, the Transportation Officer, the receiving medical facility, and the concluding incident review, and it specifies who does what at each stage. Three gaps remain. It covers sexual assault only, not the full sexual abuse and sexual harassment spectrum the standard reaches. It does not identify a role for mental health practitioners in the immediate response, although PREA Policy XV.A addresses crisis counseling separately. And it is not labeled or maintained as the institutional coordinated response plan, which matters only because an auditor asks for that document by name. Retitling and broadening OO 1453 is a far shorter path than drafting a new plan. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: reading the whole order confirms this row's central finding and sharpens it. The order is titled Sexual Assault, its stated Authority is the Prison Rape Elimination Act, and every operative provision is keyed to "sexual assault." The Purpose paragraph makes employees responsible for reporting information or suspicion "that a youth is being, or has been sexually assaulted." I.A.9 reports "all incidents of sexual assault" to CPS. I.A.15 triggers the review at the conclusion of "the sexual assault investigation." Nothing in the three pages addresses sexual harassment, exposure, or touching not characterised as assault. So the department has a coordinated response plan in all but name for the most serious band and nothing written for the band that actually generates most incidents. That is the gap to close, and it is a scope amendment to an order that otherwise works rather than a new document.

Change log: MATERIALLY REVISED in 3: was Not Addressed. OO 1453 is functionally the plan. VERIFIED in 10 against the produced order: the sexual assault scope limiter is confirmed across the Purpose paragraph, I.A.9 and I.A.15. The coordinated response plan credit stands.

56. 28 CFR 115.367(a)-(f)

Status	Partial, Critical priority
Departmental provision	PREA Policy, Guidelines (retaliation paragraph); Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Non-Discretionary Referral to Internal Affairs; Notification and Tracking

The standard requires. Establish a policy protecting residents and staff who report or cooperate from retaliation; designate which staff members or departments monitor retaliation; employ multiple protection measures; monitor for at least 90 days the conduct and treatment of reporting residents and staff, including disciplinary reports, housing and program changes, and negative performance

reviews or reassignments, with periodic status checks of residents; extend monitoring if indicated; act promptly to remedy retaliation.

Divergence. Retaliation is prohibited and defined, and discipline or prosecution is threatened. Everything operational is missing: no designated retaliation monitor, no 90-day monitoring period, no enumerated indicators to watch, no periodic status checks with the youth, and no protection measures list. Retaliation monitoring is a standalone standard and a standalone audit failure. Internal Complaints supplies the first operational retaliation element the department has on paper. Retaliation for filing a grievance is a non-discretionary referral to the Assistant Division Chief of Internal Affairs, all such matters are tracked and their documentation retained by Internal Affairs, and a Case Dispositional Notice goes to the complainant. That is a named recipient and a tracking mechanism, and it partially answers the designation element. It does not reach retaliation for reporting sexual abuse by any route other than a grievance, and it does not reach retaliation against staff who report or cooperate. Everything on the monitoring side remains absent: no 90-day monitoring period, no enumerated indicators, no periodic status checks with the youth, and no protection measures list. Priority stays Critical. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1324(n) requires the policy and procedure manual to establish a policy prohibiting all forms of sexual abuse, sexual assault and sexual harassment, including 'an approach to preventing, detecting and responding to such conduct and any retaliation for reporting such conduct.' Retaliation is named in the state requirement, so the absence of a retaliation response in the manual is a Title 15 defect and not only a PREA gap. That makes this row actionable on BSCC inspection independent of PREA. 1361(h) adds that concerns of 'parents, guardians, staff or other parties' shall be addressed and documented within a specified timeframe.

Change log: REVISED in 4: Internal Complaints reviewed. A designated recipient and tracking now exist for grievance retaliation; all monitoring elements still missing. REVISED in 6: 1324(n) added as a confirmed state hook. Retaliation is named in the required contents of the manual, so this is now a Title 15 defect too.

57. 28 CFR 115.368; 15 CCR 1354, 1354.5

Status	Partial, High priority
Departmental provision	PREA Policy III.D; OO 1354.5 (Room Confinement, eff. 04/05/2023) Definitions, I.A-E, II.A-K, III.A

The standard requires. Any use of segregated housing to protect a resident alleged to have suffered sexual abuse is subject to the isolation requirements of 115.342.

Divergence. Sharpened by OO 1354.5. That order builds a detailed safeguard structure for room confinement: enumerated criteria, imposition only by a supervisor or Watch Commander, YDF manager authorization for any extension and again every four hours, documented justification and reintegration planning, and an enumerated list of provisions that may not be withdrawn. It then places protective separation outside its own scope. The Definitions section defines Separation as limiting a youth's participation in regular programming for a specific purpose including protective custody, and the operative sections govern only Room Confinement and Extended Room Confinement. The practical result is that the placement 115.368 governs, segregated housing used to protect a resident alleged to have suffered sexual abuse, carries fewer written safeguards than a placement used for a youth who is a behavior problem. That is the wrong way round and it is the kind of asymmetry an auditor and a plaintiff both notice. The remedy is less new drafting than extension: apply the OO 1354.5 authorization, documentation, review, and non-deprivable provisions to protective separation, and

produce OO 1354 so the two can be reconciled. The daily clinician visit defect recorded at row 35 carries over here, since 115.368 incorporates the 115.342 isolation requirements by reference. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1354 expressly includes protective custody within separation and requires a daily review of all separated youth, together with retention of normal privileges except as necessary to accomplish the objective of the separation. The protective placement this requirement concerns is therefore already regulated by state law at a level OO 1354.5 does not reach, which raises the value of producing OO 1354. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1354.5 exists, titled Room Confinement, and tracks WIC 208.3: (a)(1) room confinement only after less restrictive options are attempted and exhausted, (a)(2) never for punishment, coercion, convenience, or retaliation by staff, (a)(3) never to the extent it compromises the youth's mental and physical health, (b) a four-hour ceiling before staff must return the youth to general population, consult mental health or medical staff, or build an individualized reintegration plan, and (b)(4)(C) documented authorization by the facility superintendent or designee every four hours thereafter. OO 1354.5 tracks the regulation closely. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1354 runs (a) to (f) and is more useful than the 2014 text this register was built on. (a) separation for reasons including protective custody. (b) consideration of positive youth development and trauma-informed care, which is new. (c) separated youth shall not be denied normal privileges available at the facility except when necessary to accomplish the objective of separation. (d) is new and provides that where the objective of separation is discipline, section 1390 applies. (e) is new and provides that where separation results in room confinement, WIC 208.3 and section 1354.5 apply. (f) requires a daily review of separated youth to determine whether separation remains necessary. The structural consequence matters for this row: (d) and (e) route disciplinary separation and room confinement elsewhere, so separation that is neither, which is the protective custody placement at issue here, is governed by 1354 itself through the (c) privileges rule and the (f) daily review. The state does regulate this placement. What is missing is the departmental order implementing it, and OO 1354 has still never been produced.

Change log: REVISED in 4: OO 1354.5 reviewed. It defines Separation to include protective custody and then regulates only room confinement, leaving the placement this standard governs with fewer safeguards than a behavioral placement. VERIFIED in 5: 15 CCR 1354 confirmed against source. 1354.5 not confirmed. REVISED in 6: 1354.5 confirmed against the 2019 edition and quoted. REVISED in 7: 1354 re-verified against the 2019 edition, now (a) to (f). New (d) and (e) show 1354 itself governs non-disciplinary, non-confinement separation.

55. 28 CFR 115.366

Status	Addressed, Medium priority
Departmental provision	PREA Policy VII.A.2

The standard requires. Do not enter into or renew any collective bargaining or other agreement that limits the ability to remove alleged staff sexual abusers from contact with residents pending investigation or a discipline determination.

Divergence. The prohibition is stated correctly. Confirm the current MOU language with Labor Relations, since the standard is audited against the agreement, not the policy.

Investigations

59. 28 CFR 115.371(g)-(h), (j)-(k)

Status	Conflict, Critical priority
Departmental provision	PREA Policy XVIII.B (10 years); Internal Affairs XI.C.1 (5 years); 115.371(j) (tenure plus 5 years); Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Notification and Tracking; Resident Grievances or Complaints

The standard requires. Administrative investigations must include an effort to determine whether staff actions or failures to act contributed to the abuse and must be documented in written reports describing physical and testimonial evidence, credibility reasoning, and findings; criminal investigations documented with attached documentary evidence; reports retained as long as the alleged abuser is incarcerated or employed plus five years; departure of the alleged abuser or victim does not terminate an investigation.

Divergence. Three different retention rules now govern the same records. Internal Affairs XI.C.1 retains records of citizen complaints, formal investigations, and dispositions for at least five years. PREA Policy XVIII.B retains all case records associated with claims of sexual abuse for at least ten years. 115.371(j) requires investigation reports to be retained for as long as the alleged abuser is incarcerated or employed by the agency, plus five years, which for a long-tenured employee is far longer than either. A department that destroys a sexual abuse investigation file at five years under the IA schedule violates its own PREA policy and the federal standard. Layer on CCP 352, which tolls a minor's limitations period, and the practical exposure is a file destroyed years before suit is filed. Reconcile the three into a single retention schedule reviewed with County Counsel. Also still missing: the duty to determine whether staff actions or failures to act contributed to the abuse; the required content of administrative and criminal investigative reports; and the rule that departure of the alleged abuser or victim does not terminate an investigation. Internal Complaints adds a fourth departmental document pointing at Internal Affairs retention, stating that all discretionary and non-discretionary investigative documentation and evidence shall be retained by Internal Affairs. It states no period, so it neither resolves nor worsens the three-way conflict, but it does mean the reconciled schedule has to be reflected in four documents rather than three. It supplies part of the rule that a departure does not terminate an investigation: every attempt shall be made to interview the grievant and identified resident witnesses regardless of whether they have been released, which is the resident half. The staff half, that an alleged abuser's resignation or separation does not terminate the investigation, still does not appear in the documents reviewed, and it interacts directly with the unmet reporting duty at row 62.

Change log: MATERIALLY REVISED: was Partial / High. IA five-year retention conflicts with the PREA policy's ten years and with the federal formula. REVISED in 4: Internal Complaints reviewed. A fourth document now bears on retention. The resident half of the no-termination-on-departure rule is supplied; the staff half is not.

58. 28 CFR 115.371(a)-(f); PC 832.5

Status	Partial, Critical priority
Departmental provision	PREA Policy XII.A-C; Internal Affairs Administrative Investigations, General D-F, VII, VIII, X; Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Non-Discretionary Referral to Internal Affairs; Discretionary Referral to Internal Affairs; Personnel Complaint Intake Form

The standard requires. Investigate promptly, thoroughly, and objectively all allegations including third-party and anonymous reports; use investigators trained under 115.334; gather and preserve direct and circumstantial evidence including DNA and electronic monitoring data; interview victims, suspects, and witnesses; review prior complaints involving the suspected perpetrator; do not terminate an investigation solely because the source recants; consult prosecutors before compelled interviews; assess credibility individually and never require a victim to submit to a polygraph.

Divergence. The Internal Affairs policy adds real substance: General D requires that all allegations of misconduct from citizen complaints or internal sources be promptly and thoroughly investigated; General E requires fair, impartial, and timely investigation; section VII requires an Administrative Admonishment or Lybarger warning before any interview or interrogation; section X sets a one-year completion timeline consistent with Government Code 3304. Still missing: express acceptance and investigation of third-party and anonymous reports; use of investigators trained under 115.334; the evidence-gathering standard, including physical and DNA evidence and available electronic monitoring data, which matters given the facility's fixed camera and audio recording systems referenced in OO 1362; review of prior complaints and reports of sexual abuse involving the suspected perpetrator; the rule that an investigation is not terminated solely because the source recants; consultation with prosecutors before compelled interviews, which is a live risk given the Lybarger compulsion in section VIII.B; individualized credibility assessment not determined by status as youth or staff; and the prohibition on requiring a youth who alleges abuse to submit to a polygraph. Internal Complaints, now reviewed, cuts both ways. It adds intake quality that the earlier documents did not supply: the Personnel Complaint Intake Form must carry the complainant's name and contact information, identifying information for the employee suspected of misconduct, the specific date, time, and nature of each allegation, witness information, and any investigative leads and items of evidentiary value. It also requires that every attempt be made to interview the grievant and identified resident witnesses regardless of whether they have been released. Against that, it states that the Internal Affairs Manager will determine whether or not a formal investigation is necessary, with no exception for allegations of sexual abuse or sexual harassment, where 115.371(a) requires that an administrative or criminal investigation be completed for all such allegations. The policy nowhere says that a sexual abuse allegation may go uninvestigated, so this is recorded as a defect rather than scored as a thirteenth conflict, but it is the closest thing in the documents reviewed to one. Correct it with an express carve-out: allegations of sexual abuse or sexual harassment are referred and investigated, and the discretion not to investigate does not reach them.

Change log: REVISED: IA policy elements credited; remaining gaps itemized against it. REVISED in 4: Internal Complaints reviewed. Intake and evidence-preservation elements credited. New defect: unqualified Internal Affairs Manager discretion over whether to investigate, with no sexual abuse carve-out. Recorded as a defect, not scored as a conflict.

61. 28 CFR 115.373(a)-(f)

Status	Partial, Critical priority
Departmental provision	Internal Affairs XI.B.1-2; Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), Notification and Tracking

The standard requires. Inform the resident whether the allegation was substantiated, unsubstantiated, or unfounded; request that information from an outside investigating agency where the agency did not investigate; and, following a staff-abuse allegation, notify the resident when the staff member is no

longer posted in the unit, is no longer employed, is indicted, or is convicted; and following a resident-abuse allegation, when the abuser is indicted or convicted; document all notifications and attempted notifications.

Divergence. Internal Affairs XI.B.1 requires that where a formal investigation resulted from a citizen or internal complaint, the complainant be notified in writing of the disposition. Where the youth is the complainant that is a partial answer to 115.373(a), but it is contingent on the youth being treated as the complainant, it uses IA disposition language rather than substantiated, unsubstantiated, or unfounded, and it does not reach the rest of the standard. Still absent: notification where the agency did not conduct the investigation, including the duty to request the outcome from the investigating agency; and the four ongoing notifications following a staff-abuse allegation, when the staff member is no longer posted in the youth's unit, is no longer employed at the facility, is indicted, or is convicted, plus the two parallel notifications following a youth-on-youth allegation. No documentation of notifications or attempted notifications is required. Internal Complaints extends the notification duty beyond Internal Affairs XI.B.1. Internal Affairs sends Case Dispositional Notices to complainants in all cases resulting in a formal investigation completed by either Internal Affairs or the Division, and the affected Division provides notice of the outcome to the complaining party for matters resolved without a formal investigation. That widens coverage without changing the character of the gap: notification remains contingent on the youth being treated as the complainant, it uses Internal Affairs disposition language rather than substantiated, unsubstantiated, or unfounded, and none of the four ongoing notifications following a staff abuse allegation or the two following a youth-on-youth allegation appear. The duty is also qualified as owed to the extent it can be given by law and policy, which needs to be reconciled with 115.373 rather than left standing as a general reservation.

Change log: REVISED: was Not Addressed. IA complainant notification credited as a partial answer. REVISED in 4: Internal Complaints reviewed. Notification now reaches Division-resolved matters as well as Internal Affairs investigations; the character of the gap is unchanged.

81. 28 CFR 115.371(g), 115.373(a), 115.387(a)

Status	Partial, High priority
Departmental provision	Internal Affairs XI.A.3 (Unfounded, Exonerated, Not Sustained, Sustained, No Finding, Closed); PREA Policy V.A.8, XVIII.C

The standard requires. Use a consistent set of definitions across investigation, resident notification, and data collection. PREA findings are substantiated, unsubstantiated, or unfounded, and the incident review and Survey of Sexual Violence data sets are built on those categories.

Divergence. The Internal Affairs disposition taxonomy has six categories and does not map cleanly to the three PREA categories. 'Unfounded' exists in both but carries a different meaning: in IA it means sufficient evidence to prove the complaint false, while in PREA it means the investigation determined the event did not occur, and that difference drives real consequences because an unfounded finding is the only one that switches off both the sexual abuse incident review under 115.386(a) and the retaliation monitoring obligation under 115.367(f). 'Not Sustained' is closest to unsubstantiated but is not the same term. 'Exonerated,' 'No Finding,' and 'Closed' have no PREA equivalent at all. Until the taxonomies are bridged, the department cannot tell a youth the outcome in the terms 115.373 requires, cannot reliably determine when an incident review is triggered, and cannot populate the Survey of Sexual Violence data set. Add a mapping table to the PREA policy translating each IA disposition into a PREA finding.

Change log: NEW in revision 2, from the Internal Affairs policy.

60. 28 CFR 115.372

Status	Addressed, Low priority
Departmental provision	Internal Affairs Administrative Investigations XI.A.3

The standard requires. Impose no standard higher than a preponderance of the evidence in determining whether allegations are substantiated.

Divergence. The Internal Affairs disposition definitions state that Sustained means there is sufficient evidence to establish by a preponderance of the evidence that the incident occurred and constitutes misconduct. That satisfies 115.372 for employee misconduct investigations. Two caveats worth noting rather than treating as failures here: the standard is stated only for employee investigations, not for administrative determinations on youth-on-youth allegations, and the IA disposition taxonomy does not map to the PREA taxonomy, which is addressed in the row below.

Change log: MATERIALLY REVISED: was Not Addressed / High. IA policy states the preponderance standard expressly.

Discipline

64. 28 CFR 115.378(a)-(g); 15 CCR 1390, 1391

Status	**Conflict, Critical priority**
Departmental provision	PREA Policy XIV.A; XIII.B; OO 1362 III.G; OO 1390/1391 (Discipline and Discipline Process, eff. 10/01/2013, rev. 05/01/2020) Purpose, I.A, II.B.4, III, IV, V

The standard requires. Discipline a resident for resident-on-resident sexual abuse only through a formal disciplinary process following an administrative or criminal finding; sanctions commensurate and consistent; isolation sanctions preserve daily large-muscle exercise, legally required education, and daily clinician visits; consider whether mental disability or illness contributed; discipline a resident for sexual contact with staff only on a finding the staff member did not consent; and a good-faith report based on a reasonable belief is not false reporting or lying even if unsubstantiated.

Divergence. The conflict is unchanged. PREA Policy XIV.A still permits discipline where an investigation determines allegations were false. 115.378(f) protects a good-faith report based on a reasonable belief even where the investigation does not substantiate it, and 115.352(g) permits discipline only where the agency demonstrates bad faith. As written the policy chills reporting and it will be read to a jury that way. Rewrite to a bad-faith standard with the burden on the department. OO 1390/1391 contains no false reporting provision, so it neither cures nor compounds that defect; worth preserving in the rewrite is that neither its minor nor its major rule violation list includes false reporting or lying. What OO 1390/1391 does supply, and what revisions 1 through 3 could not credit, is the formal disciplinary process the standard requires. Section IV builds a due process hearing with written notice of the violation before the hearing, a hearing officer who is not a party to the incident, an opportunity to be heard and to present evidence and testimony, staff assistance on request, an interpreter where needed, accommodations for youth with disabilities, limited literacy, and English language learners, a documented finding, administrative review by the Assistant Division Chief, and an appeal under section V that may not increase the sanction. Two strengths beyond the standard should be recorded: section

III lists the available consequences and isolation is not among them, and OO 1354.5 I.C.1 independently prohibits room confinement for punishment, so the department has effectively excluded the isolation sanction whose conditions this standard otherwise regulates. That element of the requirement is satisfied by exclusion rather than by compliance, which is a stronger position, and it should be stated that way rather than left to inference. Four defects remain. First, the due process hearing attaches only where the recommended discipline is Program Separation (IV.A, IV.D.2). Sexual misconduct is a major rule violation at II.B.4, but where the recommended consequence is point loss, loss of commissary privilege, early bed, loss of bank points, or demotion to a lower level, no hearing is required by the order's own terms, whereas the standard requires the formal process for any discipline imposed for resident-on-resident sexual abuse. Second, sexual misconduct is listed as a major rule violation and is nowhere defined, so nothing distinguishes coerced from non-coerced sexual activity between residents, and nothing carves out sexual contact with a staff member, which the standard permits to be disciplined only on a finding that the staff member did not consent. That omission is serious in California, where PC 289.6 makes sexual activity between staff and a confined person criminal irrespective of purported consent, so a youth disciplined for sexual misconduct arising from staff contact would be punished for being the victim of a crime. Third, no provision requires consideration of whether a mental disability or mental illness contributed to the behavior when determining sanctions. IV.B.2 provides procedural accommodations at the hearing, which is a different thing, and the Purpose paragraph's trauma-informed language is permissive, using should rather than shall. Fourth, the standard requires sanctions commensurate with the resident's disciplinary history and consistent with those imposed for comparable offenses by residents with similar histories. The Purpose paragraph's least restrictive level language and the appeal ground at V.A.3 for discipline different from that received by others for the same offense reach part of this, but neither states the history-informed comparison. Confirm subsection lettering within 115.378 against the CFR before any of this is quoted in a deliverable; only (f) is verified here. NEW STATE-LAW DEFECT identified in Revision 5 by verification against source. 15 CCR 1391(f) attaches the due process elements to major rule violations as a class, defining them as violations 'which may include withdrawal from group activities for 24 hours or more or extension of time in custody,' and requires written notice before hearing, hearing by a person not a party to the incident, opportunity to be heard and present evidence and testimony, staff assistance, and administrative review. OO 1390/1391 IV.A attaches the hearing only where the recommended discipline is Program Separation. The department has therefore narrowed the trigger from the regulatory class of major rule violations to a single sanction within that class, so a youth found to have committed a major rule violation and given any lesser consequence receives none of the 1391(f) protections. This was recorded in Revision 4 as a PREA observation; it is now a confirmed Title 15 defect, which makes it actionable on BSCC inspection independent of PREA. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1390 confirms the least restrictive level rule and the bar on corporal punishment, group punishment, and physical or psychological degradation. CORRECTION, AND IT REMOVES A CREDIT THIS REGISTER PREVIOUSLY GAVE THE DEPARTMENT. The deprivation floor runs (a) to (k), ELEVEN items, and (k) is 'rehabilitative programming.' Revision 5 read a ten-item floor ending at (j) in the 2014 edition and credited OO 1390/1391 I.A with exceeding it by adding rehabilitative programming as an eleventh item. In the current text that item is in the regulation. The order matches the floor, it does not exceed it, and no amendment should describe it as exceeding anything. Two further requirements in the current 1390 that this register did not carry: discipline policy shall promote acceptable behavior 'including the use of positive behavior interventions and supports,' and the rules of conduct and disciplinary penalties shall include both major and minor violations, be stated simply and affirmatively, be made available to all youth, and be made accessible to youth with disabilities, limited English proficiency, or limited literacy. CITATION CORRECTED in Revision 6. Revision 5 recorded this provision as 1391(e) from the 04/01/2014 edition. In the edition effective 01/01/2019, 1391(e) is minor rule violations handled informally and the due process elements for major rule

violations moved to 1391(f). The finding is unchanged; the subsection letter is not. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1391(f) requires, for major rule violations, AT LEAST the following: (1) written notice of violation prior to a hearing, (2) accommodations for youth with disabilities, limited literacy, and English language learners, (3) hearing by a person who is not a party to the incident, (4) opportunity for the youth to be heard and to present evidence and testimony, and (5) provision for the youth to be assisted by staff in the hearing. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: the list is now complete and it has SIX elements, not five. The sixth is '(6) provision for administrative review.' That is precisely the element the truncation flag predicted was missing, so the flag is cleared rather than carried forward. 1391(g) also exists and provides that violations resulting in removal from a camp or commitment program, short of a return to court, follow the subsection (e) process.

Change log: MATERIALLY REVISED in 4: OO 1390/1391 reviewed. The formal disciplinary process the standard requires now largely exists, so remediation shifts from drafting a process to extending one. The XIV.A conflict is unchanged. Two new defects: the due process trigger is limited to Program Separation, and sexual misconduct is undefined with no staff-consent carve-out. MATERIALLY REVISED in 5: 15 CCR 1391(e) verified against source. The due process trigger defect is now a confirmed Title 15 violation, not only a PREA observation. CORRECTED in 6: 1391(e) is 1391(f) in the 2019 edition. Elements quoted. CORRECTED after 6: the 1391(f) element list is partial, not complete. Flagged rather than left to read as exhaustive. REVISED in 7: 1391(f) obtained in full, six elements, truncation flag cleared. CORRECTED in 7: the 1390 floor is eleven items and (k) is rehabilitative programming, so OO 1390/1391 matches rather than exceeds it.

62. 28 CFR 115.376(a)-(d); PC 832.5

Status	Partial, High priority
Departmental provision	PREA Policy XIII.A, VII.A.1-2; Internal Affairs XIII (Disciplinary Process), X (Timelines); Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), full document

The standard requires. Staff subject to discipline up to termination; termination is the presumptive sanction for staff who engaged in sexual abuse; sanctions for other policy violations commensurate with the conduct and consistent across comparable cases; all terminations, and resignations by staff who would have been terminated, reported to law enforcement unless clearly non-criminal, and to any relevant licensing bodies.

Divergence. The Internal Affairs policy supplies a complete and well-built disciplinary machinery: Notice of Proposed Discipline, Skelly hearing before an Assistant Chief Deputy or higher not involved in the investigation or adjudication, Order of Disciplinary Action, and affidavits of service. What PREA adds and the department does not have: the presumptive-termination rule for staff who engaged in sexual abuse (115.376(b)), and the duty to report all terminations, and resignations by staff who would have been terminated, to law enforcement unless the conduct was clearly non-criminal and to any relevant licensing or certification bodies (115.376(d)). Coordinate the licensing element with County Counsel and Labor Relations; note that probation officers are peace officers under PC 830.5, which the IA policy itself recognizes at VIII.L. Internal Complaints adds the intake and tracking layer around the Internal Affairs disciplinary machinery: a Personnel Complaint Intake Form, a Complaint Action Report returned to the referring division, tracking and retention of all discretionary and non-discretionary matters by Internal Affairs, and dispositional notices to both the complainant and the subject staff member. Neither of the two PREA-specific additions is supplied: the presumptive termination rule and the duty to report terminations, and resignations by staff who would have been terminated, to law

enforcement and to relevant licensing bodies. One further observation for the rewrite: the non-discretionary referral list names unreasonable use of force, discrimination, sexual harassment or workplace violence, threats of violence toward a resident, and criminal conduct, but does not name staff sexual abuse or sexual harassment of a resident as a category of its own. It is caught as criminal conduct, but an auditor scores the named category, and the employment-context reading of the sexual harassment entry makes the omission worth curing.

Change log: REVISED: IA disciplinary process credited; the two PREA-specific additions isolated. REVISED in 4: Internal Complaints reviewed. Intake and tracking credited; neither PREA-specific element closes. Staff sexual abuse of a resident is not a named mandatory-referral category.

63. 28 CFR 115.377(a)-(b)

Status	Partial, Medium priority
Departmental provision	Code of Conduct VI.E (rescinding or suspending clearance); VI.G (criminal conduct referral)

The standard requires. Any contractor or volunteer who engages in sexual abuse shall be barred from contact with residents and reported to law enforcement unless clearly non-criminal and to relevant licensing bodies; take appropriate remedial measures for other violations and consider barring further contact.

Divergence. The clearance-suspension and criminal-referral machinery is well built out and largely accomplishes the standard in practice. Missing: express reporting to relevant licensing bodies, and a PREA-specific trigger. The Code of Conduct is dated 06/01/11 and does not mention sexual abuse or PREA at all.

Medical and Mental Health

65. 28 CFR 115.381(a)-(b)

Status	Partial, High priority
Departmental provision	PREA Policy III.C

The standard requires. Where screening indicates prior sexual victimization, offer a follow-up meeting with a medical or mental health practitioner within 14 days of the intake screening; where screening indicates prior perpetration of sexual abuse, offer a follow-up meeting with a mental health practitioner within 14 days.

Divergence. Residents identified with such a history are referred to Mental Health as a high priority for evaluation, which is directionally right but does not meet the standard. Missing: the 14-day clock, the distinction between prior victimization and prior abusiveness, and the requirement that the meeting be offered rather than merely referred.

66. 28 CFR 115.381(c)-(d); 15 CCR 1407

Status	Partial, Medium priority
Departmental provision	OO 1350.5 Purpose and Scope; PREA Policy I.Q

The standard requires. Limit information about institutional sexual victimization or abusiveness to medical and mental health practitioners and other staff as necessary for treatment and security decisions; obtain informed consent before reporting non-institutional prior victimization unless the resident is under 18.

Divergence. Confidentiality of classification material is stated. The informed-consent rule matters for residents 18 and over housed at YDF, which Title 15 expressly contemplates in its definition of 'youth,' and is not addressed.

67. 28 CFR 115.382(a)-(d); 15 CCR 1453

Status	Partial, High priority
Departmental provision	PREA Policy VIII.A, VIII.C; XV.A

The standard requires. Timely unimpeded access to emergency medical treatment and crisis intervention; where no clinician is on duty, first responders take protective steps and immediately notify practitioners; offer timely information about and access to emergency contraception and sexually transmitted infection prophylaxis where medically appropriate; provide services without financial cost and regardless of whether the victim names the abuser or cooperates with an investigation.

Divergence. Immediate notification of the Duty Supervisor, evidentiary examination, crisis counseling, and follow-up STI and HIV testing as clinically indicated are addressed. Missing: emergency contraception and STI prophylaxis, the no-cost provision, and the express rule that treatment does not depend on naming the abuser or cooperating with the investigation. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1453 requires policy and procedures both for treating victims of sexual assault and for reporting such incidents to local law enforcement when they occur in the facility. VERIFIED in Revision 7 against Title 15 effective 01/01/2019: 1452 and 1453 are unchanged from the 2014 text and confirmed as cited. 1452 requires forensic medical services for the purpose of prosecution to be collected by appropriately trained medical personnel who are not responsible for providing ongoing health care to the youth. 1453 requires policy for treating victims of sexual assault, preservation of evidence, and reporting to local law enforcement, and requires that the evidentiary examination and initial treatment occur at a health facility separate from the custodial facility, properly equipped and staffed with trained and experienced personnel. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: I.A.13 confirms the evidentiary examination and the transport arrangement, and I.A.7 adds a provision not previously recorded: "When interacting with the alleged victim of sexual assault, staff are expected to be professional and display sensitivity towards the victim as the trauma may affect them both physically, emotionally and mentally." That is a trauma informed instruction and it is worth crediting. The gaps

stand: emergency contraception and STI prophylaxis, the no-cost provision, and the rule that treatment does not depend on naming the abuser or cooperating with the investigation.

Change log: VERIFIED in 5: 15 CCR 1453 confirmed against source. REVISED in 7: 1453 re-verified against the 2019 edition, unchanged. VERIFIED in 10 against the produced order. I.A.7, the trauma informed interaction instruction, is new to this register and is credited.

68. 28 CFR 115.383(a)-(h)

Status	Partial, High priority
Departmental provision	PREA Policy XV.A-B; XVII.A

The standard requires. Offer medical and mental health evaluation and treatment to all residents victimized in any confinement facility; include follow-up services, treatment plans, and referrals on transfer or release; provide care consistent with the community level of care; offer pregnancy tests after sexually abusive vaginal penetration and access to pregnancy-related services; offer STI testing; provide all services at no cost and regardless of cooperation; attempt a mental health evaluation of all known resident-on-resident abusers within 60 days.

Divergence. Crisis counseling, suicide and self-injury monitoring, and community re-entry referral on request are present. Missing: ongoing evaluation and treatment for victims of abuse suffered at any confinement facility; treatment plans and transfer or release referrals; the community level of care standard; pregnancy testing and pregnancy-related services; the no-cost and no-conditions rule; and the 60-day mental health evaluation of known resident-on-resident abusers.

Data Collection and Review

71. 28 CFR 115.388(a)-(d)

Status	Not Addressed, Critical priority
Departmental provision	None

The standard requires. Review the aggregated data to assess and improve the effectiveness of prevention, detection, and response policies, practices, and training by identifying problem areas, taking ongoing corrective action, and preparing an annual report of findings and corrective actions for each facility and for the agency as a whole; compare the current year with prior years and assess progress; the report must be approved by the agency head and made readily available to the public, with any redactions identified.

Divergence. This is the tracking hole. Section XVIII of the PREA policy is titled Tracking and Data Collection but contains only collection, retention, and publication of raw aggregate data. There is no requirement to analyze the data, identify problem areas, take corrective action, or produce an annual findings-and-corrective-action report approved by the Chief Probation Officer and published. Data that is collected and never analyzed is, in litigation, evidence of notice without response. Highest-value single fix in this list after the PREA Coordinator.

69. 28 CFR 115.386(a)-(e)

Status	Partial, High priority
Departmental provision	OO 1453 (Sexual Assault) I.A.15; PREA Policy V.A.8

The standard requires. Conduct a sexual abuse incident review at the conclusion of every investigation, including unsubstantiated allegations but excluding unfounded ones, ordinarily within 30 days; the team must include upper-level management with input from line supervisors, investigators, and clinicians; the review must consider whether policy or practice should change, whether the incident was motivated by race, ethnicity, gender identity, LGBTI status, gang affiliation, or other group dynamics, examine the physical area for barriers enabling abuse, assess staffing adequacy on that shift, and assess whether monitoring technology should be deployed or augmented; prepare a written report to the facility head and PREA Compliance Manager; implement the recommendations or document why not.

Divergence. Materially better than earlier revisions showed. OO 1453 I.A.15 requires that at the conclusion of the sexual assault investigation an incident review be conducted by upper management officials, with input from supervisors, investigators, and medical or mental health practitioners, and that a report be generated and forwarded to the PREA Coordinator and the Department Chief. That satisfies the team composition requirement of 115.386(b), the written report requirement of 115.386(d), and the routing to the facility head and compliance manager. Combined with PREA Policy V.A.8, which supplies the correct trigger including unsubstantiated allegations, the architecture is largely in place. Three elements remain: the ordinarily-within-30-days timeframe; the five substantive considerations at 115.386(c), meaning whether policy or practice should change, whether the incident was motivated by race, ethnicity, gender identity, LGBTI status, gang affiliation or other group dynamics, whether the physical area enabled abuse, whether staffing on that shift was adequate, and whether monitoring technology should be deployed or augmented; and the implement-or-document-why-not requirement at 115.386(e). Note the report has no valid recipient until a PREA Coordinator is designated. VERIFIED in Revision 10 against OO 1453, eff. 04/25/2013, last revised 12/09/2019, produced and read in full: I.A.15 confirmed verbatim, and the credit this row gives is correct: upper management officials conduct the review with input from supervisors, investigators, and medical or mental health practitioners, and a written report is generated. Two limits are now exact rather than inferred. The trigger is "at the conclusion of the sexual assault investigation," so on the face of the order a review is not required where no investigation occurred, where the conduct was not characterised as sexual assault, or for sexual harassment at all. And the report is addressed to the PREA coordinator and the Department Chief, the first of whom does not exist.

Change log: MATERIALLY REVISED in 3: OO 1453 I.A.15 supplies team, report, and routing. Remaining gap narrowed to timeframe, the five elements, and implementation. VERIFIED in 10 against the produced order: I.A.15 quoted verbatim. The review trigger is confirmed as limited to sexual assault investigations.

70. 28 CFR 115.387(a)-(f)

Status	Partial, High priority
Departmental	PREA Policy XVIII.C; OO 1362 (JPIP IIR); OO 1361 II.E (IA Pro grievance log)

provision	

The standard requires. Collect accurate uniform data for every allegation using a standardized instrument and set of definitions; aggregate at least annually; include the data necessary to answer all questions from the most recent DOJ Survey of Sexual Violence; maintain, review, and collect data from all incident-based documents including reports, investigation files, and incident reviews; obtain data from every contracted private facility; provide the previous calendar year's data to DOJ by June 30 on request.

Divergence. JPIP Institutional Incident Report documentation, an annual submission by the Assistant Chief Deputy to the Bureau of Justice Statistics, and June 30 provision to DOJ on request are stated. Two existing systems could carry the data without new infrastructure: the JPIP IIR application, which already captures serious events including sexual assault and inappropriate sexual behavior under OO 1362 I.A.13, and IA Pro, in which OO 1361 II.E requires every grievance to be logged with eleven fields including the nature of the grievance. Neither currently carries a PREA flag, so identifying the sexual abuse and sexual harassment population requires narrative review. Still missing: a standardized data collection instrument and set of definitions, alignment of collected fields to the current DOJ Survey of Sexual Violence question set, extraction from investigation files and incident reviews rather than IIRs alone, and collection from any contracted facility.

Change log: REVISED: IA Pro and JPIP identified as existing carriers for the data set.

72. 28 CFR 115.389(a)-(d)

Status	Addressed, Medium priority
Departmental provision	PREA Policy XVIII.B-C

The standard requires. Securely retain collected data; make aggregated data publicly available at least annually with all personal identifiers removed; retain the data for at least 10 years unless law requires otherwise.

Divergence. Ten-year retention of case records and at least annual public availability through the website or other means are both required by policy. Add the express removal of personal identifiers before publication and a secure retention statement. Verify the annual publication is actually occurring, since an unperformed publication requirement is worse than none. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: Related, from the statute rather than Title 15: PREA section 4(c)(2)(C) directs the Attorney General to publish 'a listing of any prisons in the representative sample that did not cooperate with the survey,' and section 8(c)(4) attaches a funding consequence to a State whose political subdivisions appear on it. Survey cooperation is therefore a distinct obligation from standards compliance, and it reaches local facilities expressly. Whether YDF has ever been in the sample is unknown and is worth asking, because row 81's disposition taxonomy problem means the department could not currently populate the data set if it were.

Change log: REVISED in 6: added the PREA section 4(c)(2)(C) and 8(c)(4) survey cooperation interaction.

Audit

73. 28 CFR 115.393; 115.401-115.405

Status	Not Addressed, Critical priority
Departmental provision	None. Department reports no PREA audits are conducted; reliance is placed on Title 15 inspection.

The standard requires. Ensure each facility is audited at least once during every three-year cycle, with at least one-third of each facility type audited each year, by a DOJ-certified auditor; the auditor's final report must be published on the agency website or otherwise made readily available to the public.

Divergence. Confirmed by the department: YDF does not undergo PREA audits and relies on Title 15 inspection instead. Two points. First, a Title 15 inspection is not a substitute and provides no defense on any standard Title 15 does not contain, which includes every structural standard in this register: the PREA Coordinator and Compliance Manager, the documented staffing plan and the 1:8 and 1:16 ratios, hiring and contractor screening at 115.317, specialized investigator training, retaliation monitoring, notification of investigation outcomes to residents, notification to parents and counsel, the data analysis and corrective action loop, and the audit cycle itself. A clean BSCC inspection will not answer the question a plaintiff's expert asks. Second, verify the inspection cadence: WIC 209 provides for BSCC inspection of juvenile halls biennially, and for annual inspection by the judge of the juvenile court, with fire and health inspections on their own schedules. If YDF is in fact receiving BSCC visits more than once a year, confirm what those visits are, because the answer affects what the department can represent about its oversight. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: Neither Title 15 edition contains any PREA reference or any facility audit requirement. Searched in full: the strings PREA, Prison Rape, 28 CFR, and Part 115 return zero hits in the 2019 edition, and the only matches for 'audit' are section 1403, Health Care Monitoring and Audits, which concerns health services statistics. This confirms rather than softens the finding. The department's stated reliance on Title 15 inspection in place of a PREA audit leaves the audit standard wholly unaddressed by any state requirement, because the state has not adopted one. A second point, from the statute rather than the regulation: PREA section 8(c)(4), 34 U.S.C. 30307(c)(4), conditions grant funds on the chief executive certifying that neither the State 'nor any political subdivision or unit of local government within the State' appears in the Attorney General's report of facilities that did not cooperate with the survey under section 4(c)(2)(C). Unlike the compliance certification, which the Attorney General's overview says does not encompass county facilities, that provision names units of local government expressly. It turns on survey cooperation rather than standards compliance and bites only if the facility is drawn into the representative sample, but it is a federal lever that does reach a county facility.

Change log: REVISED in 3: department confirms no PREA audits; Title 15 inspection relied on as substitute. REVISED in 6: confirmed that neither Title 15 edition contains a PREA or audit requirement. Added the section 8(c)(4) survey cooperation hook, which expressly reaches units of local government.

California-Specific

74. 15 CCR 1324(a)-(n)

Status	**Conflict, Critical priority**
Departmental	PREA Policy (rev. 04/25/2013); Internal Affairs Administrative Investigations

provision	(eff. 01/11/2011, no revision shown); OO 1361 (eff. 01/01/2011, rev. 04/03/2019)

The standard requires. Maintain a written policy and procedure manual addressing at a minimum all applicable regulations, made available to and reviewed by all employees, administratively reviewed at least every two years and updated as necessary.

Divergence. 15 CCR 1324 requires the policy manual to be administratively reviewed at least every two years and updated as necessary. The governing PREA policy has not been revised since April 2013 and predates the January 1, 2019 Title 15 rewrite that added 1350.5, 1352.5, 1324(n), and 1361(h), as well as WIC 208.3 and the renumbering of PC 288a to PC 287. The Internal Affairs Administrative Investigations policy is dated January 11, 2011 with no revision shown, making it roughly fifteen years old, and it governs every sexual abuse investigation involving an employee. On its face this is a 1324 review failure independent of any substantive gap. The 2019 and 2020 operations orders (1350.5, 1352, 1360, 1361, 1362) are current by contrast, which makes the age of the two governing documents more conspicuous, not less. VERIFIED in Revision 5 against Title 15 rev. 04/01/2014, the only edition produced: 1324 requires the manual to be 'administratively reviewed at a minimum every two years, and updated, as necessary.' The biennial review obligation is confirmed, and it has been in force since at least April 2014, so the age of the PREA Policy (2013) and the Internal Affairs policy (2011) has been a standing defect for over a decade rather than a recent lapse. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: the edition effective 01/01/2019 runs 1324(a) to (n), so the range in this row's citation is correct for current text. The biennial administrative review requirement is unchanged between the two editions. Two subsections in the 2019 text bear directly on this register and did not exist in 2014: (k), the non-discrimination provision covering restrictive housing and classification, and (n), which requires the manual to carry a policy prohibiting all forms of sexual abuse, sexual assault and sexual harassment together with an approach to prevention, detection, response, and retaliation. A manual that omits (n) fails the required contents of 1324 on its face, independent of any PREA standard.

Change log: REVISED: Internal Affairs policy age added. VERIFIED in 5: biennial administrative review confirmed against source, in force since at least 04/2014. Subsection range (a)-(n) not confirmed. REVISED in 6: 1324 confirmed to run (a) to (n) in the 2019 edition; (k) and (n) identified.

78. 28 CFR 115.331(a)(11); PC 261.5, 286, 287, 288, 289, 289.6

Status	**Conflict, High priority**
Departmental provision	PREA Policy I.I.1; OO 1352 II.G.1

The standard requires. Train staff on relevant laws regarding the applicable age of consent, and maintain accurate statutory citations in policy.

Divergence. The PREA policy definitions section cites 'Penal Code Section 288a (Oral Copulation).' PC 288a was renumbered to PC 287 by SB 1494 effective January 1, 2019. OO 1352 II.G.1 carries the same problem from the other direction: the S-4 High criteria list sodomy under 286 PC, lewd or lascivious acts under 288 PC, and rape under 261 PC, but omit 287 entirely, so a youth with a documented 287 adjudication does not meet the enumerated S-4 High criteria on the face of the order. OO 1352 II.C.3 also references a pending commitment to the Division of Juvenile Justice, which closed on June 30, 2023 under SB 823. Age of consent is separately not addressed as a training topic. VERIFIED in Revision

9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the S-4 High offence list is confirmed and the omission is broader than recorded. II.G.1 reads "Any documented sex offenses listed below: a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-divisions)." II.G.3 adds "A rape (261 PC, all sub-divisions) arrest or adjudication." That is the complete enumeration: 286, 288 and 261. BROADENED IN REVISION 9: PC 287 is absent as recorded, and so is PC 289, sexual penetration, which is a comparably serious offence and was never flagged. Also absent: 243.4 sexual battery, 264.1, 285 and 647.6. A youth with a documented 287 or 289 adjudication does not meet the enumerated S-4 High criteria on the face of the order. II.C.3 is confirmed as the DJJ reference: it assigns S-1 to "A youth pending Court with a disposition committing them to the California Department of Corrections and Rehabilitation, Division of Juvenile Justice (DJJ), or is already committed to the DJJ." IV.A compounds it by giving DJJ as the worked example of a legal status change requiring classification review.

Change log: REVISED: was Medium. OO 1352 S-4 High omits PC 287 from the enumerated offenses, which is an operational gap, not just a citation error. DJJ reference also noted. VERIFIED in 9 against the produced order: II.G.1, II.G.3 and II.C.3 quoted. BROADENED in 9: PC 289 is also omitted from the S-4 High enumeration, as are 243.4, 264.1, 285 and 647.6. IV.A carries a second DJJ reference.

79. 15 CCR 1350; 15 CCR 1350.5

Status	**Conflict, High priority**
Departmental provision	Detention and Intake Responsibility (Juvenile Hall P&P, J-3.4)

The standard requires. Intake and admittance policies must be consistent with 15 CCR 1350 and 1350.5 and reflect current law.

Divergence. This policy contains no PREA or sexual abuse screening content and does not reference OO 1350.5. It is also substantively obsolete: it repeatedly references the California Youth Authority and CYA parolees, and CYA became the Division of Juvenile Justice in 2005 and closed entirely on June 30, 2023 under SB 823. It also omits the 15 CCR 1350(a) admittance elements added in 2019. Recommend full rewrite and an explicit link to the 1350.5 screening.

85. 28 CFR 115.6 (definitions), by comparison; 15 CCR 1302 (definition of sexual abuse), 1324(n)

Status	Not Addressed, High priority
Departmental provision	PREA Policy (definitions section); OO 1453

The standard requires. Departmental policy must prohibit sexual abuse as California defines it, which is not the same as the federal definition.

Divergence. VERIFIED in Revision 8 against Title 15 effective 01/01/2019: Title 15 carries its own definition. "Sexual abuse" is "sexual activity or voyeurism by one or more persons upon another person who does not consent, is unable to refuse, or is coerced into the act by manipulation, violence, or by overt or implied threats." It is broader than the federal resident-on-resident definition at 28 CFR 115.6 in two ways that matter operationally. First, coercion: the state counts coercion by MANIPULATION,

where the federal definition requires that the resident be coerced by overt or implied threats of violence. Manipulation by an older resident over a younger one is the realistic coercion vector in a facility spanning 13 to 25, and it is precisely the case that can fail the federal test while meeting the state one. Second, voyeurism: the state definition reaches voyeurism by one or more persons upon another, where under the federal definition voyeurism is a staff-only prong and does not appear among the resident-on-resident prongs at all. 1324(n) requires the policy and procedure manual to prohibit all forms of sexual abuse, so this is an enforceable state standard and not background. No produced departmental document adopts or reflects the state definition. The practical risk is a department that screens incidents against the federal test alone and closes conduct the state standard reaches.

Change log: NEW in 8, from verification against the 2019 edition.

86. 28 CFR 115.313(a); 115.342(a)-(b); 15 CCR 1324 (required contents of the manual), 1352

Status	Not Addressed, High priority
Departmental provision	None identified. OO 1352 produced and read in Revision 9: it contains no separation rule.

The standard requires. Controls the department actually relies on should appear in the policy and procedure manual, which 1324 requires to address at a minimum all applicable regulations and to be available to and reviewed by all employees.

Divergence. Facility facts confirmed by the department in Revision 8: the Juvenile Hall houses residents aged 13 to 25, has 17 units of which 12 are in use, houses girls separately from boys, groups boys by age, and treats a resident under 16 housed with one over 18 as uncommon but not prohibited. Three separation controls are in daily use and none of them appears in the documents reviewed: girls housed separately from boys, boys grouped by age, and a resident under 16 kept apart from one over 18 in all but uncommon cases. VERIFIED in Revision 8 against Title 15 effective 01/01/2019: no provision requires housing separation by sex. The only sex-related housing rule in the edition is 1321(h)(1)(D), at least one youth supervision staff member on duty of the same gender as youth housed. There is likewise no age-based rule. So the department is operating three controls that neither the state nor the federal standard requires, which is a stronger position than compliance, and recording none of them. An undocumented control cannot be audited, does not survive staff turnover, erodes silently under population pressure, and in litigation reads as "we usually do not" rather than "our policy prohibits." The remediation is the cheapest in this register because the practice already exists: write it down. Two halves are needed. State the rule, including the age span threshold the department actually applies. Then state the exception path, because the department describes the under-16 with over-18 pairing as uncommon rather than impossible: who authorizes it, what justification is recorded, what additional safeguards attach, and where it is documented. A rule without a written override is not a control. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: reading the order confirms the finding rather than closing it. Nothing in OO 1352 requires housing separation by sex, nothing keys separation to age, and nothing states the under-16 with over-18 rule the department applies in practice. The closest the order comes is III.C.1, unit assignment by "security classification, sophistication, or physical stature," which is a factor and not a rule, and S-1 at II.C, which is written for male youth only (see row 88). So all three separation controls in daily use remain undocumented after the one order most likely to have carried them has been read. The remediation is unchanged and is still the cheapest in this register.

Change log: NEW in 8, from facility facts confirmed by the department. VERIFIED in 9 against the produced order: no sex-based or age-based separation rule appears anywhere in OO 1352. The finding is confirmed by reading rather than inferred from non-production.

87. 28 CFR 115.6 (definitions); 115.371(a); PC 11165.1(a) and (b); PC 261.5, 286, 287, 288, 289; 15 CCR 1302

Status	Not Addressed, Critical priority
Departmental provision	PREA Policy; OO 1390/1391 II.B.4 (sexual misconduct, undefined)

The standard requires. Decide whether sexual contact between two residents is abuse without relying on apparent consent, in a facility that houses both minors and adults.

Divergence. Where a resident under 18 and a resident over 18 are involved in the same incident, the federal and state tests can return opposite answers, and neither can be resolved on the unit. PREA side: resident-on-resident sexual abuse requires that the resident does not consent, is coerced by overt or implied threats of violence, or is UNABLE TO CONSENT OR REFUSE. That third limb is the one that governs the mixed-age case. A minor who cannot lawfully consent to sexual activity with an adult under California law is unable to consent within the meaning of the definition, so apparent willingness does not take the incident out of PREA, and 115.371(a) requires the allegation to be investigated regardless. CANRA side: the analysis is narrower and more treacherous. 11165.1(b)(4) reaches intentional touching of the intimate parts of a child for sexual arousal or gratification, and a child is anyone under 18, so touching a 17 year old is reportable on that basis alone. Against that, 11165.1(a) carries an exception: sexual assault does not include VOLUNTARY conduct in violation of sections 286, 287 or 289 where there are NO INDICATORS OF ABUSE, unless the conduct is between a person 21 or older and a minor under 16. Three things about that exception have to be understood before anyone relies on it. It reaches only 286, 287 and 289, so it does not reach touching under (b)(4) and does not reach intercourse under 261.5. It requires a finding of no indicators of abuse, which in a custodial setting with an age gap is a conclusion reached after investigation and never an observation made on a unit. And it is unavailable outright for a person 21 or older with a minor under 16, which in a facility housing 13 to 25 is a live pairing rather than a hypothetical. Add the state definition at row 85, which counts coercion by manipulation where the federal definition requires threats of violence: manipulation of a younger resident by an older one is the characteristic mixed-age fact pattern, and it is reachable under state law in cases where the federal test alone would not reach it. The operational rule that follows is narrow and should be written down: staff do not apply consent analysis, the PREA report and investigation proceed regardless of apparent willingness, and the CANRA voluntary-conduct exception is never applied at the facility level. No produced document states any of this, and OO 1390/1391 II.B.4 makes it worse by listing sexual misconduct as a major rule violation without defining it, so nothing distinguishes a coerced act from a non-coerced one for either disciplinary or reporting purposes. See row 64. RESOLVED IN PART IN REVISION 9, on the department's own answer: residents aged 18 to 25 are under juvenile court jurisdiction, but CANRA reaches only persons under 18, and THE DEPARTMENT DOES NOT TREAT THEM AS DEPENDENT ADULTS. Jurisdiction is not age: PC 11165 defines a child as a person under 18 and the 11166(a) duty arises only on suspicion that a child has been abused, so a resident over 18 under juvenile court jurisdiction is not a child. With the dependent adult route closed by departmental position, WIC 15630 does not reach them either. The consequence is the finding, and no produced document states it: WHERE BOTH RESIDENTS ARE 18 OR OVER THERE IS NO MANDATED EXTERNAL REPORTING DUTY OF ANY KIND. What remains is not nothing, and the distinction is operational. Every PREA duty is age-neutral because a resident is a resident under the

subpart D definitions, so 115.361(a), 115.371(a), 115.362 and 115.367 apply identically to a 24 year old. The external route is the Sheriff rather than CPS: 15 CCR 1453 requires reporting sexual assaults occurring in the facility to local law enforcement, age-neutrally, and OO 1453 I.A.8 implements it. But the two duties are not equivalent and the differences all run the same way. CANRA triggers on reasonable suspicion, binds the individual employee, and carries personal criminal exposure under 11166(c). OO 1453 I.A.8 triggers on a belief that a sexual assault occurred, binds the Duty Supervisor rather than the employee who saw it, and carries departmental consequences only. Threshold up, duty displaced off the individual, personal exposure gone, all at once, and silently. The OO 1453 trigger is also sexual assault only, so for two adult residents the harassment, exposure and masturbation-in-view tiers have no external reporting route at all. Written into the supervisor guide in Revision 9 as the three ages question asked before the tier chart.

Change log: NEW in 8. The mixed-age consent collision, from facility facts. MATERIALLY REVISED in 9 on the department's confirmed position. Open question 14 resolved: no dependent adult route. New finding: no mandated external reporting duty where both residents are 18 or over, and the OO 1453 I.A.8 substitute differs from CANRA in threshold, in who is bound and in enforcement.

77. 28 CFR 115.361(b); WIC 15610.23, 15630; GO Mandatory Reporting: Dependent Adult and Elder Abuse

Status	Partial, High priority
Departmental provision	General Order, Mandatory Reporting: Dependent Adult and Elder Abuse (eff. 06/30/2017)

The standard requires. Mandated reporters must report known or suspected abuse of a dependent adult to Adult Protective Services or local law enforcement immediately or as soon as practicably possible, with a written or internet report within two working days.

Divergence. The department has a functioning dependent adult reporting order, but the PREA policy's reporting provisions (V.A.4-6) address only child abuse reporting. Title 15 defines 'youth' to include persons over 18 in custody, and a detained resident aged 18 to 64 with a qualifying physical or mental limitation may meet the WIC 15610.23 dependent adult definition. Add a cross-reference so staff have a defined reporting pathway for residents who are 18 or older, who fall outside CANRA. PRIORITY RAISED from Medium to High in Revision 8. The department confirmed the Juvenile Hall houses residents to age 25, so adults are in the main population rather than an occasional edge case. Once a resident turns 18 CANRA stops applying to them entirely, because it protects a child, and this becomes the primary reporting pathway for a substantial part of the population. WIC 15610.23 turns on qualifying physical or mental limitations rather than on age alone, so it is not automatic and the cross reference has to say how the determination is made rather than merely pointing at the dependent adult order. MATERIALLY REVISED IN REVISION 9. The department has confirmed that it DOES NOT treat residents aged 18 to 25 as dependent adults. That position is defensible as a general matter: WIC 15610.23(b) reaches persons 18 to 64 admitted as inpatients to a 24-hour health facility as defined by Health and Safety Code sections 1250, 1250.2 and 1250.3, and a juvenile hall is not one, so detention alone does not create dependent adult status. The difficulty is that 15610.23(a) is an INDIVIDUALIZED test, not a categorical one: a person 18 to 64 "who has physical or mental limitations that restrict his or her ability to carry out normal activities or to protect his or her rights," expressly including persons with developmental disabilities. A blanket departmental position answers categorically a question the statute asks one resident at a time, which is structurally the same defect as S-8 at row 36. SHARPENED by OO 1352, produced in Revision 9: S-5 Mental Health at II.I covers "limited functioning abilities, which would affect the youth's adjustment to a unit program," youth with prescribed psychotropic

medication, and youth "susceptible to victimization within the unit setting, due to limited functioning and/or psychological problems." That tracks the 15610.23(a) description closely, so the department's own classification system already identifies the residents for whom the categorical position is weakest. The question for County Counsel is therefore narrow and answerable: not whether detained adults are dependent adults, but whether a resident over 18 carrying an S-5 classification is one. If the answer is yes, WIC 15630 supplies the mandated reporting duty that row 87 finds missing for adult residents, and it reaches sexual assault through the WIC 15610.63 definition of physical abuse.

Change log: REVISED in 8: priority Medium to High. Adults are in the main population, so this is the primary reporting pathway once CANRA drops away. MATERIALLY REVISED in 9. The department confirmed it does not treat 18 to 25 year olds as dependent adults. Recorded with the 15610.23(a) individualized-test objection and narrowed to the S-5 question, using OO 1352 II.I produced in this revision.

84. 28 CFR 115.341(a)-(e); 115.342(a)-(b); 15 CCR 1302 (definition of youth), 1350.5(d)-(f), 1352, 1354

Status	Partial, Critical priority
Departmental provision	OO 1352 (Classification), Purpose and Scope, III.C.1; OO 1350.5; OO 1354, never produced

The standard requires. Use screening and classification to keep residents safe, including by weighting age, level of emotional and cognitive development, and physical size and stature, in a facility whose population spans a twelve year age range.

Divergence. Facility facts confirmed by the department in Revision 8: the Juvenile Hall houses residents aged 13 to 25, has 17 units of which 12 are in use, houses girls separately from boys, groups boys by age, and treats a resident under 16 housed with one over 18 as uncommon but not prohibited. VERIFIED in Revision 8 against Title 15 effective 01/01/2019: Title 15 defines "Youth" as "any person who is in the custody of the juvenile facility. This person may be a minor under the age of 18 or a person over 18 years of age," and includes persons under both juvenile and adult court jurisdiction. Every Title 15 duty therefore applies identically to a 13 year old and a 25 year old. Searched in full: separation under 1354 is keyed to behavior and status, and no provision anywhere in the edition keys separation to age. On the federal side neither 115.14 nor 115.114, the youthful inmate and youthful detainee standards, applies in a juvenile facility, and a person over 18 held in one remains a resident under the subpart D definitions. The consequence is the finding: NOTHING IN FEDERAL OR STATE LAW REQUIRES SIGHT AND SOUND SEPARATION OF A 13 YEAR OLD FROM A 25 YEAR OLD IN THIS FACILITY. The only control is classification. 1350.5 supplies the right factors at (d) age, (e) level of emotional and cognitive development, and (f) physical size and stature, so the state screening instrument contemplates exactly this problem. Whether OO 1352 weights those factors across a twelve year span cannot be assessed, because OO 1352 has never been produced, and the two classification defects this register does document, the S-8 mandate at row 36 and the S-4 victim to perpetrator inference at row 80, both sit in that same order. Scored Not Addressed because no produced document contains an age based housing provision, not because the department does nothing: see row 86, where the practice exists and the documentation does not. VERIFIED in Revision 9 against OO 1352, eff. 12/09/2019, rev. 02/27/2020, produced and read in full: the order does weight age, and this row overstated the gap. The Purpose and Scope paragraph lists "age, maturity, sophistication, emotional stability, program needs, legal status, public safety considerations, gender and gender identity" as classification factors on an "including but not limited to" basis, and III.C.1 provides that "Unit assignments will be based upon security classification, sophistication, or physical stature." So two of the three 1350.5 factors this

row names, age and physical size and stature, are in the order, and maturity and emotional stability stand in for the third. STATUS RAISED from Not Addressed to Partial on that basis, which is a change in the department's favour. What remains absent is what the row was really about: there is no age-based housing RULE anywhere in the order, no threshold, no provision addressing a twelve year span, and nothing distinguishing a 13 year old from a 25 year old in any of the nine classification codes. Age is a factor a Classification Officer may weigh. It is not a control. The gap is now a gap in the rule, not a gap in the factors.

Change log: NEW in 8, from facility facts confirmed by the department. VERIFIED in 9 against the produced order. STATUS RAISED Not Addressed to Partial: the Purpose paragraph weights age and III.C.1 weights physical stature, so the factors exist. The absence of any age-based housing rule is unchanged and is now the whole of the finding. CORRECTION, NEW IN REVISION 9, AND IT RUNS AGAINST THIS ROW AS REVISION 8 WROTE IT: Revision 8 stated that nothing in federal or state law keys separation to age in this facility. That was overbroad. It is true of the Title 15 edition effective 01/01/2019, which was the only thing searched, but WIC 875 is state law and it carries two age and status keyed controls. 875(j) provides that a person who is 25 years of age or older "shall not be committed to or detained in a county juvenile facility, unless the court finds that such a commitment or detention is in the best interest of that person and does not find that it would create a risk to the other youth in the juvenile facility," and authorises the juvenile court to order that person into an adult facility instead. 875(k) imposes the same bar and the same two findings on a person returning to local custody who was previously sentenced to state prison or committed to the Division of Juvenile Justice. Neither requires separation inside the facility, and neither is a housing rule, so the narrow finding survives: the controls are admission and commitment controls, exercised by the court rather than by the facility. But the broad statement was wrong and is withdrawn. OPERATIONAL CONSEQUENCE, AND IT IS A QUESTION FOR THE DEPARTMENT: the department has confirmed the hall houses residents to age 25. 875(j) bites at 25, not at 26, so every resident who is 25 or older requires a court finding on the record that detention is in that person's best interest and does not create a risk to the other youth. Confirm whether the population in fact tops out at 24, whether 875(j) findings exist for any resident who is 25 or older, and where they are filed. Note also 875(a)(3)(E), which requires the court to weigh the ward's age, developmental maturity, mental and emotional health, sexual orientation, gender identity and expression, and any disabilities or special needs in the suitability finding, which is the same factor set 1350.5 uses and is further confirmation that the state treats these as placement factors rather than as classification labels.

90. 28 CFR 115.311(c); 115.313(a); 115.342(a)-(b); WIC 875(g)(3)-(4), 875(j)-(k), 875(c)(1)(A), 875(a)(3)(E); WIC 209; 15 CCR Minimum Standards for Juvenile Facilities eff. 01/01/2019 (operative)

Status	Not Evidenced, High priority
Departmental provision	None produced. No reviewed document references WIC 875 or a secure youth treatment facility.

The standard requires. Where a county operates a secure youth treatment facility, or a unit of a juvenile hall configured as one, comply with the BSCC standards governing its establishment, security, programming and staffing, including the standards specifying how the facility separates secure youth treatment wards from other detained juveniles.

Divergence. NEW IN REVISION 9, from WIC 875 as it currently stands. This row exists because the age span the department confirmed in Revision 8 is a product of SB 823 realignment, and the statute that produced it carries duties no reviewed document mentions. WIC 875(c)(1)(A) sets the outer limits: a ward committed to a secure youth treatment facility "shall not be held in secure confinement beyond

23 years of age, or two years from the date of the commitment, whichever occurs later," extending to 25 years of age where the offence would carry an aggregate adult sentence of seven or more years. That is where a 13 to 25 population comes from. 875(g)(2) provides that such a facility "may be a unit or portion of an existing county juvenile facility, including a juvenile hall," so the question is whether any YDF unit is configured as one. THE PROVISION THAT MATTERS MOST HERE IS 875(g)(3): the Board of State and Community Corrections was required by July 1, 2023 to modify or add standards for the establishment, design, security, programming and education, and staffing of any facility used as a secure youth treatment facility, developed with the concurrence of the Office of Youth and Community Restoration, and "The standards shall specify how the facility may be used to serve or to separate juveniles, other than juveniles described in subdivision (a) serving baseline confinement terms, who may also be detained in or committed to the facility or to some portion of the facility." That is an express state separation mandate, directed at exactly the mixed population this register has been documenting since Revision 8, and it is the provision Revision 8 should have found and did not. 875(g)(4) adds a BSCC biennial inspection under WIC 209 of each such facility. CORRECTED IMMEDIATELY AFTER REVISION 9, BY THE DEPARTMENT, AND THE CORRECTION MATTERS: this row as first written said BSCC had published a regulation text revised 01/2023 and that the 01/01/2019 edition was therefore at least two revisions stale, calling that the largest verification gap in the register. THAT IS WRONG. The department advises that the January 2023 juvenile regulations text is STILL UNDER CONSIDERATION and has not been approved, and that its contents may yet change. It is a proposed revision in an open rulemaking, produced by the Juvenile Regulations Revision Executive Steering Committee, not an adopted edition. The error was mine: I inferred an adopted edition from document titles returned by search without confirming adoption status, which is precisely the failure mode this project's verification rule exists to prevent. DO NOT CITE THE PROPOSED TEXT FOR ANY PROPOSITION, and do not draft against it. The edition effective 01/01/2019 remains the operative one for every Title 15 citation in this register, so those citations are sound. WHAT IS GENUINELY OPEN IS NARROWER. WIC 875(g)(3) required BSCC to adopt secure youth treatment facility standards by 07/01/2023, including the separation standards quoted above, and the comprehensive revision that would carry them is still pending. Whether any SYTF standards were adopted separately, including by emergency rulemaking, has not been established from this environment. 875(g)(3) answers that question in part on its own face: "Pending the final adoption of these modified standards, a secure youth treatment facility shall comply with applicable minimum standards for juvenile facilities in Title 15 and Title 24 of the California Code of Regulations." So if nothing SYTF-specific has been adopted, the 01/01/2019 edition governs any such unit by operation of the statute, and the separation standards 875(g)(3) contemplates do not yet exist to be complied with. That is a finding about the state, not about the department. Scored Not Evidenced rather than Not Addressed because the governing standard has not been produced, so whether the department complies cannot be assessed either way. Obtain the current BSCC juvenile regulations and confirm first whether any YDF unit operates as a secure youth treatment facility. If one does, the separation standards under 875(g)(3) are directly on point for rows 84 and 86 and may already supply the written rule those rows say is missing. ONE THING THIS ROW DOES NOT REST ON: SB 824 (Menjivar, 2025-2026), which would have amended 875 to add transition planning duties to the individual rehabilitation plan, FAILED on February 2, 2026, returned to the Secretary of the Senate under Joint Rule 56. Nothing in it is law and nothing in this row depends on it. The provisions quoted above are existing law that SB 824 left untouched.

Change log: NEW in 9, from WIC 875 and the confirmed failure of SB 824. CORRECTED immediately after 9: the January 2023 BSCC text is a pending proposal, not an adopted edition. The 01/01/2019 edition remains operative.

75. 28 CFR 115.315(e); 115.342(d)-(g); 15 CCR 1352.5

Status	Addressed, Low priority
Departmental provision	OO 1352.5, Transgender and Intersex Youth, effective March 1, 2019

The standard requires. Written policies and procedures ensuring respectful and equitable treatment of transgender and intersex youth: respect for gender identity, preferred name and pronoun, clothing and undergarments consistent with gender identity, housing that best meets individual needs with documented reasons for any decision not matching gender identity, consideration of the youth's preferences and provider recommendations, access to qualified medical and behavioral health providers, privacy during bathroom, shower, and dressing, no physical searches to determine anatomical sex, and respect for the youth's preference on the gender of the searching staff member whenever feasible.

Divergence. Produced and reviewed. The order implements 15 CCR 1352.5 comprehensively: respect for gender identity and preferred pronoun with documented exceptions for gang or slang names (II.A); dress and undergarments consistent with gender identity (II.B); access to qualified medical and behavioral health providers (II.C); safety and privacy for bathroom, shower, and dressing (II.D); individualized housing with documented justification (III.B, III.F); consideration of youth preference and provider recommendations (III.C); no physical search to determine anatomical sex (IV.A.1); and respect for the youth's preference on the gender of searching staff whenever feasible (IV.A.3). Revision 1 of this analysis wrongly reported that no such policy existed and revision 2 could not assess it. The finding is now closed except for the III.I categorical single-room provision, which is tracked in the 115.342(d)-(g) row, and one date problem worth noting: 1352.5 took effect March 1, 2019, and OO 1352 created the conflicting S-8 classification in December 2019 and revised it in February 2020, meaning the later order contradicted the earlier one. VERIFIED in Revision 6 against Title 15 effective 01/01/2019, the post-rewrite edition: 1352.5 exists, titled Transgender and Intersex Youth, running (a) to (e). Most relevant to this register: (c) requires staff to 'house youth in the unit or room that best meets their individual needs,' provides that staff 'may not automatically house youth according to their external anatomy,' requires documented reasons for any placement not matching gender identity, and requires consideration of the youth's preferences and of provider recommendations. That is an expressly individualized standard, which is what makes a categorical single-room rule a conflict with it.

Change log: MATERIALLY REVISED in 3: policy produced and substantially compliant. Corrects revisions 1 and 2. FLAGGED in 5: 15 CCR 1352.5 not confirmed; absent from the produced edition. REVISED in 6: 1352.5 confirmed against the 2019 edition and quoted.

76. 15 CCR 1362

Status	Addressed, Medium priority
Departmental provision	OO 1362 (Reporting of Incidents)

The standard requires. A written report of all incidents resulting in physical harm, use of force, serious threat of physical harm, or death shall be prepared by staff and submitted to the facility manager by end of shift unless additional time is authorized.

Divergence. OO 1362 substantially exceeds the Title 15 minimum, and I.A.13 lists sexual assault, acting out, and other inappropriate sexual behavior as a reportable serious event. Consider adding an explicit PREA flag field to the IIR so that sexual abuse and sexual harassment allegations are machine-identifiable for the 115.387 data set rather than requiring narrative review.

5. The same findings, policy by policy

Part 4 is organized the way an auditor reads. This part is organized the way the work gets done: one document at a time. A requirement that cites more than one document appears under each, so the counts below sum to more than 91.

PREA Policy and Procedure, Juvenile Institutions

eff/rev 04/25/2013. Cited by 48 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
7	**2**	31	0	8

Conflicts to correct. row 36 (28 CFR 115.342(c); 15 CCR 1352(e)-(f)); row 48 (28 CFR 115.361(b); PC 11164 et seq.; PC 11166(a); PC 11165.9); row 52 (28 CFR 115.363(a)-(d)); row 59 (28 CFR 115.371(g)-(h), (j)-(k)); row 64 (28 CFR 115.378(a)-(g); 15 CCR 1390, 1391); row 74 (15 CCR 1324(a)-(n)); row 78 (28 CFR 115.331(a)(11); PC 261.5, 286, 287, 288, 289, 289.6).

Silent on. row 85 (28 CFR 115.6 (definitions), by comparison; 15 CCR 1302 (definition of sexual abuse), 1324(n)); row 87 (28 CFR 115.6 (definitions); 115.371(a); PC 11165.1(a) and (b); PC 261.5, 286, 287, 288, 289; 15 CCR 1302).

All rows: 1, 4, 8, 9, 13, 16, 17, 18, 19, 20, 22, 23, 24, 25, 26, 28, 30, 35, 36, 38, 40, 43, 47, 48, 49, 51, 52, 53, 55, 56, 57, 58, 59, 62, 64, 65, 66, 67, 68, 69, 70, 72, 74, 78, 81, 82, 85, 87.

OO 1321 Staffing

reviewed 01/16/2020. Cited by 2 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	**1**	0	0	0

Conflicts to correct. row 6 (28 CFR 115.313(c); 15 CCR 1321(h)(1)).

Silent on. row 5 (28 CFR 115.313(a)-(b); 15 CCR 1321(a), (h)).

All rows: 5, 6.

OO 1322 Training and Staff Development

eff 06/15/2015, rev 05/08/2019. Cited by 2 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
0	0	1	0	1

All rows: 20, 22.

OO 1350.5 Screening for the Risk of Sexual Abuse

eff 11/10/2019. Cited by 4 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
0	0	3	0	1

All rows: 31, 33, 66, 84.

OO 1352 Classification

eff 12/09/2019, rev 02/27/2020. Cited by 13 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
3	**5**	4	0	1

Conflicts to correct. row 36 (28 CFR 115.342(c); 15 CCR 1352(e)-(f)); row 78 (28 CFR 115.331(a)(11); PC 261.5, 286, 287, 288, 289, 289.6); row 80 (28 CFR 115.341(c), 115.342; 15 CCR 1350.5(a)).

Silent on. row 32 (28 CFR 115.341(b)); row 83 (28 CFR 115.317(c)(2), (d)); row 86 (28 CFR 115.313(a); 115.342(a)-(b); 15 CCR 1324 (required contents of the manual), 1352); row 88 (28 CFR 115.341(a)-(e); 115.342(a); 15 CCR 1324(k), 1352(e)); row 89 (28 CFR 115.341 (controls on dissemination of screening information); 15 CCR 1350.5 (dissemination controls), 1352(e), 1324(k); Health and Safety Code 121070).

All rows: 31, 32, 34, 35, 36, 78, 80, 82, 83, 84, 86, 88, 89.

OO 1352.5 Transgender and Intersex Youth

eff 03/01/2019. Cited by 4 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
2	0	0	0	2

Conflicts to correct. row 36 (28 CFR 115.342(c); 15 CCR 1352(e)-(f)); row 37 (28 CFR 115.342(d)-(g); 15 CCR 1352.5(a)-(e)).

All rows: 11, 36, 37, 75.

OO 1360 Searches

eff 12/01/2019, rev 03/04/2020. Cited by 2 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
0	**1**	1	0	0

Silent on. row 10 (28 CFR 115.315(d); 15 CCR 1352.5(e)).

All rows: 9, 10.

OO 1361 Grievances

eff 01/01/2011, rev 04/03/2019. Cited by 8 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	**1**	5	0	1

Conflicts to correct. row 74 (15 CCR 1324(a)-(n)).

Silent on. row 44 (28 CFR 115.353(c)).

All rows: 38, 39, 40, 42, 43, 44, 70, 74.

OO 1362 Reporting of Incidents

eff 11/01/2019. Cited by 3 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	0	1	0	1

Conflicts to correct. row 64 (28 CFR 115.378(a)-(g); 15 CCR 1390, 1391).

All rows: 64, 70, 76.

OO 1453 Sexual Assault

eff 04/25/2013, rev 12/09/2019. Cited by 10 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
3	**1**	6	0	0

Conflicts to correct. row 2 (28 CFR 115.311(b)); row 48 (28 CFR 115.361(b); PC 11164 et seq.; PC 11166(a); PC 11165.9); row 91 (28 CFR 115.334; 115.371(a)-(b); 115.321(d)-(e); WIC 625.6(a), (c) and (d) (as amended by SB 203, eff. 01/01/2021); WIC 625.7 (eff. 07/01/2024); PC 679.04; Evidence Code 780).

Silent on. row 85 (28 CFR 115.6 (definitions), by comparison; 15 CCR 1302 (definition of sexual abuse), 1324(n)).

All rows: 2, 16, 18, 19, 48, 53, 54, 69, 85, 91.

Internal Affairs Administrative Investigations

eff 01/11/2011, no revision. Cited by 8 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
2	**1**	4	0	1

Conflicts to correct. row 59 (28 CFR 115.371(g)-(h), (j)-(k)); row 74 (15 CCR 1324(a)-(n)).

Silent on. row 29 (28 CFR 115.334(a)-(d)).

All rows: 29, 58, 59, 60, 61, 62, 74, 81.

Code of Conduct, Non-Sworn and Non-County Personnel

eff 06/01/2011. Cited by 3 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	0	2	0	0

Conflicts to correct. row 48 (28 CFR 115.361(b); PC 11164 et seq.; PC 11166(a); PC 11165.9).

All rows: 24, 48, 63.

Detention and Intake Responsibility (J-3.4)

undated. Cited by 1 requirement.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	0	0	0	0

Conflicts to correct. row 79 (15 CCR 1350; 15 CCR 1350.5).

All rows: 79.

General Order, Mandatory Reporting: Dependent Adult and Elder Abuse

eff 06/30/2017. Cited by 1 requirement.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
0	0	1	0	0

All rows: 77.

OO 1354.5 Room Confinement

eff 04/05/2023. Cited by 2 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
0	0	2	0	0

All rows: 35, 57.

OO 1390/1391 Discipline and Discipline Process

eff 10/01/2013, rev 05/01/2020. Cited by 2 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	**1**	0	0	0

Conflicts to correct. row 64 (28 CFR 115.378(a)-(g); 15 CCR 1390, 1391).

Silent on. row 87 (28 CFR 115.6 (definitions); 115.371(a); PC 11165.1(a) and (b); PC 261.5, 286, 287, 288, 289; 15 CCR 1302).

All rows: 64, 87.

Internal Complaints (Administrative P&P Manual)

rev 10/30/2013. Cited by 9 requirements.

Conflict	Not Addressed	Partial	Not Evidenced	Addressed
1	0	8	0	0

Conflicts to correct. row 59 (28 CFR 115.371(g)-(h), (j)-(k)).

All rows: 38, 41, 42, 47, 56, 58, 59, 61, 62.

No departmental document identified

13 requirements cite none of the 17 documents reviewed. Eleven record no departmental provision at all and cannot be remediated by amendment: they need drafting or an administrative decision. Two turn on documents that exist but were not produced, rows 14, 45, and may close on production.

Row	Authority	Status	Requirement
3	28 CFR 115.311(c)	Not Addressed, Critical	Where an agency operates more than one facility, each facility shall designate a PREA Compliance Manager with sufficient time and authority to coordinate that facility's compliance.
7	28 CFR 115.313(d)	Not Addressed, High	At least annually, in consultation with the PREA Coordinator, assess, determine, and document whether adjustments are needed to the staffing plan, prevailing staffing patterns, video monitoring deployment, and resources available to adhere to the plan.
12	28 CFR 115.315(f)	Not Addressed, High	Train security staff how to conduct cross-gender pat-down searches and searches of transgender and intersex residents professionally, respectfully, and in the least intrusive manner consistent with security needs.
15	28 CFR 115.318(a)-(b)	Not Addressed, Low	When designing, acquiring, expanding, or modifying facilities, and when installing or updating video or other monitoring technology, consider the effect on

Row	Authority	Status	Requirement
			the ability to protect residents from sexual abuse.
21	28 CFR 115.331(b)	Not Addressed, Medium	Training tailored to the unique needs and attributes of juvenile residents and to the gender of residents at the employee's facility, with additional training when an employee transfers between a male-only and a female-only facility.
27	28 CFR 115.333(c)	Not Addressed, Medium	Residents receive education upon transfer to a different facility to the extent the new facility's policies and procedures differ.
46	28 CFR 115.354; 15 CCR 1324(n)	Not Addressed, High	Establish a method to receive third-party reports of sexual abuse and sexual harassment and distribute publicly information on how to report on behalf of a resident.
50	28 CFR 115.361(e)	Not Addressed, Critical	On receiving any allegation of sexual abuse, the facility head or designee shall promptly report it to the appropriate agency office and to the alleged victim's parents or legal guardians unless official documentation shows they should not be notified; to the caseworker instead if the youth is under child welfare guardianship; and, where a juvenile court retains jurisdiction, to the youth's attorney or legal representative of record within 14 days.
71	28 CFR 115.388(a)-(d)	Not Addressed, Critical	Review the aggregated data to assess and improve the effectiveness of prevention, detection, and response policies, practices, and training by identifying problem areas, taking ongoing corrective action, and preparing an annual report of findings and corrective actions for each facility and for the agency as a whole; compare the current year with prior years and assess progress; the report must be approved by the agency head and made readily available to the public, with any redactions identified.
73	28 CFR 115.393; 115.401-115.405	Not Addressed, Critical	Ensure each facility is audited at least once during every three-year cycle, with at least one-third of each facility type audited each year, by a DOJ-certified auditor; the auditor's final report must be published on the agency website or otherwise made readily available to the public.
14	28 CFR 115.317(a)-(h); 15 CCR 1320(b)(4)	Partial, High	Do not hire, promote, or contract with anyone who has engaged in sexual abuse in an institution or been convicted or adjudicated for coercive sexual activity. Before hiring: criminal background check, child abuse registry check, and best efforts to contact all prior institutional employers about substantiated allegations or resignations during a pending investigation. Repeat background checks at least every five years. Ask applicants and employees directly about prior misconduct, impose a continuing duty to disclose,

Row	Authority	Status	Requirement
			treat material omissions as grounds for termination, and respond to reference requests from other institutional employers.
45	28 CFR 115.353(d); 15 CCR 1356, 1377	Not Evidenced, Low	Provide residents reasonable and confidential access to attorneys or other legal representation and reasonable access to parents or legal guardians.
90	28 CFR 115.311(c); 115.313(a); 115.342(a)-(b); WIC 875(g)(3)-(4), 875(j)-(k), 875(c)(1)(A), 875(a)(3)(E); WIC 209; 15 CCR Minimum Standards for Juvenile Facilities eff. 01/01/2019 (operative)	Not Evidenced, High	Where a county operates a secure youth treatment facility, or a unit of a juvenile hall configured as one, comply with the BSCC standards governing its establishment, security, programming and staffing, including the standards specifying how the facility separates secure youth treatment wards from other detained juveniles.

6. How to use this against the register

The gap register remains the working record. This document is generated from it, so it is a view rather than a second source of truth. When a finding changes, the register is edited, what changed is recorded in its change log using the convention already in use, and this document is regenerated.

The owner, target date, and disposition columns of the register are intentionally empty. Populating them is what turns the register into the corrective action plan, which is the record that matters if anyone asks what the department did after it identified these issues.

Sequence suggested by this view. The thirteen conflicts at part 3 first, because each is a provision the department can be shown to have published and most are correctable by amendment. Then the eleven requirements with no departmental provision at all at part 5, because those need drafting lead time. The forty-one partials last, since each already has an anchor to amend.

Youth sexual conduct: what supervisors must do

A decision guide for comments, exposure, and touching between youth

Sacramento County Probation Department
Youth Detention Facility

DRAFT FOR COUNTY COUNSEL REVIEW. Not for issuance to supervisors until the CANRA column is confirmed.

This is not legal advice. It is a policy and standards analysis prepared for internal use. The CANRA determinations in particular route to County Counsel before this issues to anyone.

Citation and verification notes

The due process provision for major rule violations is cited here as 15 CCR 1391(f), its numbering in the edition effective 01/01/2019. Revision 6 brought the gap register into line with that numbering, so this guide and the register agree. Two further citations were corrected in the same pass: 15 CCR 1324(h) is 1324(k), and 34 U.S.C. 30307(e)(2) is 30307(c)(2). Neither is used in this guide.

The CANRA and 28 CFR 115.6 text quoted here is corroborated from search, including exact-phrase matches against the Cornell, eCFR, FindLaw and Justia listings, and has NOT been read from the Penal Code or the Code of Federal Regulations directly, because network access to those sources is blocked from the drafting environment. The Title 15 citations are different: those were read in full from the edition effective 01/01/2019 and are quoted into the gap register. Confirm the CANRA and federal quotations against primary source before this issues.

Contents

Why this exists

Staff are getting one-off sexualized comments between youth and do not know whether they have a PREA incident, a CPS report, a rule violation, or none of those. The uncertainty is not a training failure. It is the predictable result of two different legal tests with different thresholds, applied to the same incident, where the department's own documents misstate one of them. This guide separates the tests.

Four rules that apply to every incident

1. Run two separate tests. They converge on contact and diverge everywhere else.

The PREA test asks what category the conduct falls in under 28 CFR 115.6. The CANRA test asks whether a mandated reporter has reasonable suspicion that a child has been the victim of child abuse under Penal Code 11165.1. For touching, the two tests line up almost exactly: the same intimate body parts, the same through-clothing rule, and a matching carve-out for contact during a fight. Away from contact they come apart in both directions. Repeated comments are PREA and not CANRA. Masturbation in view of another youth is CANRA on the first occurrence and not PREA unless repeated. Answering one question never answers the other.

2. Line staff report. They do not classify.

28 CFR 115.361(a) requires staff to report any knowledge, suspicion, or information regarding an incident of sexual abuse or sexual harassment. Nothing in it asks the reporting employee to decide which one it is. An officer who has to run a legal test before speaking up is an officer who will stay quiet. Classification is the supervisor's job, after the report.

3. The CANRA duty is individual and cannot be delegated.

Penal Code 11166(i)(1) makes the mandated reporter duty personal, bars any supervisor from impeding or inhibiting a report, and prohibits sanctions for reporting. Telling the Duty Supervisor does not discharge an employee's own duty. If the employee who heard it forms a reasonable suspicion, that employee reports, and this guide does not override that.

4. Document every time, including the times you decide it is nothing.

PREA sexual harassment requires conduct that is repeated. Repetition only exists if the first incident was written down. A facility that logs only what it is already sure is PREA can never build the record that establishes a pattern, and will under-report itself into an audit finding. Write down the words used verbatim and the target youth's response verbatim.

The tiers at a glance

Find the conduct, then read the full tier. The two right columns are different tests and they do not track each other.

Tier	Conduct	PREA	CPS report
1	A single unwelcome sexualized comment directed at another youth,	Not PREA on these facts	NO

Tier	Conduct	PREA	CPS report
	with no contact, no exposure, no threat and no leverage		
2	Sexualized comments or gestures of a derogatory or offensive nature, repeated and unwelcome, directed at the same youth	PREA sexual harassment	NO
3	One youth exposes his genitals to another youth	PREA sexual harassment only if repeated	NO, but read tier 4
4	One youth masturbates in the presence of or in view of another youth	PREA sexual harassment only if repeated	**YES if the youth who saw it is under 18**
5	Intentional touching of another youth's genitalia, anus, groin, breast, inner thigh, or buttocks, including through the clothing	**PREA SEXUAL ABUSE**	**YES if either resident is under 18**
6	Oral, anal, or penetrative sexual contact, attempted or completed	**PREA SEXUAL ABUSE**	**YES if either resident is under 18**

Tier 1

The conduct. A single unwelcome sexualized comment directed at another youth, with no contact, no exposure, no threat and no leverage. The "I'll eat your ass" case.

PREA	**Not PREA on these facts.** Not sexual abuse: that definition is contact based. Not sexual harassment either, because 115.6 requires conduct that is "repeated and unwelcome." A single comment does not meet the definition on its face.
CPS report	**NO.** No. Words are not conduct in violation of any offense enumerated at Penal Code 11165.1(a), and they are not among the acts listed at 11165.1(b). Nothing in CANRA reaches speech alone.

Required steps

- Separate the youth and check the target's immediate safety.
- Staff reports to the Duty Supervisor immediately.
- Incident report naming both youth, the words used verbatim, and the target's response verbatim.
- Supervisor records the classification decision and the reason, including the decision not to make a CANRA report.
- Treat as classification information on both youth: risk of abusiveness for the speaker, risk of victimization for the target.
- Check the target's history. If this is the second time toward the same youth, it is tier 2.

Tier 2

The conduct. Sexualized comments or gestures of a derogatory or offensive nature, repeated and unwelcome, directed at the same youth. Still no contact and no exposure.

PREA	**PREA sexual harassment.** Sexual harassment under 115.6, prong one. A reportable PREA incident. Log it. Whether 115.387 data collection reaches sexual harassment as well as sexual abuse has NOT been verified against the CFR text from this drafting environment, so inclusion is the safe default rather than a confirmed requirement. Confirm the collection scope before the department sets it: register row 70.
CPS report	**NO.** No, on the same reasoning as tier 1. Repetition makes it PREA. It does not turn speech into an act CANRA reaches.

Required steps

- Everything in tier 1.
- Classify and log as a PREA sexual harassment incident.
- Assess whether the target is at substantial risk of imminent sexual abuse. If yes, 115.362 requires immediate action to protect, separately from any investigation.
- Reassess classification and housing for both youth.
- If the target or any youth reported it, begin retaliation monitoring under 115.367: at least 90 days, with periodic status checks.

Tier 3

The conduct. One youth exposes his genitals to another youth. Flashing, with no masturbation and no contact.

PREA	**PREA sexual harassment only if repeated.** Not sexual abuse, because there is no contact. It is an "action of a derogatory or offensive sexual nature" under the harassment prong, so a single incident fails the "repeated" element and a repeat does not.
CPS report	**NO, but read tier 4.** No on these facts. Penal Code 314, indecent exposure, is not among the offenses enumerated at 11165.1(a), and bare exposure is not among the acts listed at 11165.1(b). Read tier 4 before settling on this answer: if the youth was masturbating, the answer changes.

Required steps

- Everything in tier 1.
- Establish whether there was masturbation. That single fact decides the CANRA question, so put the answer in the incident report in plain terms rather than leaving it to inference.
- Consider whether the exposure was directed at a specific youth. Directed conduct is the stronger indicator for the 115.362 protection assessment.
- Consider a Penal Code 314 referral separately. That is a law enforcement and District Attorney question and does not travel with the CANRA question.

Tier 4

The conduct. One youth masturbates in the presence of or in view of another youth.

PREA	**PREA sexual harassment only if repeated.** Not sexual abuse, because there is no contact. Sexual harassment under the harassment prong only if repeated, same as tier 3.
CPS report	**YES if the youth who saw it is under 18.** YES. Penal Code 11165.1(b)(5) lists "the intentional masturbation of the perpetrator's genitals in the presence of a child" as conduct described as sexual assault. It is reportable on the first occurrence, with no repetition element, and it does not depend on any offense in the 11165.1(a) list. This tier is the clearest case in the guide where the CANRA answer is yes and the PREA answer is no. AGE QUALIFIER, new in Revision 8. That answer assumes the youth who saw it is under 18. The element in (b)(5) is masturbation in the presence of a CHILD. Where the youth who saw it is 18 or over there is no child, and CANRA imposes no duty, however many times it happens. The PREA answer is unchanged by the ages of either youth. See the mixed ages section.

Required steps

- Everything in tier 1.
- Mandated report by telephone immediately or as soon as is practicably possible, written report on form SS 8572 within 36 hours. Do not wait for the investigation or for a supervisor's approval.
- Record the basis in the incident report: intentional masturbation, in the presence of the other youth.
- Apply 115.362 protection duties and reassess housing for both youth.
- Begin retaliation monitoring under 115.367 if the target reported it.

Tier 5

The conduct. Intentional touching of another youth's genitalia, anus, groin, breast, inner thigh, or buttocks, including through the clothing. The grabbing-at-the-butt case.

PREA	**PREA SEXUAL ABUSE.** Sexual abuse under 115.6. The body areas are enumerated by name, contact through clothing counts, and the only exclusion is contact incidental to a physical altercation. It is not horseplay and it is not a tier below the comment cases. One element the chart previously left out: the resident-on-resident definition applies where the victim does not consent, is coerced by overt or implied threats of violence, or is unable to consent or refuse. An unwanted grab satisfies that on its face, but the element has to be established and written down rather than assumed, and it is what separates this from consensual contact between youth, which is a rule violation and a safety problem but is not resident-on-resident sexual abuse under this definition.
CPS report	**YES if either resident is under 18.** YES, where the touching was for sexual arousal or gratification. Penal Code 11165.1(b)(4) covers "the intentional touching of the genitals or intimate parts, including the breasts, genital area, groin, inner thighs, and buttocks, or the clothing covering them, of a child, or of the perpetrator by a child, for purposes of sexual arousal or gratification." Note how closely that tracks the PREA list: the same body parts, the same through-clothing rule. CANRA adds a purpose element that PREA does not have, and excludes acts reasonably construed as normal caretaker responsibilities, demonstrations of affection, or acts for a valid medical purpose, none of which fit a deliberate grab between youth. Penal Code 11165.6 separately excludes "a mutual affray between minors," which is the CANRA analogue of the PREA carve-out for contact incidental to a physical altercation. Contact during a fight is outside both. AGE QUALIFIER, new in Revision 8. (b)(4) reaches the touching of the intimate parts "of a child, or of the perpetrator by a child," so it is keyed to a child on either side of the contact. Report where EITHER resident is under 18, and do not decide on the unit which of them is the victim: that is an investigative conclusion, and Penal Code 11172(a) gives the reporter immunity. Where both residents are 18 or over, CANRA does not apply at all, because there is no child. The PREA duty, the criminal referral and the facility investigation are not affected either way. See the mixed ages section.

Required steps

- Separate immediately and secure the target youth's safety before anything else.
- Staff reports to the Duty Supervisor immediately. Treat as a PREA sexual abuse allegation from the first moment.
- Mandated report by telephone immediately unless the contact was plainly incidental to a fight, which is outside both definitions. If that is the call, write down why.
- Preserve evidence. Do not let either youth shower, change, or clean up, and secure the area, until a determination is made about forensic needs under OO 1453.
- Refer for administrative or criminal investigation. 115.371(a) requires investigation of all sexual abuse allegations; there is no discretion to decide one is unnecessary.
- Apply 115.362 protection duties and reassess housing for both youth.

- Begin retaliation monitoring under 115.367.

Tier 6

The conduct. Oral, anal, or penetrative sexual contact, attempted or completed. Or any conduct in any tier above accomplished by force, threat, coercion, or leverage over the other youth.

PREA	**PREA SEXUAL ABUSE.** Sexual abuse under 115.6, at the most serious end. Full response. The same non-consent element applies: the victim does not consent, is coerced by overt or implied threats of violence, or is unable to consent or refuse. Force or coercion establishes it outright. Where youth describe the contact as mutual, do not resolve consent on the unit; age, the custodial setting and any disparity between the two all bear on whether a youth was able to consent or refuse, and that determination belongs to the investigation.
CPS report	**YES if either resident is under 18.** YES. Reportable twice over: Penal Code 261, 286, 287 and 289 are enumerated at 11165.1(a), and the acts themselves are listed at 11165.1(b)(1) to (3). Force or coercion also removes the 11165.1(a) exception for voluntary conduct. One point for County Counsel rather than for the floor: that exception excludes voluntary conduct violating 286, 287 or 289 where there are no indicators of abuse, and how it applies between detained youth is not obvious, because custody makes "voluntary" difficult and indicators of abuse likely. Do not use it to decline a report without counsel. AGE QUALIFIER, new in Revision 8. The CANRA duty arises where a mandated reporter suspects a CHILD has been the victim. Report where EITHER resident is under 18, for the same reason as tier 5: which resident is the victim is an investigative conclusion, not a floor call. Where both are 18 or over there is no child and no CANRA duty, and nothing else about the response changes: it is still PREA sexual abuse, still a law enforcement referral, and still a forensic examination question. See the mixed ages section.

Required steps

- Everything in tier 5.
- Mandated report by telephone immediately. Do not wait for the investigation, the end of shift, or anyone's approval.
- Law enforcement notification and forensic examination under OO 1453 and 15 CCR 1452 and 1453. The evidentiary examination occurs at a health facility separate from the custodial facility.
- Notify the parent or legal guardian and, where applicable, counsel.
- Preserve all records under the sexual abuse retention schedule.

Flip factors: any one of these moves the incident up and triggers a deliberate CANRA call regardless of tier

- Force, threat, coercion, or leverage of any kind, including debt, protection, or commissary.
- Any indication the conduct already happened before, whether or not it was reported.
- The target youth is under 14, which brings Penal Code 288 into the 11165.1(a) list.
- A significant age, size, developmental, or cognitive disparity between the two youth.
- The target discloses prior sexual abuse, in the facility or outside it.
- Reason to suspect the youth who acted has himself been sexually abused. Markedly sexualized behavior can be an indicator. That is a separate reporting question about a different child.
- The conduct is part of a pattern by the same youth toward multiple targets.
- Any staff involvement at all. Staff conduct is not on this chart. Abuse by an employee of an institution caring for children is its own CANRA category under Penal Code 11165.5, abuse or neglect in out-of-home care, and it reports regardless of tier.

When it is genuinely unclear, report

The CANRA threshold is reasonable suspicion, which is deliberately low: facts that would cause a reasonable person in a like position, drawing on training and experience, to suspect child abuse. Penal Code 11172(a) gives immunity to mandated reporters who report. Penal Code 11166(c) penalizes the failure to report. The risk is asymmetric by design, and this guide exists to make the easy calls faster, not to give anyone a reason to sit on a hard one.

Searches: when a resident says an officer grabbed or manipulated

This is not on the tier chart and it must never be run through it. The chart is youth-on-youth. A complaint that an officer went beyond a search is an allegation of STAFF sexual misconduct, and it travels down three tracks at once, none of which waits for the others.

What the allegation actually is under PREA

28 CFR 115.6 defines staff sexual abuse to include any other intentional contact, directly or through the clothing, of or with the genitalia, anus, groin, breast, inner thigh or buttocks, **that is unrelated to official duties or where the staff member has the intent to abuse, arouse, or gratify sexual desire.** A pat search is an official duty, so the contact inherent in a properly conducted one is not sexual abuse. That qualifier is the whole analysis. An allegation that the officer grabbed or manipulated is precisely an allegation that the contact went beyond the official duty or carried that intent. It is therefore an allegation of staff sexual abuse on its face, whatever anyone thinks of its merits.

The consequence nobody gets to skip

115.371(a) requires an administrative or criminal investigation of ALL allegations of sexual abuse. There is no threshold of plausibility and no discretion to decide one is unnecessary. The officer who receives the complaint is not the person who decides whether it is true. **This is the exact scenario where register row 58 bites:** Internal Complaints gives the Internal Affairs Manager discretion to determine whether a formal investigation is necessary, with no carve-out for sexual abuse. That gap is harmless until the day it is used on a complaint like this one.

CANRA, and why staff conduct is its own category

Two provisions. Penal Code 11165.1(b)(4) covers intentional touching of intimate parts including through the clothing, for purposes of sexual arousal or gratification. A proper search carries no such purpose; an improper one does. Then **Penal Code 11165.5**, abuse or neglect in out-of-home care, captures sexual abuse where the person responsible for the child's welfare is an employee of an institution caring for children. A juvenile hall employee is squarely within that. Staff-on-youth is a named CANRA category in its own right, which is why it is not a tier on the chart.

Report or not, and the honest version of the answer

Report. The standard is reasonable suspicion, not proof, and the employee who hears the complaint is not the adjudicator. If the allegation is true it is sexual abuse in out-of-home care. Penal Code 11166(i)(1) makes the duty individual and bars any supervisor from impeding it, and 11172(a) immunizes the reporter. The asymmetry decides it: reporting costs an investigation that 115.371(a) already requires, while not reporting is a misdemeanor for the employee personally and, in the pattern case, ruinous for the department. The honest counterpoint is that not every complaint about a search creates reasonable suspicion on its own facts, and a bare objection to a textbook pat search may not. That is exactly why this should be **a bright-line departmental rule rather than a judgment made on the unit at 0200**: any allegation that a search was sexual in nature goes to CPS and to Internal Affairs. A rule removes the credibility call from the person least equipped to make it and most exposed if it is made wrong.

Ask the cross-gender question first, because it is separate and it is cleaner

15 CCR 1360(g), verified against the edition effective 01/01/2019: "Cross-gender pat-down searches and strip searches are prohibited except in exigent circumstances or when conducted by a medical professional. Such searches must be justified and documented in writing." If the search was cross-gender, there is a Title 15 problem regardless of whether the touching was improper, and it is provable from the roster rather than from competing accounts. For transgender and intersex youth, OO 1352.5 IV.A.3.b separately requires the preferred-gender staff member to conduct the search with a second staff member within hearing but out of view.

What actually reduces this exposure

Not how complaints are adjudicated. Where searches happen and whether they are witnessed and recorded. A search conducted in camera view with a second staff member present resolves itself; one conducted in a blind spot becomes a credibility contest the department usually loses. That ties directly to 115.313(a) factor 5, the blind-spot survey, and to the **Institutional Policy on Video Recording and Photograph System, which has never been produced** and is on the outstanding documents list. Until someone knows what the camera coverage of search locations actually is, this risk cannot be managed, only absorbed.

The four age cases: ask this before you open the tier chart

The tier chart was written assuming both residents are minors. In a hall housing 13 to 25 that is often wrong, and the CPS column is the part that moves. Two confirmed facts drive this table. Residents 18 and over are under juvenile court jurisdiction but are NOT children for CANRA, because Penal Code 11165 defines a child as a person under 18 and the 11166(a) duty arises only on suspicion that a child has been abused: jurisdiction is not age. And the department does not treat residents aged 18 to 25 as dependent adults, so Welfare and Institutions Code 15630 does not reach them either. Find the row first. Then run the tier chart.

Who is involved	CPS report	PREA	What changes
Both under 18	Per the tier chart. Tiers 4, 5 and 6 report.	Per the tier chart.	Nothing. This is the case the chart was written for.
One under 18, one over 18. The resident under 18 is the one acted upon, or the one who saw it.	**YES, on every tier the chart says YES.** There is a child. 11165.1(b)(4) for touching, (b)(5) for masturbation in his presence.	Sexual abuse, and the non-consent element is supplied by law.	**Do not run consent analysis.** A minor cannot lawfully consent with an adult, so he is unable to consent within 115.6 and apparent willingness changes nothing. 115.371(a) still requires investigation.
One under 18, one over 18. The resident under 18 is the one acting.	**Tiers 5 and 6: still YES.** 11165.1(b)(4) reaches touching "of a child, **or of the perpetrator by a child**," so it bites in both directions. **Tier 4: NO.** (b)(5) requires the masturbation be in the presence of a **child**, and the only person present is an adult.	Unchanged. PREA does not care which resident is older.	Do not decide on the unit which resident is the victim. That is an investigative conclusion, and Penal Code 11172(a) gives the reporter immunity. Report and let it sort out.
Both 18 or over	**NO. On every tier.** No child, so no CANRA duty. No dependent adult status, so no WIC 15630 duty either. **There is no mandated external reporting duty of any kind.**	Entirely unchanged. A resident is a resident under Subpart D.	The external route is the **Sheriff, not CPS**: 15 CCR 1453 and OO 1453 I.A.8. Read the note below before relying on it.

"No CPS report" does not mean "no report."

PREA does not change with age. A resident is a resident. Staff still report under 115.361(a), the allegation is still investigated under 115.371(a), and the protection and retaliation monitoring duties still apply.

The external report goes to the **Sheriff instead of CPS**. 15 CCR 1453 requires sexual assaults in the facility to be reported to local law enforcement at any age, and OO 1453 I.A.8 puts that on the Duty Supervisor.

It is a weaker duty than CANRA, in three ways. CANRA starts at reasonable suspicion; OO 1453 starts at a belief that a sexual assault occurred. CANRA binds the employee who saw it; OO 1453

binds the supervisor. CANRA carries personal criminal liability under 11166(c); OO 1453 does not.

And it covers sexual assault only. For two adult residents, tiers 2, 3 and 4 have no external report at all. Handle them as PREA matters, and write them up every time.

Mixed ages: when one resident is over 18 and the other is not

The tier chart above assumes both residents are minors. In this facility that assumption is often wrong. The hall houses residents from 13 to 25, and a resident under 18 sharing a population with one over 18 is uncommon but not prohibited. When an incident involves one of each, the PREA answer and the CPS answer are reached by different routes, and one of those routes is not available to staff at all.

Ask the three ages question before you open the chart

The department has confirmed two facts that decide this section. Residents under juvenile court jurisdiction who are 18 or over are **not children for CANRA**: Penal Code 11165 defines a child as a person under 18, and the 11166(a) duty arises only on suspicion that a CHILD has been abused. Jurisdiction is not age. And the department **does not treat residents aged 18 to 25 as dependent adults**, so Welfare and Institutions Code 15630 does not pick them up either. Put those together and there are three cases, not one. **Both under 18:** run the chart as written. **One under, one over:** the chart still reports, because there is a child, and the rest of this section applies. **Both 18 or over:** there is no CANRA duty and no dependent adult duty, and the CPS column is NO for every tier. Nothing else on the chart changes.

Both residents over 18: what fills the gap, and why it is not equivalent

Do not read "no CPS report" as "no report." **Every PREA duty is age-neutral.** A resident is a resident under Subpart D, so 115.361(a) staff reporting, 115.371(a) investigation of all allegations, 115.362 protection and 115.367 retaliation monitoring apply identically to a 24 year old. There is also an external route, and it is the Sheriff rather than CPS: **15 CCR 1453** requires reporting sexual assaults occurring in the facility to local law enforcement, and it is age-neutral, and **OO 1453 I.A.8** implements it by requiring the Duty Supervisor to notify the Sheriff's Department immediately once it is believed a sexual assault occurred. **But the two duties are not equivalent, and this is the part to train on.** CANRA triggers on reasonable suspicion, binds the individual employee who formed it, and carries personal criminal exposure under 11166(c). OO 1453 I.A.8 triggers on a belief that a sexual assault occurred, binds the Duty Supervisor rather than the employee, and carries departmental consequences only. When the residents are adults the threshold rises, the duty moves off the person who saw it, and the personal exposure that makes people report disappears, all at once. **And the OO 1453 trigger is sexual assault only**, so for two adult residents tiers 2, 3 and 4 have no external reporting route at all. They are internal PREA matters and nothing else. Log them accordingly.

Apparent willingness does not decide anything

All four resident-on-resident contact prongs are gated by the same element: the act counts where the victim does not consent, is coerced into it by overt or implied threats of violence, **or is unable to consent or refuse.** That third limb is the one that governs the mixed-age case. A resident under 18 cannot lawfully consent to sexual activity with an adult under California law, so a minor in that position is unable to consent within the meaning of the definition. Apparent willingness therefore does not take the incident out of PREA, and 115.371(a) requires an administrative or criminal investigation of ALL allegations of sexual abuse. There is no plausibility threshold and no discretion to decide one is unnecessary.

Staff do not perform consent analysis

This is the operational rule, and it is the one to teach. Whether consent existed is a legal conclusion that turns on the exact ages, the age gap, the custodial relationship, and evidence of coercion that is not visible on a unit. A supervisor who decides on the floor that an incident was consensual has closed a PREA allegation that 115.371(a) says must be investigated, and has written that decision down. Separate the residents, preserve what there is to preserve, report it, and let the investigation answer the question. The same applies to the opposite error: do not record a conclusion that the older resident coerced the younger one either. Record what was seen, heard and said.

The CANRA exception that looks like it applies, and usually does not

Penal Code 11165.1(a) carries an exception: sexual assault does not include VOLUNTARY conduct in violation of sections 286, 287 or 289 where there are NO INDICATORS OF ABUSE, unless the conduct is between a person 21 or older and a minor under 16. Three limits have to be understood before anyone reaches for it. **First, its reach.** It covers only 286, 287 and 289. It does not reach intentional touching under 11165.1(b)(4) and it does not reach unlawful sexual intercourse under 261.5. **Second, its standard.** A finding of no indicators of abuse in a custodial setting with an age gap is a conclusion reached after investigation, never an observation made on a unit. **Third, its own carve-out.** It is unavailable outright between a person 21 or older and a minor under 16, which in a hall housing 13 to 25 is a live pairing and not a hypothetical. The rule that follows: **the voluntary conduct exception is never applied at facility level.** If anyone is going to rely on it, that is Internal Affairs and County Counsel after the fact, not the supervisor on shift.

Where the two columns split on age

Touching is reportable under 11165.1(b)(4) because the person touched is a child, meaning anyone under 18. Where the resident touched is 17, the report follows from (b)(4) alone and the (a) exception has nothing to say about it. Run it the other way and the result reverses: where BOTH residents are 18 or over, CANRA does not apply at all, because there is no child. That is the one place in this guide where the CPS column turns to NO for conduct that would otherwise be a report, and it is not because the conduct is less serious. CANRA is a child abuse statute. The PREA duty, the criminal referral and the facility investigation are untouched by the ages of the parties. Open question for County Counsel: whether the department-wide Dependent Adult and Elder Abuse General Order reaches an adult resident, which would supply a reporting duty where CANRA does not. Do not assume either way.

Worked example: repeated masturbation in view, both residents over 18

Run it through both tests and they come apart cleanly. **CANRA: no report.** 11165.1(b)(5) requires the masturbation be in the presence of a child. Neither resident is a child, so the mandated reporting duty never arises, and repetition does not create one. The department has confirmed it does not treat these residents as dependent adults either, so there is no WIC 15630 route behind it. This is the case with no mandated external report of any kind. **PREA: yes, and the repetition is what does it.** Masturbation in view of another resident is not one of the four resident-on-resident contact prongs, and there is no display or voyeurism prong between residents. But repeated and unwelcome actions of a derogatory or offensive sexual nature directed by one resident toward another are sexual harassment under 115.6, and "multiple times" is exactly the element tier 4 says is missing on a single occurrence. So this is a PREA sexual harassment incident, it is reportable under 115.361(a), and 115.371(a) requires it to be investigated. Protection duties under 115.362 and retaliation monitoring under 115.367 apply to the resident it was directed at, whatever his age. **Also live, and not for the floor to decide:** a Penal Code 314 referral, which is age-neutral and is a law enforcement and District Attorney question; discipline

under OO 1390/1391 II.B.4, which lists sexual misconduct and does not define it, so write down exactly what the conduct was; and the open counsel question on whether the Dependent Adult and Elder Abuse General Order reaches an adult resident. **One state-side point to raise rather than resolve:** Title 15 defines sexual abuse to include voyeurism by one or more persons upon another who does not consent, which is broader than the federal definition, but voyeurism describes the watcher and not the person exposing himself. Whether the state definition reaches exhibitionist conduct between residents is not answered on the face of the text and should go to County Counsel. Register row 85.

What does not change, and the one state rule that widens

Run the tier chart on the conduct, not on the ages. Tiers 1 through 4 do not become sexual abuse because one of the residents is 22: there is still no attempt, threat, request, display or voyeurism prong between residents, and the sexual harassment prong still requires repetition. What the age difference changes is tiers 5 and 6, where the non-consent element that otherwise has to be established is supplied by operation of law. One addition on the state side: Title 15 defines sexual abuse to include activity the person is coerced into **by manipulation**, where the federal definition requires overt or implied threats of violence. Manipulation of a younger resident by an older one is the characteristic mixed-age fact pattern, so an incident can fail the federal coercion test and still be sexual abuse under the standard the BSCC inspects against. Register row 85.

What to do, in full

The classification card carries one line per block. These are the blocks in full. They are cumulative: each one adds to the one above it.

Every tier

- Separate the youth. Check the target is safe.
- Staff tells the Duty Supervisor immediately.
- Incident report naming both youth, **the words used verbatim** and the target's response verbatim.
- Record your classification and the reason, including a decision not to make a CPS report.
- Treat it as classification information on both youth, and check the target's history for a repeat.

Tier 2 and up

- Log it as a PREA incident.
- Decide whether the target is at substantial risk of imminent sexual abuse. If yes, act to protect now, separately from any investigation.
- Reassess classification and housing for both youth.
- If anyone reported it, start retaliation monitoring: at least 90 days, with checks.

Tier 4 and up, where CPS is due

- **Telephone the mandated report immediately**, or as soon as practicably possible. Written report on form SS 8572 within 36 hours.
- Do not wait for the investigation, the end of shift, or anyone's approval.
- The duty belongs to the employee who formed the suspicion. Telling you does not discharge it, and no supervisor may impede it.

Tiers 5 and 6

- Treat it as a sexual abuse allegation from the first moment.
- **Preserve evidence.** No showering, changing or cleaning up. Secure the area.
- Refer for investigation. Every allegation gets one. There is no discretion to decide one is unnecessary.
- Tier 6 adds: law enforcement notification, forensic exam off site, and notice to the parent or guardian and counsel.

The response sequence

Classifying it is the start, not the end. This is the sequence OO 1453 and the PREA Policy set out, in order. Provenance: OO 1453 was produced and read in full on 10/29, and every section number below is quoted from the order itself. Note the scope limiter the order carries throughout: every operative duty in it is keyed to "sexual assault", so on its face it does not reach harassment, exposure, or touching not characterised as assault.

Supervisors who need only the classification decision work from the PREA Incident Classification Card. This section is the detail behind step 5 of that card, and it is where the detail belongs: it is read once, in advance, not at the door of a unit.

1. First response, immediately

OO 1453 I.A.1, I.A.3 to I.A.5

- Separate victim and suspect. **No contact between them.**
- Protect the crime scene: the youth's room, the shower area, the laundry room. Seal it off and deny access to other staff and youth.
- **Neither youth showers, changes or cleans up.**
- Keep both out of the bathroom where you can. If one is used, collect the toilet tissue as evidence.

2. Initial statement, and the trap in it

OO 1453 I.A.6; WIC 625.6

- **I.A.6: "The duty supervisor shall take an initial statement from the victim and suspect."** This is directed, not optional, and it is yours.
- **I.A.6 also says all suspects "shall be read a Miranda Warning, prior to any questioning."**
- **STOP THERE IF THE SUSPECT IS 17 OR UNDER.** WIC 625.6 requires that youth to consult legal counsel, in person, by telephone or by video, BEFORE any custodial interrogation and BEFORE waiving Miranda. **The consultation cannot be waived.** The order predates that statute by more than a year and does not mention it. Get the consultation, then question, and write down that you did.
- Note what this does not cover: canvassing other residents to test whether the allegation is true. The order does not direct that, and it is what belongs to a trained investigator.

3. Notify, immediately

OO 1453 I.A.8 to I.A.10; PC 11166(a)

- **Duty Supervisor notifies the Sheriff's Department immediately** once it is believed a sexual assault occurred.
- **CPS by telephone immediately**, where the age chart says a report is due. Written report on SS 8572 within 36 hours. Note: PREA Policy V.A.4 and OO 1453 I.A.9 both say 24 hours. **That is wrong and the law controls.**
- The reporting or investigating officer briefs the responding Sheriff's officers and provides an interview room.

4. Evidence, if the Sheriff cannot respond at once

OO 1453 I.A.11

- Duty Supervisor photographs the scene, gloves up, collects and marks each item with date, time, location, ownership and description.
- Seal it, log it, place it in the evidence locker at Intake and Booking.

5. Medical and advocate

OO 1453 I.A.13; PREA Policy VIII.A and XV.A; PC 264.2, PC 679.04

- **Evidentiary examination happens off site**, at a health facility separate from the custodial facility.
- Victim advocate, in most cases from a local Rape Crisis Center. The youth has a right to an advocate or support person during the medical examination and during investigatory interviews.
- Crisis counseling.

6. Investigation

28 CFR 115.371(a); OO 1453 I.A.14

- **Every allegation gets an administrative or criminal investigation.** There is no threshold of plausibility and no discretion to decide one is unnecessary.
- Investigative reports route to the Supervising District Attorney and the Sheriff's Sexual Assaults Unit.

7. Incident review, at the conclusion

OO 1453 I.A.15; PREA Policy V.A.8; 28 CFR 115.386

- Upper management conducts a review, with input from supervisors, investigators and medical or mental health staff.
- A written report is generated and forwarded to the Department Chief.
- The review is required for **unsubstantiated** allegations too. Only an **unfounded** finding switches it off.

8. Ongoing, and the part most often missed

28 CFR 115.362, 115.367; PREA Policy XVIII.B

- Reassess classification and housing for both youth.
- **Retaliation monitoring for at least 90 days** for anyone who reported or was the target, with periodic checks.
- Records retained, and the incident enters the department's data.

Four things current policy will not tell you

- **I.A.6 is a year and a half out of date and it can cost you the case.** It directs a Miranda warning before questioning a suspect and says nothing about the WIC 625.6 counsel consultation, which has been mandatory and unwaivable for youth 17 and under since 01/01/2021. The order was last revised 12/09/2019. Courts weigh noncompliance on

admissibility, and weigh a willful violation against the officer's credibility.

- **The CPS timeline in policy is wrong.** PREA Policy V.A.4 and OO 1453 I.A.9 say 24 hours. PC 11166(a) says immediately. Follow the law. The exposure for a late report falls on the employee.
- **The incident review report has nowhere to go.** OO 1453 I.A.15 directs it to "the PREA Coordinator," a position the department does not have. Send it to the Department Chief and say in the report that the Coordinator role is vacant.
- **There is no retaliation monitoring program.** 115.367 requires a designated monitor and at least 90 days. Nothing in current policy sets one up, so if you do not run it yourself it does not happen.
- **Cross-facility notification is wrong.** If the youth says the abuse happened at another facility, PREA Policy V.A.7 gives 14 days. The standard is **72 hours**.

Who does what, and where you stop

Classification and protection are yours. Fact finding is not. The distinction matters most in the middle of the chart, tiers 2 through 5, where there is no criminal callout and it feels like nobody else is coming. Somebody else is supposed to be coming. Read the decision note at the end of this section, because the department has not yet said who.

Role	Does	Does not
Line staff, whoever learns of it first	Reports to the Duty Supervisor **immediately**. Separates the youth. Preserves the scene and the clothing. Writes the incident report with **the words used verbatim**. Makes their own CANRA report if they formed the suspicion.	Does not interview anyone. Does not decide whether it is PREA. Does not wait to be asked.
Duty Supervisor, you	Classifies the incident against the tier chart. Protects: separation, housing, the 115.362 call. Preserves evidence and video. **Takes the initial statement from the victim and the suspect, which OO 1453 I.A.6 directs.** Notifies out. Documents and hands off.	Does not canvass further witnesses to test whether the allegation is true. That is not directed anywhere in the order and it is what belongs to a trained investigator. Does not identify residents who asked to stay anonymous. Does not decide the case. **And does not Mirandize and question a suspect aged 17 or under without the WIC 625.6 counsel consultation, which I.A.6 does not mention. See the warning below.**
Administrative investigator for youth-on-youth	Conducts the 115.371(a) administrative investigation. Trained under 115.334. Interviews with the advocate rights attached. Reaches substantiated, unsubstantiated or unfounded.	**NOT CURRENTLY DESIGNATED. This is the hole.** See the decision note below.
Internal Affairs	Investigates staff misconduct, with the Lybarger process, the one year clock and the IA disposition taxonomy. Receives the mandatory route for staff reporting.	Is not built for youth-on-youth. Its preponderance standard is written for employee cases only. Its discretion to decide no formal investigation is necessary has no carve-out for sexual abuse.
Sheriff's Department	Criminal investigation. Notified **immediately** by the Duty Supervisor once it is believed a sexual assault occurred. Briefed by the reporting officer, given an interview room.	Not the answer for the middle band. A touching or exposure case is usually an administrative matter, and the absence of a Sheriff response does not remove the duty to investigate.
Chief Deputy and Assistant Chief Deputies	Receive the memo. Make the agency-level calls. Own the cross-facility notification where a youth reports abuse at another facility,	Should not be the first point at which anyone decides whether the incident was PREA. That call is made and written down on the unit.

Role	Does	Does not
	which is **72 hours**, not the 14 days current policy states.	
PREA Coordinator and facility Compliance Manager	Would own the data, the incident reviews, the corrective action loop, and the consistency of classification across shifts. OO 1453 I.A.15 already addresses the review report to this role.	**DOES NOT EXIST.** The order routes a required report to a position the department does not have, so the review currently terminates in a dead letter.
Medical and Mental Health	Crisis counseling, evaluation and treatment, referral. Clinical input into the incident review.	A mental health referral is not a protection plan and does not discharge the 115.362 duty.
Victim advocate, usually a Rape Crisis Center	Accompanies the youth through the medical examination (PC 264.2) and through investigatory interviews **conducted by law enforcement, the district attorney or defense counsel** (PC 679.04). OO 1453 I.A.13 recites both.	Does not, on the face of the statute, attach to the I.A.6 initial statement taken by the duty supervisor. The one interview the order assigns to facility staff is the only one in the sequence with no advocate right attached. Cannot be offered after the fact either: if an interview already happened without one, the right was already spent.
Retaliation monitor	Watches the reporter, the target and any corroborating witness for at least **90 days**, with periodic status checks.	**NOT DESIGNATED, and no monitoring period exists in policy.** If the supervisor does not run it, nobody does.

The stop-point, corrected against OO 1453

- **Corrected on 10/29.** An earlier version of this matrix told supervisors they do not conduct fact finding and do not interview. **OO 1453 I.A.6 says otherwise:** "The duty supervisor shall take an initial statement from the victim and suspect." The order had not been produced when that was written. The stop-point moves; it does not disappear.
- You classify. You protect. You preserve. **You take the initial statement from the victim and the suspect, because I.A.6 directs it.** You notify. You document. **Then you stop and hand off.**
- **What is still on the far side of the line:** canvassing further witnesses to find out whether the allegation is true. Nothing in the order directs that, and it is what belongs to a trained investigator under 115.334. Taking a statement from the two people involved is first response. Working the unit to test the account is investigation.
- **Anonymity is the practical test.** If residents asked not to be identified, do not go and find them. Identifying them burns the witnesses and creates the retaliation exposure 115.367 exists to prevent, and it is not something I.A.6 asks of you.

Two things the department has to fix, one urgent

URGENT, AND IT IS A LEGAL EXPOSURE ON THE SUPERVISOR PERSONALLY. I.A.6 directs a Miranda warning before questioning a suspect. It says nothing about **WIC 625.6**, which since 01/01/2021 requires a youth **17 or younger** to consult legal counsel, in person, by telephone or by video, **before**

a custodial interrogation and **before** waiving Miranda, and which provides that the consultation **may not be waived**. OO 1453 was last revised 12/09/2019, more than a year before that took effect. WIC 625.6(b) directs courts to weigh noncompliance when deciding whether the youth's statements come in, and to weigh a willful violation against the officer's credibility under Evidence Code 780. Until I.A.6 is amended, get the 625.6 consultation before any questioning of a suspect aged 17 or under, and record that you did. **Second, and structural:** 115.371(a) requires an administrative or criminal investigation for every allegation. The Sheriff covers the criminal branch. Nothing names who runs the administrative branch for youth-on-youth allegations, and Internal Affairs is written for employee misconduct. Register rows 60 and 91.

What the PREA definitions do and do not contain

Checked the same way the CANRA sections were, because the two columns carry different risks and both have to be auditable. The reason tiers 1 through 4 are not sexual abuse is not an inference from the absence of contact. It is that the prongs which would otherwise catch them exist only for staff.

- **Resident-on-resident sexual abuse** has four prongs, all requiring contact: penis to vulva or anus, mouth to penis, vulva or anus, penetration of the anal or genital opening by a hand, finger, object or instrument, and any other intentional touching, directly or through the clothing, of the genitalia, anus, groin, breast, inner thigh or buttocks, excluding contact incidental to a physical altercation.
- **All four are gated by the same element:** the act counts where the victim does not consent, is coerced into it by overt or implied threats of violence, or is unable to consent or refuse.
- **There is no attempt, threat or request prong for resident-on-resident conduct.** That prong exists, but only for staff. This is why tier 1 is not sexual abuse: a youth announcing an intention to perform a sex act on another youth would be a threat to engage in a listed act, and if the speaker were a staff member it would be sexual abuse on that basis. Between youth the definition does not reach it.
- **There is no display or voyeurism prong for resident-on-resident conduct either.** Display of uncovered genitalia in the presence of a resident, and voyeurism, are staff-only prongs. That is why tiers 3 and 4 are not sexual abuse no matter how many times they happen, and it is also why the same two acts by a staff member would be.
- **Sexual harassment** is the only prong that reaches speech, and prong one requires conduct that is repeated and unwelcome, directed by one resident toward another. That repetition element is what tiers 1 and 2 turn on.
- **Staff sexual abuse** adds to the four contact prongs: contact with any body part where the staff member has the intent to abuse, arouse or gratify sexual desire; the attempt, threat or request prong; display of uncovered genitalia, buttocks or breast in a resident's presence; and voyeurism. The touching prong for staff is qualified by being unrelated to official duties or carrying that intent, which is the whole of the search analysis in the section above.

The CANRA sections this guide rests on

Checked rather than recalled, because the CPS column is the part of this document that carries personal exposure for the employee who gets it wrong.

- **11165.1(a)** defines sexual assault by reference to enumerated offenses: Penal Code 261, 261.5(d), 264.1, 285, 286, 287, 288(a), (b) and (c)(1), 289, and 647.6. It excludes voluntary

conduct violating 286, 287 or 289 where there are no indicators of abuse, unless between a person 21 or older and a minor under 16.

- **11165.1(b)** is the part that decides most of this chart, and it is easy to miss because it operates independently of the (a) list. Conduct described as sexual assault includes, but is not limited to, penetration however slight, oral contact with genitals, intrusion into the genitals or anal opening, **(4)** the intentional touching of genitals or intimate parts including the breasts, genital area, groin, inner thighs and buttocks, or the clothing covering them, for purposes of sexual arousal or gratification, and **(5)** the intentional masturbation of the perpetrator's genitals in the presence of a child.
- **11165.1(c)** defines sexual exploitation, which covers obscene matter depicting a minor and inducing a child into prostitution or a live obscene performance. Nothing on this chart is sexual exploitation.
- **11165.5** defines abuse or neglect in out-of-home care, which captures abuse where the responsible person is an employee of an institution caring for children. That is the staff-on-youth category and it is not on this chart.
- **11165.6** defines child abuse or neglect overall and expressly excludes a mutual affray between minors, and injury from reasonable and necessary force by a peace officer acting in the course and scope of employment.
- **11165.7** lists mandated reporters and includes a probation officer.
- **11165.9** names the agencies that may receive a report. **11166(a)** sets the timing. **11166(i)(1)** makes the duty individual and bars any supervisor from impeding it. **11166(j)** imposes the cross-report duty on a county probation department that receives a report. **11172(a)** gives immunity to reporters. **11166(c)** penalizes failure to report.
- **11166.05** permits, but does not require, a report where a child is suffering or at substantial risk of serious emotional damage. Worth knowing for a youth who is the repeated target in tiers 1 to 3 and is visibly deteriorating.

Six things in current departmental documents that will mislead a supervisor

These are open findings in the gap register. A supervisor following current policy will get the first one wrong.

The CPS timeline in policy is wrong. Register row 48, Critical.

PREA Policy V.A.4 and OO 1453 I.A.9 both state a 24-hour verbal report to Child Protective Services. Penal Code 11166(a) requires the telephone report immediately or as soon as is practicably possible. A supervisor who follows the order as written is instructing an employee to miss a statutory deadline, and the exposure for that falls on the employee. The Code of Conduct at VII.A.1 states it correctly.

"Sexual misconduct" is a major rule violation and is nowhere defined. Register row 64.

OO 1390/1391 II.B.4 lists it. Nothing in the order says whether it covers a comment, exposure, or touching, and nothing distinguishes coerced from non-coerced conduct. Two supervisors will charge the same incident differently, and neither will be wrong on the face of the order.

The disciplinary hearing may not attach. Register row 64.

OO 1390/1391 IV.A requires the due process hearing only where the recommended discipline is Program Separation. 15 CCR 1391(f) requires those protections for major rule violations as a class. Charge sexual misconduct and give point loss or a level demotion, and the youth receives none of the state-required process. Citation note: 1391(f) is the numbering in the edition effective 01/01/2019. The 04/01/2014 edition had these elements at 1391(e). Revision 6 corrected the register to match, so the two now agree.

There is no emergency grievance track. Register row 42.

115.352 requires an emergency grievance route for an allegation of substantial risk of imminent sexual abuse, with a 48-hour initial response and a 5-calendar-day final decision. OO 1361 has no such track. A frightened youth has no expedited route.

There is no retaliation monitoring. Register row 56, Critical.

115.367 requires a designated monitor and at least 90 days of monitoring for youth and staff who report. The department has a referral route through Internal Complaints for grievance-related retaliation and nothing on the monitoring side. Tiers 2 through 5 above all assume monitoring that does not currently exist.

No written rule separates a 13 year old from a 25 year old. Register rows 84 and 86.

The facility groups boys by age and keeps a resident under 16 away from one over 18 in all but uncommon cases. Neither practice appears in any document reviewed, and neither is required by Title 15 or by 28 CFR Part 115, which contain no age-based housing rule for a juvenile facility at all. The department is therefore running a control that is better than the standard and recording none of it. For a supervisor that means there is no written rule to apply when the units are full, no written authority to authorize an exception, and nothing to point to afterwards. Ask for the rule in writing, including who approves a mixed pairing and where that approval is recorded.

What County Counsel needs to confirm before this issues

- The purpose element in tier 5. Penal Code 11165.1(b)(4) requires the touching be for sexual arousal or gratification, and staff will have to form a view on that in the moment. Confirm how the department wants that judged and recorded, and confirm that the practical answer is to report and let the investigation sort purpose out rather than to decline on an untested inference about motive.
- The boundary between the Penal Code 11165.6 exclusion for a mutual affray between minors and contact that happens to occur during a fight but is sexual in purpose. That line decides whether tier 5 reports.
- Whether the Penal Code 11165.1(a) exception for voluntary conduct violating 286, 287 or 289 where there are no indicators of abuse can ever apply between detained youth, given that custody makes voluntariness difficult to establish.
- Whether Penal Code 647.6 can reach directed sexualized conduct between detained minors, which is the only route by which tiers 1 to 3 could become reportable on their own facts.

- Whether the department is designated under Penal Code 11165.9 to receive mandated reports, which determines whether the Penal Code 11166(j) cross-reporting duty applies to the department itself.
- Whether any of this should be stated in a department-wide General Order on child abuse reporting rather than in a facility job aid. That order is already recommended as change 3.
- Whether a resident over 18 who carries the OO 1352 **S-5 Mental Health classification** is a dependent adult under Welfare and Institutions Code 15610.23(a). The department has stated it does not treat residents aged 18 to 25 as dependent adults, and as a general position that is defensible: 15610.23(b) reaches 18 to 64 year olds admitted as inpatients to a 24-hour health facility, and a juvenile hall is not one. But 15610.23(a) is an individualized test, reaching a person 18 to 64 with physical or mental limitations restricting their ability to carry out normal activities or to protect their rights, expressly including developmental disabilities. OO 1352 S-5 covers limited functioning abilities, youth on prescribed psychotropic medication, and youth susceptible to victimization due to limited functioning or psychological problems. That is the 15610.23(a) description almost word for word, so the department's own classification system already identifies the residents for whom the categorical position is weakest. Narrow question, not a broad one.

PREA Incident Classification Card

One page. Five steps. Work them in order. Sacramento County Probation Department, Youth Detention Facility.

Ages first. Age decides the CPS answer before you even look at what happened. Everything else, who investigates and where you stop, is in the Decision Guide.

Step 1. Ages first

Settle this first. Anyone 18 or over is not a child for CANRA, whatever the court says.

Who is involved	What happens to the CPS column
Both under 18	Use the chart as written.
One under 18, one over	Use the chart as written. **Never ask whether they consented.** A minor cannot consent with an adult.
Both 18 or over	**No CPS report, any tier.** No child, no CANRA. PREA still applies. Sexual assault goes to the **Sheriff**.

Step 2. What happened

Two separate questions. They match on touching and part company everywhere else.

Tier	What happened	Is it PREA?	CPS report?
1	One sexual comment. No contact, no exposure, no threat.	Not PREA	No
2	Sexual comments or gestures, repeated, same youth.	Sexual harassment	No
3	Exposes genitals. Nothing else.	Harassment if repeated	No. Read tier 4
4	Masturbates where another youth can see.	Harassment if repeated	YES if the youth who saw it is under 18
5	Touches genitals, anus, groin, breast, inner thigh, buttocks. Clothed counts.	SEXUAL ABUSE	YES if either is under 18
6	Oral, anal or penetrative contact. Or anything above by force.	SEXUAL ABUSE	YES if either is under 18

Step 3. Check for a flip

Any one of these moves it up a tier and forces a CPS call.

- Force, threat, or leverage of any kind. Debt, protection, commissary.
- Any sign it happened before.
- The target is under 14.
- A big age, size, or ability gap.
- The target mentions past abuse, here or outside.
- You suspect the youth who acted was abused too. **That is a second report, about a different child.**
- Same youth, more than one target.
- **Any staff involvement.** Off this chart. Always reports.

Step 4. Act

Each row adds to the one above it.

When	Do
Every tier	Separate them. Check the target is safe. Tell the Duty Supervisor. Write an incident report naming both youth, **with the words they used**. Record your tier and why, even if you decide it is nothing.
Tier 2 and up	Log it as a PREA incident. If the target is at risk right now, protect them now, before anyone investigates. Reassess housing for both. Start retaliation checks if anyone reported.
Tier 4 and up, where CPS is due	**Phone it in now.** Form SS 8572 within 36 hours. Do not wait for the investigation, the end of shift, or permission. It belongs to whoever formed the suspicion. Telling you does not discharge it.
Tiers 5 and 6	Treat it as abuse from the first minute. **Keep the evidence.** No showering, no cleaning up. Refer it. Every allegation gets investigated. Tier 6 also means law enforcement, a forensic exam off site, and notice to parent or guardian and counsel.

Step 5. Write it down

Every time. Even when you decide it is nothing.

Tier: ____ Conduct in one line: _____

Ages: both under 18 / one under one over / both 18 or over

PREA call: Not PREA / Sexual harassment / SEXUAL ABUSE

Flip factors present: none / _____

CPS report: made at _____ by _____ / not made, because _____

Protection and housing action taken: _____

Retaliation monitoring started: yes / no / not applicable

Supervisor: _____ Date and time: _____

Not sure? Report. The threshold is reasonable suspicion, which is low on purpose. You have immunity. Not reporting is a crime.

Not legal advice. Grey calls go to County Counsel. *Drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.*

PREA Incident Memo

Supervisor template. Copy it, fill it, send it.

Sacramento County Probation Department
Youth Detention Facility

DRAFT FOR COUNTY COUNSEL REVIEW. Not for issuance to supervisors until the CANRA column is confirmed.

Modelled on the memo format already in use at YDF, which does several things well and is worth keeping: it is prompt, it quotes the reporting staff member, it attaches the incident report and the video, and where the video did not support the allegation it said so plainly rather than stretching it. What this template adds is the part a reader cannot currently find: **what you classified the incident as, what you reported out, and who has it now.** Fill every heading. Where something did not happen, write that it did not happen and why, rather than leaving the heading blank. A blank heading reads later as an omission. A stated negative reads as a decision.

Header

```
To: [Chief Deputy] / [Assistant Chief Deputies]
From: [Rank and name], [shift]
Subject: [facility]-[YYYYMMDD]-[time] PREA Incident Memo
Date and time of this memo: [  ]
```

1. What was reported, and by whom

```
Reported to me by: [name and role] at [time].
Institutional Incident Report number: [  ]
In the reporting staff member's own words:
    "[quote the IIR verbatim]"
Residents involved: [resident] (reporting or target), [resident]
(alleged), both by name and number.
Ages at the time of the incident: [  ] and [  ].
```

Quote, do not summarise. The exact words decide the classification, and a paraphrase written at 0200 is the thing that gets read back to you two years later.

2. What I observed or reviewed myself

```
Scene: [what you saw, and what you did to secure it].
Video reviewed: Camera [  ], [times]. What it showed: [  ].
What the video did NOT establish: [  ].
Physical evidence: [clothing, bedding, other], and where it is now.
Initial statement taken under OO 1453 I.A.6:
  From the reporting or target resident at [time]: "[verbatim]"
  From the alleged resident at [time]: "[verbatim]"
  Miranda given: [ ] yes at [time]   [ ] not applicable
  WIC 625.6 counsel consultation (suspect aged 17 or under): [ ]
completed at [time], with [who]
                                                        [ ]
N/A, suspect is 18 or over
```

Keep the honest non-verification line. "The footage did not allow me to verify X" is a stronger sentence than any hedge, and it protects both the resident and the department. Note that reviewing video is not preserving it. Say what you did to put a hold on it. ***On the statement:*** *I.A.6 directs you to take it. If the suspect is 17 or under, WIC 625.6 requires a consultation with counsel before any questioning and before any Miranda waiver, and it cannot be waived. The order predates that statute and does not mention it. Record the consultation here, because the memo is the only place that will show it happened.*

3. Classification

```
Tier on the supervisor card: [1] [2] [3] [4] [5] [6]
```

```
PREA classification: [ ] Not PREA   [ ] Sexual harassment   [ ] SEXUAL ABUSE
Basis for that classification, in one sentence: [  ].
Ages: [ ] both under 18   [ ] one under one over   [ ] both 18 or over
Flip factors present: [ ] none   [ ] [list them]
```

This block is the reason the memo exists. Classify on the conduct described, not on the label the resident used. A resident saying "harassment" does not make it harassment, and a touch of the buttocks, groin, breast, inner thigh or anus, through clothing or under it, is sexual abuse under 28 CFR 115.6 whatever anyone calls it.

4. Immediate actions taken

```
Separation: [when, and what the no-contact arrangement is].
Housing: [moves made, classification changes, and by whose authority].
Evidence preserved: [  ]. Video hold placed: [yes or no, and with whom].
Medical or mental health: [referral made, when, for whom].
```

5. Notifications made

```
CPS mandated report: [ ] made by [who] at [time] by telephone, to [agency]. SS 8572 due by [time + 36 hours].
                     [ ] not made, because [state the reason, for example both residents are 18 or over].
Sheriff's Department: [ ] notified at [time], because a sexual assault was believed to have occurred.
                      [ ] not notified, because [reason].
Parent, guardian or caseworker: [ ] notified at [time] by [who].
[ ] not notified, because [reason].
Counsel: [ ] notified   [ ] not applicable
Up the chain: [who was told, when].
```

The CPS line is the one that carries personal exposure. The duty belongs to the employee who formed the suspicion, and telling you does not discharge it. If the reporting staff member made their own report, say so and give the time. If nobody did, this memo should show why not.

6. Protection and monitoring

```
Substantial risk of imminent sexual abuse assessed: [ ] yes, action taken: [  ]   [ ] no
Retaliation monitoring started for: [names or roles], on [date], for at least 90 days.
Who is doing the monitoring: [  ].
```

```
Residents who asked to remain anonymous: [ ] none   [ ] yes, and
their identities are NOT recorded in this memo.
```

If residents asked for anonymity, honour it here. Identifying them in a memo that goes to three recipients is how anonymity is lost, and once it is lost the next resident watches what happened and says nothing.

7. Referred to

```
Administrative or criminal investigation referred to: [  ] on
[date].
This memo is a response and documentation record. It is not an
investigation report.
```

Name the recipient even if the answer today is "no designated investigator." Writing that down is how the gap becomes visible to the people who can close it.

8. Attachments

```
[ ] Institutional Incident Report   [ ] Video   [ ] Classification
sheet   [ ] Other: [  ]
```

What not to put in this memo

- **Your conclusion about whether it happened.** You are recording what was reported and what you did. Whether the allegation is true is the investigation's answer, and a supervisor's guess in writing becomes the exhibit that undermines the finding either way.
- **Characterisations.** Not horseplay, not consensual, not attention seeking, not just talk. Those words decide the case in advance and none of them is a classification on the card.
- **A witness canvass written up as though it were part of the response.** OO 1453 I.A.6 directs you to take an initial statement from the victim and the suspect, so that belongs in section 3 below. Going on to question other residents to find out whether the allegation is true is not directed anywhere in the order, and it is what belongs to a trained investigator under 115.334.
- **The names of residents who asked to stay anonymous.**
- **Anything you did not personally do or observe, written as though you did.** Attribute it.

What the current YDF memo already does well, and this template keeps

- Prompt, and timed to the minute.
- Quotes the reporting staff member rather than summarising.
- Attaches the incident report and the video.
- States plainly where the video did not establish the allegation, instead of stretching it.
- Records the housing and classification action taken, and by whom.

This is a template, not legal advice, and statutory questions go to County Counsel. The CANRA and 28 CFR 115.6 references behind it were corroborated by exact-phrase search and have NOT been read from the Penal Code or the Code of Federal Regulations directly. The OO 1453 sequence it assumes is quoted from the order, produced and read in full on 10/29. Confirm the CANRA and CFR references before this template issues.

Drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.

The eleven staffing plan factors

28 CFR 115.313(a). Sacramento County Probation Department, Youth Detention Facility. Register row 5, recommended change 9.

The agency shall develop, document, and make its best efforts to comply on a regular basis with a staffing plan that provides for adequate levels of staffing and, where applicable, video monitoring, to protect residents against sexual abuse. In calculating adequate staffing levels and determining the need for video monitoring, the agency shall take into consideration:

#	Factor	What it asks YDF for
1	Generally accepted juvenile detention, correctional, or secure residential practices	Benchmarking against professional standards, not only Title 15.
2	Any judicial findings of inadequacy	Consent decrees, court orders, findings in past litigation.
3	Any findings of inadequacy from Federal investigative agencies	DOJ Civil Rights Division, any CRIPA activity.
4	Any findings of inadequacy from internal or external oversight bodies	BSCC inspection findings, the juvenile court judge's annual inspection, the Juvenile Justice and Delinquency Prevention Commission, the OYCR Ombudsperson, and internal reviews.
5	All components of the facility's physical plant, including blind spots or areas where staff or residents may be isolated	A walked and documented sightline survey of every unit, with camera coverage mapped against it.
6	The composition of the resident population	Age spread, size and stature, screening results under 15 CCR 1350.5, who is classified where.
7	The number and placement of supervisory staff	Not headcount alone. Where supervisors physically are, by shift.
8	Institution programs occurring on a particular shift	School, visiting, recreation, medical passes. Staffing that works at 0300 does not work during program movement.
9	Any applicable State or local laws, regulations, or standards	15 CCR 1321(h)(1), and the fact that 15 CCR 1301 permits the county to exceed it.
10	The prevalence of substantiated and unsubstantiated incidents of sexual abuse	Departmental incident data by location and shift. Currently blocked: the Internal Affairs six-category disposition taxonomy does not map to the three PREA findings. See register row 81.
11	Any other relevant factors	The catch-all.

Then 115.313(b). Where the staffing plan is not complied with, the facility shall document and justify all deviations. That is the provision that turns the plan from paper into a record.

Verification. The eleven factors are corroborated from two independent searches, including exact-phrase matches against the Cornell, eCFR, and PREA Resource Center listings of the standard. They

have not been read from the Code of Federal Regulations itself, because network access to eCFR, Cornell, govinfo, and the PREA Resource Center was unavailable when this was prepared. Confirm the wording and numbering against 28 CFR 115.313(a) before this is adopted into a staffing plan.

Not legal advice. Prepared for internal remediation planning. Statutory questions route to County Counsel.

OO 1453, Sexual Assault, Title XV 1453

Proposed amendments, shown as tracked changes

Sacramento County Probation Department, Youth Detention Facility

Effective 04/25/2013. Last revised 12/09/2019. Approved by Chief Deputy Dave Semon.

How to read this. The text below is the order as it stands today. Struck text is proposed for deletion and underlined text is proposed to replace it. In Word, use Review, then Accept or Reject, one change at a time. Accepting every change leaves a clean amended order.

The base text below is the order's own words, transcribed from the PDF produced to this review. The PDF is a scan with no text layer, so it was rasterized at 200 dpi and read as images. Typographical errors in the order are preserved, including "written reported" at paragraph 9, which is the order's and not a transcription slip. Anything marked as an insertion is proposed text and is not departmental policy.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption. See the notes at the end, which state what has to be confirmed first.

What is proposed, and where it comes from

Two paragraphs of this order are amended. Each traces to a numbered change in the briefing packet and to the register rows behind it.

Paragraph I.A.6. Change 8. Bring the initial statement into line with WIC 625.6 and 625.7 *Register row 91.*

Paragraph I.A.9. Change 3, stage one. Correct the mandated reporting standard *Register row 48.*

Three further defects in this order are recorded in the notes at the end and are deliberately not amended here, because the fix is not a change of wording.

OO 1453, Sexual Assault, Title XV 1453

Purpose and Scope

The Sacramento County Probation Department is committed to providing a safe, humane, secure environment, free from sexual misconduct. The Department maintains a zero tolerance for sexual misconduct.

A sexual assault that occurs in the Youth Detention Facility shall be given top priority for investigation. Timeliness is crucial when reporting and investigating sexual assaults. Staff shall not hesitate to report any such findings of sexual misconduct.

All employees are responsible for protecting youth in their custody/care and are responsible for the immediate and confidential reporting to the duty supervisor any information and/or suspicion that indicates a youth is being, or has been sexually assaulted.

Affected Personnel

All Sworn Personnel - YDF

Effective Date

December 9, 2019

Authority

Prison Rape Elimination Act

I. Guidelines

A. Once an employee becomes aware a sexual assault has occurred or allegedly occurred, the following protocol shall be observed when treating the victim, preserving the evidence and contacting local law enforcement.

1. Separate the victim and suspect immediately and ensure that the victim and suspect have no contact with one another (no access to toilet – see #5 below).
2. Immediately notify the Supervisor on duty. The Supervisor on Duty shall notify a facility Chief Deputy or Assistant Chief Deputy.
3. Unit staff shall protect the crime scene (youth's room/shower area/laundry room, etc.) by sealing off the area and not allowing access by other staff or youth.
4. Prevent the victim and suspect from showering.
5. If possible, keep the victim and suspect from using the bathroom. If they use the bathroom, the toilet tissue shall be collected as evidence.
6. The duty supervisor shall take an initial statement from the ~~victim and suspect. All suspects involved in a sexual assault shall be read a "Miranda Warning", prior to any questioning.~~alleged victim. A statement shall be taken from a suspect only in accordance with subparagraphs a through f below.
    a. Before any custodial interrogation of a suspect who is 17 years of age or younger, and before any waiver of Miranda rights by such a suspect, the youth shall consult with legal counsel in person, by telephone, or by video conference. That consultation may not be waived by the youth, by a parent or guardian, or by any employee of the Department.

b. Subparagraph a does not apply where the duty supervisor reasonably believes the information sought is necessary to protect life or property from an imminent threat, and the questions asked are limited to those reasonably necessary to obtain that information. Any reliance on this subparagraph shall be documented in the incident report, stating the threat believed to exist and every question asked.

c. No employee shall use threats, physical harm, deception, or psychologically manipulative interrogation tactics against a suspect who is 17 years of age or younger.

d. A suspect who is 18 years of age or older shall be read a Miranda warning prior to any custodial interrogation. Subparagraphs a and c are keyed to age by statute and do not apply to such a suspect.

e. The statement authorized by this paragraph is limited to what each youth says about the incident. It is not an investigation. Canvassing other youth or staff as witnesses, testing whether an allegation is true, and taking any formal statement are the functions of an investigator who has received the specialized training required for sexual abuse investigations, and of the Sheriff's Department once notified under paragraph 8.

f. A youth from whom a statement is taken under this paragraph may have a victim advocate or support person of their choosing present, on the same terms paragraph 13 provides for investigatory interviews.

Change 8. See the notes at the end.

7. When interacting with the alleged victim of sexual assault, staff are expected to be professional and display sensitivity towards the victim as the trauma may affect them both physically, emotionally and mentally.

8. If after initial inquiry it is believed a sexual assault occurred, the Sheriff's Department will be notified immediately by the duty Supervisor in order to take a report.

9. All incidents of ~~sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident.~~suspected child abuse or neglect, including any sexual abuse or sexual assault of a resident, shall be reported by the employee who formed the suspicion to an agency specified in Penal Code section 11165.9 immediately, or as soon as is practicably possible, by telephone, with a written follow-up report on Department of Justice form SS 8572 within thirty-six hours of receiving the information concerning the incident. The duty imposed by this paragraph is individual and may not be delegated. Notifying the duty supervisor or any departmental office does not satisfy the duty and does not delay it.

Change 3. See the notes at the end.

10. The reporting/investigating officer (usually a Supervisor) shall brief the responding Sheriff's officers upon their arrival. Sheriff's officers will be provided with a room to conduct any interviews.

11. If the Sheriff's Department, C.S.I. (Crime Scene Investigations) or detectives cannot respond immediately, the duty supervisor may need to collect evidence. The following protocol shall be followed:

a. Photograph crime scene.

b. After putting gloves on, collect evidence, clearly marking date, time, location, ownership and description of item.

c. Seal all evidence bags and envelopes, log items and place evidence in the evidence locker located in the Property Room at Intake/Booking.

12. Non-consensual sexual assault suspects shall undergo a “suspect rape exam”, which shall be the responsibility of the Sheriff's Department as the investigating agency.

13. All identified victims involved in a non-consensual sexual assault shall be transported by a Transportation Officer, or designated staff appointed by the duty Supervisor (taking gender into consideration), to a local medical facility for an evidentiary exam. Pursuant to Section 264.2 of the California Penal Code, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during their medical examination. In most cases, the victim advocate will be from a local Rape Crisis Center. Sheriff's Officers will follow Youth Detention Facility staff to the Med Center and fill out all necessary paperwork. Pursuant to Section 679.04, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during all investigatory interviews conducted by law enforcement, the district attorney, or defense counsel.

14. If a consensual sex act occurred, all discovery and investigative reports are to be forwarded to the Supervising District Attorney and the Sacramento Sheriff's Sexual Assaults Unit.

15. At the conclusion of the sexual assault investigation, an incident review shall be conducted by upper management officials, with input from supervisors, investigators, and medical or mental health practitioners. A report shall be generated and forwarded to the PREA coordinator and Department Chief.

Notes on each change

Paragraph 6 *(Change 8)*

The order as written directs a Miranda warning and says nothing about Welfare and Institutions Code section 625.6, which since 01/01/2021 requires a youth 17 or younger to consult counsel before a custodial interrogation and before any Miranda waiver, and provides that the consultation may not be waived. The order was last revised 12/09/2019. Subparagraph c addresses a second statute the order also predates, section 625.7, effective 07/01/2024, which bars threats, physical harm, deception and psychologically manipulative tactics in the custodial interrogation of a youth 17 or younger.

Paragraph 9 *(Change 3)*

Penal Code section 11166(a) requires the telephone report immediately or as soon as is practicably possible, not within 24 hours. The same error appears in PREA Policy V.A.4. The insert is drafted to the CANRA trigger rather than to the words sexual assault, because conduct reportable under Penal Code 11165.1(b)(4) and (b)(5) is not necessarily characterised as assault, and the order's scope would otherwise still miss it.

Paragraph 15 *(No amendment proposed)*

No amendment is proposed here, because the defect is not in the words. The order directs the incident review report to a PREA coordinator, and the Department advises the position does not exist. The fix is recommended change 8 in the master report, designating the role. Until then this paragraph routes a required report to nobody. Register row 2.

The order as a whole *(No amendment proposed)*

Every operative duty in this order is keyed to sexual assault: the staff reporting duty in the Purpose and Scope paragraph, the Sheriff notification at paragraph 8, the incident review at paragraph 15. Nothing in three pages reaches sexual harassment, exposure, or touching not characterised as assault, which is the band that generates most incidents. Broadening the order is recommended change 12 and is not drafted yet. Register rows 47, 54 and 69.

Before adoption

The base text is the order's own words. It was transcribed from the PDF produced to this review, which is a scan with no text layer, so it was rasterized and read as images. Check the transcription against the signed original before this is adopted or circulated outside the department.

The gating legal question on paragraph 6 is section 625.6(d), and it must go to County Counsel before adoption. Subdivision (d) provides that the consultation requirement does not apply to a probation officer acting in the normal performance of duties under Welfare and Institutions Code sections 625, 627.5 or 628. Those sections concern taking a minor into temporary custody, advising a minor on delivery to a probation officer, and the decision to release or detain. Taking a statement about a new offence alleged to have occurred inside the facility does not obviously fall within any of them, but the question is genuinely open and this review has found no case deciding it. If Counsel concludes that subdivision (d) covers this activity, the amendment remains sound practice but is not legally compelled, and the finding behind it is a recommendation rather than a conflict.

Subparagraph b is written narrowly on purpose. The imminent threat exception in section 625.6(c) is a real exception and staff need it, but an exception with no documentation requirement becomes the rule. Requiring the threat and every question to be written down is what keeps it narrow.

Subparagraph f exceeds what the statute requires and is a policy choice, not a legal obligation. Penal Code section 679.04, which paragraph 13 correctly recites, attaches the advocate right to investigatory interviews conducted by law enforcement, the district attorney or defense counsel. It does not on its face reach the initial statement this paragraph assigns to facility staff. As the order stands, the one interview conducted by departmental staff is the only one in the sequence with no advocate right attached. Subparagraph f closes that by departmental policy. Strike it if the Department does not want to extend the entitlement.

Section 625.7 is cited by section number and effective date only. This review confirmed its content and its 07/01/2024 effective date by search, and could not read the statute from primary source, because network egress from this environment is restricted. The bill that added it has not been confirmed and is deliberately not cited. Verify both before adoption.

Paragraph 9 is stage one of change 3. Stage two replaces it with a cross-reference once the department wide General Order on child abuse and neglect reporting issues. The same correction is needed in PREA Policy V.A.4, which has never been produced to this review.

Drawn from gap register Revision 11. Accepting or rejecting the tracked changes in Word is the intended way to use this file, and the copy you save afterwards is the department's.

OO 1352, Classification

The provisions that change, shown as tracked changes

Sacramento County Probation Department, Youth Detention Facility

Effective 12/09/2019. Revised 02/27/2020.

This is not the whole order. It is the provisions that change. The order runs to twelve pages and was produced and read in full in Revision 9, but the PDF did not survive the container it was read in. What survives is every provision quoted at the time, word for word, and those are reproduced below. Everything between them is not reproduced and is marked as such. Each provision says whether its text is the order's own words or a description from the register, and a redline is shown only where the words are the order's.

How to read this. Struck text is proposed for deletion and underlined text is proposed to replace it. In Word, use Review, then Accept or Reject, one change at a time.

Eleven of the order's twelve pages are not reproduced here. That includes the Purpose and Scope paragraph, the S-1, S-2, S-3, S-5, S-6 and S-7 criteria, the III.E housing matrix in full, the III.D deviation rules, section IV on legal status changes, and section V. None of them is amended by changes 1 or 6, but their absence is why this document cannot be handed over as the order. **To produce a complete tracked changes copy of OO 1352, the PDF has to be uploaded again.** That is a single step and it would take about an hour.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption.

What is proposed, and where it comes from

Two numbered changes touch this order. Each provision below names the change it belongs to and the register rows behind it.

II.M. Change 1. Rescind the S-8 classification *Register row 36.*

III.I.1. Change 1. Strike the automatic single room mandate *Register row 36.*

III.E, the housing matrix, every S-8 entry. Change 1. Remove S-8 from the housing matrix *Register row 36. Words not held, no redline shown.*

II.F.2, the note. Change 6. Delete the victim to perpetrator inference *Register row 34.*

II.F.2.d. Change 6. Delete the same inference where it appears as a lettered criterion *Register row 34.*

II.G.1, the enumerated offences. Change 6. Add the missing Penal Code sections and split the code *Register row 34.*

II.H. Change 6. Separate victimization risk into its own code *Register row 34.*

II.C.3. Conforming change. Delete the closed institution reference *Register row 34. Words not held, no redline shown.*

The provisions

II.M Change 1

Verified in Revision 9 against the order as produced. The order's own words, including subparagraph a.

~~Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth to further protect against victimization/discrimination within the unit setting. a. See the Transgender and Intersex Youth Policy for housing guidelines.~~Prohibited bases for separation and single occupancy assignment.

1. Staff shall not separate a youth from the general population, and shall not assign a youth to a single occupancy room, based solely on the youth's actual or perceived race, ethnic group identification, ancestry, national origin, color, religion, gender, sexual orientation, gender identity, gender expression, immigration status, mental or physical disability, or medical condition.
2. Nothing in this section prohibits placing a youth in a single occupancy room at the youth's own specific request, or in accordance with the separation provisions of this order, OO 1354, and OO 1354.5. A request under this paragraph shall be documented in JPIP with the date, the substance of the request, and the staff member who received it.
3. Where a youth's sexual orientation, gender identity, or gender expression is known to staff, that information shall be used as one input to the individualized housing determination required by OO 1352.5 III.B and III.F. It shall not by itself determine a housing assignment, a program assignment, or a classification code.
4. No classification code shall be created or maintained whose assignment carries an automatic housing consequence on any basis listed in paragraph 1.

III.I.1 Change 1

Verified in Revision 9. This sentence and III.E.1.a, which applies to S-4 High, are word for word identical and are the only two provisions in the entire order imposing that mandate.

~~Any youth classified S-8 will require a single room (no roommate) housing at all times.~~Housing for a youth whose sexual orientation, gender identity, or gender expression is known to staff shall be determined individually under OO 1352.5 III.B and III.F, and documented. No housing consequence follows automatically from that status.

III.E, the housing matrix, every S-8 entry Change 1

The matrix itself was not quoted into the register when the order was read, so its words are not held and no redline can honestly be shown for it. The action required is nonetheless clear and is stated below.

No redline shown. Remove every S-8 row and column from the III.E housing matrix, and remove S-8 from the JPIP classification code table, the classification worksheet, and any intake screen that offers it, so the code cannot be assigned after the order is amended. Separately, identify every youth currently carrying S-8 and re-determine housing individually under OO 1352.5 III.B and III.F within a stated number of days, documenting each outcome. Without that step the order changes and the practice does not.

II.F.2, the note Change 6

Verified in Revision 9. Bolded in the original.

~~Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies.~~A youth's history of sexual victimization shall be assessed and recorded as a risk of victimization under II.H. It shall not be treated as an indicator that the youth is likely to be sexually abusive toward others, and it shall not be used to assign a code under II.G.

II.F.2.d Change 6

Verified in Revision 9. ***This one was missed by the redline as first drafted.*** *Striking the note alone leaves the defect in force, because the same inference is also a lettered criterion sitting alongside three abusiveness criteria.*

~~d. History of victimization related to sexual abuse or a sexual offense;~~

II.G.1, the enumerated offences Change 6

Verified in Revision 9. The enumeration is complete at II.G.1 plus II.G.3 (rape, 261 PC, all subdivisions). ***Penal Code 287 and 289 are both absent and neither was flagged before Revision 9.*** *243.4, 264.1, 285 and 647.6 are absent as well. The inserted list matches the one drafted at change 6 in the redlines, so the two documents propose the same amendment. They did not at first: this document named only 287 and 289 while the redline named six additions, and the mismatch was found in review.*

a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-divisions); c. Unlawful sexual intercourse with a minor (261.5 PC); d. Oral copulation (287 PC, formerly 288a, renumbered by SB 1494 effective 01/01/2019); e. Continuous sexual abuse of a child (288.5 PC); f. Sexual penetration (289 PC); g. Sexual penetration by a person confined in a state hospital or custodial facility (289.6 PC); h. any successor or equivalent statute to those listed.

S-4A. Assign S-4A, risk of being sexually abusive toward other youth, where the youth has a sustained petition, conviction, or documented finding for an offense listed above, or has documented sexually aggressive or sexually coercive conduct toward another person while in custody, in placement, or in the community, whether or not it resulted in a petition. The basis shall be recorded in JPIP with the source of the information and the date.

II.H Change 6

II.H.2 verified in Revision 9. It places perpetrator conduct in the same S-4 Low tier as II.H.3 and II.H.4, both of which are victimization criteria. II.H.3 makes being the victim of a CPS referral relative to sexual abuse a criterion, so the order uses the same fact protectively here and as an abusiveness indicator at II.F.2. Same fact, opposite uses, one order.

Sexually inappropriate acting out in front of other youth or staff (i.e., masturbation in front of others, exposing genitals, or continued sexual comments for the purpose of arousal), which shall be assessed under II.G as abusiveness rather than under this section.

S-4B. Assign S-4B, risk of being sexually abused by other youth, where screening under OO 1350.5 identifies the youth as at risk of sexual victimization, including prior sexual victimization whether or not it occurred in custody.

i. An S-4A assignment and an S-4B assignment are independent. A youth may carry both, one, or neither, and each shall be assessed, coded, and documented separately.

ii. Information obtained under this section shall be used only to inform housing, bed, education, and program assignments, and to determine appropriate services and supervision. It shall not be used to discipline the youth or to justify a more restrictive placement than the individualized determination supports.

II.C.3 Change 6

The register records that II.C.3 references a pending commitment to the Division of Juvenile Justice, verified in Revision 9, but the surrounding sentence was not quoted, so no redline is shown.

No redline shown. Delete the reference to a pending commitment to the Division of Juvenile Justice. DJJ closed 06/30/2023 under SB 823. Section IV.A carries a second DJJ reference, used as the worked example of a legal status change, and needs replacing with a current example at the same time.

Before adoption

This document shows the provisions that change, not the order. It cannot be circulated as a copy of OO 1352, and it is not a substitute for amending the order itself. Upload the PDF and a complete tracked changes version can be built the same way the OO 1453 one was.

Two provisions carry no redline because their words are not held. The III.E housing matrix and II.C.3 are marked as described rather than quoted, and each states the action required instead of showing struck text. Do not let either be read as though the wording had been checked.

Change 1 replaces II.M in place rather than striking it, so the balance of section II does not need renumbering. The replacement tracks the 15 CCR 1352(e) list and carries the regulation's own carve-out, single occupancy at the youth's specific request, documented. Paragraph 4 is the one that stops S-8 reappearing under a different letter.

The operational half of change 1 is not in the text. Removing the code from the order does nothing for a youth already carrying it. Re-determining housing for every current S-8 youth, within a stated number of days and documented, is what makes the amendment real.

Penal Code 261.5, 288.5 and 289.6 in the S-4A offence list are the drafter's judgment, not sections the order enumerates and not sections this review has verified as the right additions. Only 287 and 289 are confirmed omissions, recorded against the order's own enumeration at II.G.1 and II.G.3. The other three come from the drafted amendment at change 6 and carry the same status there. Confirm all three with County Counsel, or strike them and keep the successor-statute catch-all, which is what stops the next renumbering reopening the gap that 287 left.

This review found the Purpose and Scope paragraph of OO 1352, PREA Policy III.E, and OO 1352.5 III.H already state the correct rule. The amendment brings II.M and III.I into line with three provisions the department has already written correctly, which is worth saying when the change is put to anyone.

Drawn from gap register Revision 11. Accepting or rejecting the tracked changes in Word is the intended way to use this file, and the copy you save afterwards is the department's.

OO 1352.5, Transgender and Intersex Youth

Citations and required actions. This is not a redline and carries no tracked changes.

Sacramento County Probation Department, Youth Detention Facility

Effective 03/01/2019.

This document is not the order and contains none of its words. OO 1352.5 has never been produced to this review. Every provision below is described from the gap register, which traces to an earlier review that did read the order. No sentence in this document is a quotation from OO 1352.5, and no text is shown as struck or inserted, because showing a deletion of wording nobody captured would be inventing departmental policy and then marking it up.

Two of the other order documents in this packet are redlines and this one is not. OO 1453 and OO 1352 carry real Word revisions because their text was produced and read. This order was never produced, so what follows is a list of its provisions, what the register records each one as doing, and the action required. One provision needs amending. The replacement language for it is drafted here, and it is this review's language, not the department's.

What this means in practice: the section numbers are reliable, having been carried in the register across eleven revisions, and the substance of each provision is reliable as a description. The exact wording is not held. Produce the order and this becomes a true tracked changes document on the same day, built the way the OO 1453 document in this packet is built.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption.

The provisions at a glance

Thirteen provisions of this order bear on PREA compliance. Twelve require no amendment and four of them exceed the federal standard. One provision, III.I, is the whole finding.

II.A to II.D. Treatment, name and pronoun, dress, medical access, privacy *Register row 75. No amendment required.*

III.A. Individualized assessment at admission *Register rows 37, 75. No amendment required.*

III.B. No automatic housing by external anatomy *Register rows 36, 37, 75. No amendment required.*

III.C. Youth preference and provider recommendations *Register rows 37, 75. No amendment required.*

III.F. The individualized housing determination *Register rows 36, 37, 75. No amendment required.*

III.G. Monthly reassessment *Register row 37. No amendment required.*

III.H. No isolation or program denial by orientation or identity *Register rows 36, 37. No amendment required.*

III.I. Change 2. Convert the single room rule to a presumptive, documented outcome *Register rows 36, 37, 75. Amendment required, change 2.*

III.J. Private showers *Register row 37. No amendment required.*

III.K. Program access preserved *Register row 37. No amendment required.*

IV.A.1. No physical search to determine anatomical sex *Register row 11. No amendment required.*

IV.A.2. Genital status determined by conversation or records *Register row 11. No amendment required.*

IV.A.3, with IV.A.3.a to IV.A.3.c. Searching staff gender, preference form, two staff procedure *Register row 11. No amendment required.*

Provision by provision

II.A to II.D No amendment required

Treatment, name and pronoun, dress, medical access, privacy

What the register records this provision as doing. Respect for gender identity and preferred pronoun, with documented exceptions for gang or slang names (II.A). Dress and undergarments consistent with gender identity (II.B). Access to qualified medical and behavioral health providers (II.C). Safety and privacy for bathroom, shower and dressing (II.D).

Action required. No amendment required. These provisions implement 15 CCR 1352.5 and are recorded in the register as closing the written policy requirement at row 75. They are listed here so that the department can see the amendment below is one provision out of thirteen rather than a criticism of the order.

III.A No amendment required

Individualized assessment at admission

What the register records this provision as doing. An individualized assessment at admission, using an Identity Preference Form.

Action required. No amendment required. This is the front end of the determination that the amended III.I defers to.

III.B No amendment required

No automatic housing by external anatomy

What the register records this provision as doing. No automatic housing by external anatomy, and documented reasons for any placement that does not match the youth's gender identity.

Action required. No amendment required, and this provision is the reason the finding below exists. III.B states the correct rule. III.I states the opposite rule. The register records III.I as contradicting this provision, III.F and III.H inside the same order.

III.C No amendment required

Youth preference and provider recommendations

What the register records this provision as doing. Consideration of the youth's own preferences and

of provider recommendations.

Action required. No amendment required. The register records this provision as closing 28 CFR 115.342(f) and as tracking 15 CCR 1352.5(c), which requires the same two considerations.

III.F No amendment required

The individualized housing determination

What the register records this provision as doing. Housing based on individualized needs, prioritizing emotional and physical safety, considering the youth's own perception of where the youth will be most secure, documented in JPIP classification comments with the date and the justification.

Action required. No amendment required, and this is the single most important provision in the order for this packet. It is the determination that 28 CFR 115.342(c) and 15 CCR 1352(e) require, it already exists, and it already requires documentation. The amendment to III.I works by pointing at this provision rather than by creating anything new.

III.G No amendment required

Monthly reassessment

What the register records this provision as doing. Reassessment of placement and program assignment monthly or as needed.

Action required. No amendment required. This exceeds the federal standard: 28 CFR 115.342(e) sets a twice yearly minimum and the order reassesses monthly. Worth stating in the room, because the department gets no credit for it anywhere else in this packet.

III.H No amendment required

No isolation or program denial by orientation or identity

What the register records this provision as doing. Staff shall not consider a youth's sexual orientation or gender identity as a reason to isolate the youth or to withhold program options.

Action required. No amendment required, and this provision does work beyond this order. It is one of the authorities the register uses against the S-8 classification in OO 1352, because this order took effect 03/01/2019 and OO 1352 created S-8 on 12/09/2019. The department adopted the correct

rule first and the opposite rule afterward, which is recorded at register row 36.

III.I Change 2

Change 2. Convert the single room rule to a presumptive, documented outcome

What the register records this provision as doing. The register records III.I as providing that all transgender and intersex youth shall be provided a single room.

The problem. That is a categorical housing outcome assigned by status, which is what 28 CFR 115.342(c) and 15 CCR 1352(e) prohibit, and it contradicts III.B, III.F and III.H inside this same order. This version is more defensible than the S-8 mandate in OO 1352, because it is limited to transgender and intersex youth, states a privacy and safety rationale, and preserves program access at III.K. Categorical is still categorical. Revision 8 added the context that makes it bite: the department houses girls separately from boys, so a transgender or intersex youth is the case the housing system has no default for, and III.I resolves that case by status rather than by the determination III.B and III.F require.

Authority

- 28 CFR 115.342(c), and (d) to (g)
- 15 CCR 1352(e), verified against the edition effective 04/01/2014 and unchanged in the edition effective 01/01/2019
- 15 CCR 1352.5(c), verified in Revision 6 against the edition effective 01/01/2019: staff shall house youth in the unit or room that best meets their individual needs, may not automatically house youth according to their external anatomy, shall document reasons for any placement not matching gender identity, and shall consider the youth's preferences and provider recommendations

Action required. Replace III.I with the language below. The replacement makes single occupancy the presumptive result of the III.F determination instead of an automatic consequence of status. Confirm the numbering and the current wording against the order before adoption.

Proposed replacement language. *Drafted by this review. These are not the order's words and are not presented as an edit to its text.*

III.I Room assignment

1. The room assignment of a transgender or intersex youth shall be determined individually under III.B and III.F. It shall not be determined by the youth's status as transgender or intersex.

2. Single occupancy housing is the presumptive outcome of that determination, and the presumption is overcome where the individualized determination supports shared housing consistent with the youth's own perception of where the youth will be most secure. The determination shall be revisited at each reassessment required by III.G.

3. Whether the determination results in single occupancy or shared housing, the reasons shall be documented in the JPIP classification comments with the date and justification required by III.F,

including the youth's stated preference and, where the assignment departs from that preference, the reason it does.

4. A single occupancy assignment made under this section shall not reduce the youth's access to programming, education, recreation, visiting, or any other activity, as III.K requires.

5. Nothing in this section limits a youth's right to request single occupancy housing. A request shall be documented under III.F and honored where operationally feasible.

Watch this. A presumption applied without a real determination is the same defect in better clothes. The JPIP documentation required by paragraph 3 is what makes this a determination rather than the old rule in different words, so audit those entries after adoption.

III.J No amendment required

Private showers

What the register records this provision as doing. Private showers for all youth.

Action required. No amendment required. The register records this provision as closing 28 CFR 115.342(g).

III.K No amendment required

Program access preserved

What the register records this provision as doing. Preservation of program participation despite private accommodations.

Action required. No amendment required, and paragraph 4 of the proposed III.I language points at this provision rather than restating it.

IV.A.1 No amendment required

No physical search to determine anatomical sex

What the register records this provision as doing. A prohibition on physically searching a youth to determine anatomical sex.

Action required. No amendment required. The register records 28 CFR 115.315(e) as closed by this provision and in places exceeded by the IV.A series.

IV.A.2 No amendment required

Genital status determined by conversation or records

What the register records this provision as doing. Where genital status is unknown, it is determined through conversation with the youth or review of medical records.

Action required. No amendment to this order. The required action runs the other way: the register records this provision as better than PREA Policy VIII.B, which contemplates a private physical examination, and recommends that the PREA Policy be conformed to this order rather than the reverse. That is a PREA Policy amendment and it is blocked until the PREA Policy is produced.

IV.A.3, with IV.A.3.a to IV.A.3.c No amendment required

Searching staff gender, preference form, two staff procedure

What the register records this provision as doing. Respect for the youth's preference as to the gender of searching staff whenever feasible (IV.A.3). An Identification Preference Form for all youth at intake, supervisor review of any preference request, a direct meeting between the supervisor and the youth before authorizing, and documentation of the request, the rationale and who conducted the search in the youth's file, in JPIP and on the Strip Search Authorization Application (IV.A.3.a). Two staff procedures for strip and pat down searches, with the preferred gender staff conducting and the second staff within hearing but out of view (IV.A.3.b and IV.A.3.c).

Action required. No amendment to this order. One conforming amendment elsewhere: OO 1360 should carry an explicit cross reference to IV.A.3.b, because these two orders do reconcile and a reader of OO 1360 alone would not know it. Revision 2 of this review recorded a conflict between them and withdrew it on reading this provision. The cross reference is listed as a conforming item under change 2 and costs one sentence.

Before adoption

OO 1352.5 has never been produced to this review. Confirm the III.I numbering and the current wording against the order before adopting the replacement language. Everything in this document is a description drawn from the register, not a quotation.

The 15 CCR 1352.5 citation in the authority line is **verified**. It was carried as unconfirmed through Revision 5 because it is absent from the 04/01/2014 edition of Title 15, and Revision 6 confirmed it against the edition effective 01/01/2019, where it runs (a) to (e). The edition effective 01/01/2019 is the operative one. The January 2023 revision is a pending proposal and must not be relied on.

The register records III.I as contradicting III.B, III.F and III.H. That assessment rests on the earlier review's reading of the order. Confirm the three cross references survive in the current version before the amendment relies on them.

This order is one of three the recommended amendments touch that have never been produced to this review. The other two are the PREA Policy and the Internal Affairs policy. Producing this order moves change 2 from a description onto the order's real words.

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